SOLICITATION, OFFER, AND AWARD

1. This Contract is a Rated Order under the Defense Priorities and Allocations System (DPAS) - Code of Federal Regulations - at 15 CFR 700.

RATING:

2. CONTRACT NUMBER	3. SOLICITATION NUMBER	4. TYPE OF SOLICITATION	5. DATE ISSUED	6. REQUISITION/PURCHASE NUMBER
	M6700426R00070001	☐ SEALED BID (IFB) INVITATION FOR BID ☒ NEGOTIATED (RFP) REQUEST FOR PROPOSAL	16 Apr 2026	

7. ISSUED BY CODE M67004

COMMANDER
MARCORLOGCOM, 814 RADFORD BLVD STE 20313
ALBANY, GA 31704-0313
UNITED STATES
Timothy Rivers, Email: timothy.l.rivers@usmc.mil Telephone: 904-696-5360

8. ADDRESS OFFER TO *(If other than item 7)*

COMMANDING OFFICER
BLOUNT ISLAND COMMAND(ORGANIC), 5880 CHANNEL VIEW BLDG 100
JACKSONVILLE, FL 32226-3404
UNITED STATES

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".

SOLICITATION

9. Sealed offers in original and 1 copies for furnishings the supplies or services in the Schedule will be received at the place specified in item 8, or if hand carried, in the depository located in See Section L. Attn: Timothy L. Rivers until 03:00 PM *(Hour)* local time 10 Jul 2026 *(Date)*

CAUTION - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision Number 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.

10. FOR INFORMATION CALL:	A. NAME	B. TELEPHONE *(NO COLLECT CALLS)* AREA CODE	NUMBER	EXTENSION	C. EMAIL ADDRESS
	Timothy Rivers	904	696-5360		timothy.l.rivers@usmc.mil

11. TABLE OF CONTENTS

OFFER *(Must be fully completed by offeror)*

NOTE: Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.

12. In compliance with the above, the undersigned agrees, if this offer is accepted within ______ calendar days *(60 calendar days unless a different period is inserted by the offeror)* from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

13. DISCOUNT FOR PROMPT PAYMENT *(See Section I, Clause Number 52.232-8)*	10 CALENDAR DAYS (%)	20 CALENDAR DAYS (%)	30 CALENDAR DAYS (%)	CALENDAR DAYS (%)

14. ACKNOWLEDGMENT OF AMENDMENTS *(The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):*	AMENDMENT NUMBER	DATE	AMENDMENT NUMBER	DATE
	0001	24 Apr 2026		

15A. NAME AND ADDRESS OF OFFEROR — CODE ______ FACILITY ______

16. NAME AND THE TITLE OF PERSON AUTHORIZED TO SIGN OFFER *(Type or print)*

15B. TELEPHONE NUMBER AREA CODE	NUMBER	EXTENSION	15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE.	17. SIGNATURE	18. OFFER DATE
			☐		

AWARD *(To be completed by Government)*

19. ACCEPTED AS TO ITEMS NUMBERED	20. AMOUNT	21. ACCOUNTING AND APPROPRIATION

22. AUTHORITY FOR USING OTHER THAN FULL OPEN COMPETITION UNDER THE UNITED STATES CODE AT:
☐ 10 U.S.C. 3204(a) ☐ 41 U.S.C. 3304(a) ( )

23. SUBMIT INVOICES TO ADDRESS SHOWN IN *(4 copies unless otherwise specified)* — ITEM

24. ADMINISTERED BY *(If other than Item 7)*

25. PAYMENT WILL BE MADE BY — CODE

26. NAME OF CONTRACTING OFFICER *(Type or print)*

27. UNITED STATES OF AMERICA

(Signature of Contracting Officer)

28. AWARD DATE

IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.

Section A - Solicitation/Contract Form

Marine Corps Prepositioning Program Services

A-1 TYPE OF CONTRACT. This is a single award hybrid Indefinite Delivery Indefinite Quantity (IDIQ) contract with the flexibility to award task orders on a CPFF, FFP, and Cost Reimbursable (for Materials and Travel) basis as defined by the respective Contract Line Item Number/Sub Line Item Number (CLINs/SLINs) against which Task Orders will be issued.

A-2 ORDERING PERIODS AND CLIN NUMBERS

Base Ordering Period: Year One Through Year Five (CLINs 0001 through 0007)
Contract Transition: Phase In/Phase Out (CLIN 0008)
Opt I Ordering Period: Year Six Through Year Ten (CLINs 1001 through 1007)

Note: X001 is used throughout the SOW where X indicates the ordering periods Base and Opt I to correlate with the ordering periods as identified in above.

Section B - Supplies or Services & Prices or Costs

Additional Information/Notes

Additional Information/Notes

1. Minimum and Maximum IDIQ Amounts

a. Minimum guarantee: $10,000.00. The minimum guarantee of $10,000.00 is the minimum for the entire potential ten-year ordering period. It will be paid in the first year of the ordering period.

b. Maximum: TBD at time of award based on total evaluated price. The maximum represents the potential cumulative total of all task orders issued under this contract under all ordering periods.

c. Funds shall be obligated by issuance of Task Orders for precise quantities.

2. Task Order Pricing Notes

a. FFP Transition CLIN 0008: This is a FFP CLIN. All costs associated with the contractor's transition-in plan are encompassed in this CLIN value (direct costs, indirect costs, profit, any other costs, travel, ODCs, etc. associated with transition-in specifically). The first task order issued under this IDIQ will be for the FFP amount on CLIN 0008.

b. FFP CLINs X001: The FFP amount for program management is fully loaded; inclusive of all direct costs, indirect costs, profit, and any other costs associated with performing program management IAW the SOW. Task orders issued will utilize the FFP unit pricing included in Attachment #J-7 'CLIN X001' tab for the applicable year in which the task order is issued. For example, if a task order is issued during Year 1 of the Ordering Period, the FFP Unit Pricing for Year 1 will be utilized for the entirety of the performance period of that task order. The Government will not use blended rates for task orders that cross over 'Years' of the Ordering Period.

c. CPFF CLINs Labor: The CPFF CLINs on this contract are "Term" type IAW FAR 16.304-3(b) meaning the contractor will be required to work at a specified level for a specific time period. When the Government issues task orders utilizing the CPFF CLINs (X002, X003, and X004), the estimated labor rates established in Attachment #J-7 will be utilized on the task order award depending on which Year of the Ordering Period the task order is issued. As this is a cost type CLIN, ultimately it allows for the reimbursement of allowable incurred costs (see FAR 31.201-2 for allowability of costs). The task order will utilize these estimated labor rates for the purpose of obligating funds and establishing a ceiling value on each task order that the contractor may not exceed without the approval of the Contracting Officer. Note: FAR 52.232-20 Limitation of Cost (and FAR 52.232-22 Limitation of Funds) applies to these CLINs and any task order that includes these CPFF type CLINs.

d. CPFF CLINs Fee: A single fixed-fee percentage for each CPFF CLIN in Section B will be applied. These percentages will be binding fee ceilings for all task orders utilizing the CPFF CLINs and will be applied to the allowable cost base for each task order. The same fixed-fee percentage (per CPFF CLIN) will be used for all task orders unless a lower fee is negotiated. In accordance with FAR 52.216-8 and Section H-8.3, the fixed fee amount will be expressed as dollars at the task order level and is subject to proportionate adjustment only when scope changes occur. See 'Level of Effort - Fee Adjustment Formula' Section below which will be included in each task order issued that includes a CPFF CLIN.

e. Cost type CLIN Indirect Rates: The indirect rate ceilings listed in Contract Attachment J-1 will be applicable to each task order issued under this base IDIQ contract, depending on which Year of performance the task order is issued. The contractor may not bill above the indirect rate ceiling caps established for this contract. This is applicable to any of the cost type CLINs that allow indirect rates to be applied.

3. Contract Ceiling Notes: For cost-reimbursement, CPFF, and Other Direct Cost (ODC) CLINs, the Government may adjust funding allocations and ceiling distributions at the IDIQ and task order level to reflect actual performance requirements, execution rates, and mission needs. Such adjustments shall not be interpreted as authorization to exceed the total IDIQ and task order ceiling or to perform work outside the scope of the contract.

NOTE: The following language will be included in each task order that contains CPFF type CLINs:

LEVEL OF EFFORT - FEE ADJUSTMENT FORMULA

(a) Subject to the provisions of the Limitation of Cost or Limitation of Funds clause (whichever is applicable to this task order), it is hereby understood and agreed that the fixed fee is based upon the contractor providing the below listed number of staff-hours of direct labor, hereinafter referred to as X, at the estimated cost and during the term of this task order specified elsewhere herein:

CLIN	Total Staff-hours of Direct Labor (X)
X	X

The contractor agrees to provide the total level of effort specified above in performance of work described in Sections B and C of this task order. The total staff-hours of direct labor shall include subcontractor direct labor hours for those subcontractors identified in the contractor's proposal as having hours included in the proposed level of effort.

(b) Of the total staff-hours of direct labor set forth above, it is estimated that [insert number of estimated direct staff hours identified as competitive (uncompensated overtime) hours] staff-hours are competitive time (uncompensated overtime). Competitive time (uncompensated overtime) is defined as hours provided by personnel in excess of 40 hours per week without additional compensation for such excess work. All other effort is defined as compensated effort. If no amount is indicated in the first sentence of this paragraph, competitive time (uncompensated overtime) effort performed by the contractor shall not be counted in fulfillment of the level of effort obligations under this task order.

(c) Effort performed in fulfilling the total level of effort obligations specified above shall only include effort performed in direct support of this contract and shall not include time and effort expended on such things as local travel from an employee's residence to their usual work location, uncompensated effort while on travel status, truncated lunch periods, or other time and effort which does not have a specific and direct contribution to the tasks described in Section B.

(d) It is understood and agreed that various conditions may exist prior to or upon expiration of the term of the contract, with regard to the expenditure of labor staff-hours and/or costs thereunder which may require adjustment to the aggregate fixed fee. The following actions shall be dictated by the existence of said conditions:

(1) If the contractor has provided not more than 105% of X or not less than 95% of X, within the estimated cost, and at the term of the contract, then the fee shall remain as set forth in Section B.

(2) If the contractor has provided X-staff-hours, within the term, and has not exceeded the estimated cost then the Contracting Officer may require the contractor to continue performance until the expiration of the term, or until the expenditure of the estimated cost of the contract except that, in the case of any items or tasks funded with O&MN funds, except the term of performance shall not exceed a 12 month period. In no event shall the contractor be required to provide more than 105% of X within the term and estimated cost of this contract. The fee shall remain as set forth in Section B.

(3) If the contractor expends the estimated cost of the contract, during the term of the contract and has provided less than X staff-hours, the Government may require the contractor to continue performance, by providing cost growth funding, without adjusting the fixed fee, until such time as the contractor has provided X staff-hours.

(4) If the Contracting Officer does not elect to exercise the Government's rights as set forth in paragraph (d)(2) and (d)(3) above, and the contractor has not expended more than 95% of X staff-hours, the fixed fee shall be equitably adjusted downward to reflect the diminution of work.

(5) Nothing herein contained shall, in any way, abrogate the contractor's responsibilities, and/or the Government's rights within the terms of the contract provision entitled Limitation of Cost or Limitation of Funds as they shall apply throughout the term of the contract, based upon the total amount of funding allotted to the contract during its specified term.

(e) Within 45 days after completion of the work under each separately identified period of performance hereunder, the contractor shall submit the following information in writing to the Contracting Officer with copies to the cognizant Contract Administration Office and DCAA office to which vouchers are submitted:
(1) The total number of staff-hours of direct labor expended during the applicable period.
(2) A breakdown of this total showing the number of staff-hours expended in each direct labor classification and associated direct and indirect costs.
(3) A breakdown of other costs incurred.
(4) The contractor's estimate of the total allowable cost incurred under the contract for the period.
(5) In the case of a cost under-run, the contractor shall submit the following information in addition to that required above: The amount by which the estimated cost of this contract may be reduced to recover excess funds and the total amount of staff-hours not expended, if any.
(6) A calculation of the appropriate fee reduction in accordance with this text.
All submissions required by this paragraph shall include subcontractor information, if any.

(f) SPECIAL INSTRUCTION TO THE PAYING OFFICE REGARDING WITHHELD FEE
Fees withheld pursuant to the provisions of this contract, such as the withholding provided by the Allowable Cost and Payment and Fixed Fee clauses, shall not be paid until the contract has been modified to reduce the fixed fee in accordance with paragraph (d) above, except that no such action is required if the total level of effort provided falls within the limits established in paragraph (d) above.

Item	**Supplies/Service**	**Quantity**	**Unit**	**Unit Price**	**Amount**
0001	Program Management Base Ordering Period - The MCMC shall provide Program and Risk Management support in accordance with Sections C.1 and C.2 of the Statement of Work. Pricing Arrangement: Firm Fixed Price See Note 2(b). Pricing Arrangement: Firm Fixed Price	60	Months		
	Maintenance Production (CONUS)				

0002	Base Ordering Period - The MCMC shall provide all necessary resources to execute all tasks and responsibilities to the established standards in accordance with and all activities in Sections C.3, C.4, C.5, C.6, C.7, C.8, C.9, and C.10 of the Statement of Work. CPFF Level of Effort IAW FAR 16.304-3(b) See Notes 2(c),(d),(e). Pricing Arrangement: Cost Plus Fixed Fee	5,744,860	Hours		
0003	Maintenance Production (OCONUS) Base Ordering Period - The MCMC shall provide all necessary resources to execute all tasks and responsibilities to the established standards in accordance with all activities in Sections C.3, C.4, C.5, C.6, C.7, C.8, and C.11 of the Statement of Work. CPFF Level of Effort IAW FAR 16.304-3(b) See Notes 2(c),(d),(e). Pricing Arrangement: Cost Plus Fixed Fee	2,829,845	Hours		
0004	Other Logistics Support Base Ordering Period - The MCMC shall provide Contingency/Exercise/Emerging Requirements support in accordance with Sections C.6, C.7, C.8, and C.11 of the Statement of Work. CPFF Level of Effort IAW FAR 16. 304-3(b) Overtime Premium shall not be subject to fee. Contingency/Exercise/Emerging Requirements Fixed Fee will be determined upon authorization of work in accordance with Section H-8.3: The same ratio of fee awarded in the initial contract award will be used in any task orders issued. Pricing Arrangement: Cost Plus Fixed Fee See Notes 2(c),(d),(e). RFP NOTE: The estimated CLIN amount is $9.8M in accordance with the Cost Model Workbook. This CLIN is subject to fee (which shall be proposed). Labor Categories and LOE will be determined at the Task Order level. Pricing Arrangement: Cost Plus Fixed Fee	9,802,285	Lot		
0005	Travel Base Ordering Period - Fee or any markups shall not be applied to Travel. Pricing Arrangement: Cost Only No Fee or Indirects Pricing Arrangement: Cost No Fee	27,281,013	Lot		
0006	Other Direct Costs Base Ordering Period - Fee shall not be applied to Other Direct Costs . Indirect markups are permitted per Attachment J-7. Pricing Arrangement: Cost Only No Fee See Note 2(e). Pricing Arrangement: Cost No Fee	341,304,476	Lot		

0007	Data Requirements / CDRLs Base Ordering Period - The MCMC shall provide all data requirements, reports, and submittals using DD Form 1423-1 as established in the SOW. (SEE Contract Attachment #9) Data Requirements are Not Separately Priced. Pricing Arrangement: N/A Pricing Arrangement: Cost No Fee	1	Unit		
0008	Contract Transition For Phase-in/Phase-out (H-21) Services Pricing Arrangement: Firm Fixed Price See Note 2(a). Pricing Arrangement: Firm Fixed Price	3	Months		
Option Line Item 1001	Program Management Option Period - The MCMC shall provide Program and Risk Management support in accordance with Sections C.1 and C.2 of the Statement of Work. Pricing Arrangement: Firm Fixed Price See Note 2(b). Pricing Arrangement: Firm Fixed Price	60	Months		
Option Line Item 1002	Maintenance Production (CONUS) Option Ordering Period - The MCMC shall provide all necessary resources to execute all tasks and responsibilities to the established standards in accordance with and all activities in Sections C.3, C.4, C.5, C.6, C.7, C.8, C.9, and C.10 of the Statement of Work. CPFF Level of Effort IAW FAR 16. 304-3(b) Pricing Arrangement: Cost Plus Fixed Fee See Notes 2(c),(d),(e). Pricing Arrangement: Cost Plus Fixed Fee	5,744,860	Hours		
Option Line Item 1003	Maintenance Production (OCONUS) Option Ordering Period - The MCMC shall provide all necessary resources to execute all tasks and responsibilities to the established standards in accordance with all activities in Sections C.3, C.4, C.5, C.6, C.7, C.8, and C.11 of the Statement of Work. CPFF Level of Effort IAW FAR 16. 304-3(b) Pricing Arrangement: Cost Plus Fixed Fee See Notes 2(c),(d),(e). Pricing Arrangement: Cost Plus Fixed Fee	2,829,845	Hours		
	Other Logistics Support Option Ordering Period - The MCMC shall provide Contingency/Exercise/Emerging Requirements support in accordance with Sections C.6, C.7, C.8, and C.11 of the Statement of Work. CPFF Level of Effort IAW FAR 16. 304-3(b) Overtime Premium shall not be subject to fee. Contingency/Exercise/Emerging Requirements Fixed Fee will be determined upon authorization of work in				

Option Line Item 1004	accordance with Section H-8.3: "The same ratio of fee awarded in the initial contract award will be used in any task orders issued. Pricing Arrangement: Cost Plus Fixed Fee See Notes 2(c),(d),(e). RFP NOTE: The estimated CLIN amount is $11.3M in accordance with the Cost Model Workbook. This CLIN is subject to fee (which shall be proposed). Labor Categories and LOE will be determined at the Task Order level. Pricing Arrangement: Cost Plus Fixed Fee	11,308,480	Lot		
Option Line Item 1005	Travel Option Ordering Period - Fee or any markups shall not be applied to Travel. Pricing Arrangement: Cost Only No Fee Pricing Arrangement: Cost No Fee	39,753,912	Lot		
Option Line Item 1006	Other Direct Costs Option Ordering Period - Fee shall not be applied to Other Direct Costs. Pricing Arrangement: Cost Only No Fee See Note 2(e). Pricing Arrangement: Cost No Fee	393,748,450	Lot		
Option Line Item 1007	Data Requirements / CDRLs Option Ordering Period - The MCMC shall provide all data requirements, reports, and submittals using DD Form 1423-1 as established in the SOW. (SEE Contract Attachment #9) Data Requirements are Not Separately Priced. Pricing Arrangement: N/A Pricing Arrangement: Firm Fixed Price	1	Unit		

Section C - Description/Specifications/Statement of Work

STATEMENT OF WORK CONSTRUCT

See Attachment J-5 for full Statement of Work.

1.0 MCPP PROGRAM REQUIREMENTS OVERVIEW

1.1 Background

1.2 Overall MCPP Scope

1.3 Reserved

1.4 Program Complexity

1.5 Program Operational Goals

1.6 Organizational Responsibility

1.7 Contract Authority

1.8 Security

1.9 Equipment and Materiel Accountability

1.10 Organic Government Property (OGP) and Services

1.11 References, Publications, Forms and Reports

1.12 Rights in Data

1.13 Applicable Publications/Source Documents

1.14 Acronyms

2.0 PROGRAM MANAGEMENT

2.1 Resource Management

2.2 Quality and Risk Management

2.3 Production Planning and Control Management

2.4 Maintenance Management

3.0 MAINTENANCE ACTIVITIES

4.0 SUPPLY

4.1 Supply Demand Planning & Monitoring of Materiel Requirements/ Shortfalls

4.2 Procurement and Sourcing

4.3 Inventory Management

4.5 Reserved

4.6 Reserved

4.7 T-AKE Supply Operations

4.8 ISO Freight Container Inventory and Maintenance

Requirements

The Marine Corps Prepositioning Program (MCPP) is designed to respond to unknown threats under emerging crisis scenarios across the full spectrum of military operations. To provide global coverage the USMC relies on the MCPP as a primary crisis response enabler. The MCPP currently consists of three functional segments: the Maritime Propositioning Force (MPF) which includes Maritime Prepositioning Ships (MPS), Marine Corps Prepositioning Program - Norway (MCPP-N), and MCPP-Philippines (MCPP-PHIL). The number of MPS and number / location of ashore sites may change over time based upon operational requirements. The functional segments of the MCPP provide the Geographic Combatant Commanders (GCC) combat capability sets, comprised of equipment and supplies, to support 30 days of operations by multiple types of Marine Air Ground Task Forces (MAGTF) up to and including a Marine Expeditionary Brigade (MEB) of 16,000 Marines and Sailors. MCPP capabilities are used in day-to-day campaigning and support the rapid response of Fleet Marine Forces (FMF) during contingencies. Equipment is issued to the FMF from one or multiple MPS and / or ashore locations and is reconstituted upon completion of assigned FMF tasks. Central to this operational deployment methodology and a major component of the MCPP is the requirement for specialized combat-readiness logistics services which are achieved through the MCPP contract which is operated under the cognizance of Blount Island Command (BICmd) located aboard Marine Corps Support Facility-Blount Island (MCSF-BI) in Jacksonville, Florida. MPSs rotate, one at a time, to MCSF-BI where the contractor performs the full range of sustainment, refurbishment, replenishment and specialized preservation logistics services to ensure the combat readiness of equipment and supplies for long-term storage. The ship rotation schedule includes time for maintenance of equipment associated with ashore prepositioning locations. After re-embarkation aboard their respective MPS or deployment to ashore sites the contractor will provide Care of Supplies in Storage and assists, as directed, in reconstituting equipment after use by the FMF.

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.247-7002	Revision of Prices.	Dec 1991		

Section D - Packaging and Marking

D.1 GENERAL PACKAGING REQUIREMENTS

1. All supplies and materials furnished under this IDIQ contract shall be preserved, packaged, packed, and marked in accordance with the requirements of:
o MIL-STD-129 (Military Marking for Shipment and Storage) for shipments to DoW facilities.
o MIL-STD-2073-1 (Standard Practice for Military Packaging) for items requiring military-grade protection.
o Commercial packaging standards if specified in the task or delivery order.
o Command Order 4035.1

2. Packaging shall ensure that items remain serviceable while in transit, storage, and handling, and shall prevent deterioration due to environmental factors.

D.2 PACKAGING SPECIFICATIONS

1. Packaging requirements for each task or delivery order shall be defined in the order's statement of work (SOW).

2. Unless otherwise specified, packaging shall adhere to Level B or C standards based on the item's fragility and shipping method.

3. Items shall be packed to prevent damage due to shock, vibration, moisture, static electricity, and rough handling.

4. Containers shall be stackable and modular, where possible, to optimize storage and transportation.

D.3 MARKING REQUIREMENTS

Each package shall be clearly marked with the following:

1. Required Markings on Each Package:
o Contract Number: [Insert Contract Number]
o Task/Delivery Order Number: [Insert TO/DO Number]
o National Stock Number (NSN) or Manufacturer Part Number
o Item Description and Quantity
o Manufacturer's Name and CAGE Code
o Lot/Serial Number (if applicable)
o Shelf-life or Expiration Date (if applicable)

2. Military Shipping Label (MSL) Requirements (if applicable):
o Required for shipments to DoW facilities per MIL-STD-129.
o Label shall include linear and 2D barcodes for automated tracking.
o RFID tagging shall be applied when required by the task/delivery order.

3. Hazardous Materials Marking (if applicable):
o Shipments containing hazardous materials must comply with:

-49 CFR (DOT regulations) for ground transport.

-IATA Dangerous Goods Regulations for air transport.

-United Nations (UN) Hazardous Materials Classification System.
o Proper hazard class labels, placards, and handling instructions shall be affixed as required.

D.4 UNIQUE IDENTIFICATION (UID) MARKING

1. Each UID-eligible item shall be marked per MIL-STD-130 with:
o Data Matrix 2D barcode.
o Unique Item Identifier (UII).
o Contract Number, Lot Number, and Serial Number.

2. UID marking requirements shall be specified in each task/delivery order where applicable.

D.5 RFID TAGGING REQUIREMENTS

1. Passive RFID tags shall be applied in accordance with DoW logistics guidance.

2. Passive RFID tags shall be placed on the exterior of the shipping container or vehicle and comply with DoW Wide-Area Workflow (WAWF) electronic tracking requirements.

D.6 EXPORT CONTROLLED ITEMS (if applicable)

1. If items are subject to International Traffic in Arms Regulations (ITAR) or Export Administration Regulations (EAR), packages shall be marked:
o "EXPORT CONTROLLED - ITAR RESTRICTED"
o "AUTHORIZED U.S. GOVERNMENT PERSONNEL ONLY"

2. The contractor shall ensure proper recordkeeping and shipment tracking for export-controlled items.

D.7 DELIVERY, INSPECTION, AND ACCEPTANCE

1. Items shall be packaged for easy access to allow government inspection upon receipt.

2. Each shipment shall contain a packing list inside the primary shipping container, including:
o Contract Number and Delivery/Task Order Number.
o Itemized list of shipped products with quantities and serial numbers (if applicable).
o Any required safety data sheets (SDS) for hazardous materials.

3. The Government reserves the right to reject improperly marked or inadequately packaged items at the contractor's expense.

Section E - Inspection and Acceptance

E-1 INSPECTION/MONITORING OF PERFORMANCE

(a) Inspection and monitoring of services performed under this contract will be conducted to verify accomplishment of work in compliance with the Statement of Work and all applicable publications, adherence to established MCMC processes, to determine timeliness of actions taken, and to ascertain quality of the efforts. The goal of contract performance and the inspections is to attain 100% of required supplies and equipment, maintain them at 100% fully mission capable status and to ensure 100% data accuracy is achieved at the levels described in the SOW. Technical standards for maintenance preservation and inspection will be those contained in the SOW and equipment technical manuals.

(b) In addition to inspection and monitoring by the Government, inspection and monitoring of services shall be performed by the MCMC in accordance with his approved quality control plan. The MCMC's Quality Control Plan must align with the BICmd Risk and Performance Manual (CmdO P5000.11) to comply with ISO Joint Certification requirements. Documentation associated with MCMC Quality Control shall be available to Government Quality Assurance (QA) personnel upon request. The MCMC shall use the Government provided Quality Management Support System, to document all MCMC inspection and monitoring of services as identified in the approved quality control plan.

(c) Inspection and monitoring of services under this contract may be accomplished by any of the following Government personnel:

(1) The Contracting Officer and/or assigned Contracting Officer's Representative (COR).

(2) Quality Assurance Representatives (QAR) personnel responsible for the inspection and monitoring of equipment, supplies, or processes.

(3) Personnel who inspect equipment as an adjunct to their primary task of equipment employment.

(4) Cognizant personnel at Marine Corps Logistics Command and Blount Island Command charged with the responsibility for the MPS Program, MCPP-N, MCPP-PHIL and Ashore Prepositioning Sites.

(d) Government personnel will inspect and monitor through:

(1) Examination and employment of equipment and supplies,

(2) Reviewing records of maintenance actions taken,

(3) Reviewing written reports from the MCMC

(4) Reviewing the maintenance, supply or other Government approved records, and

(5) Monitoring established MCMC processes.

(e) The extent of Government Verification inspection will be determined by the Government. Such inspections will normally not exceed the definitive quality assurance requirements established in the SOW, specifications, and/or contract; however, the Government reserves the right to perform any amount of inspection (including 100% inspection), when it determines such inspection is warranted.

(f) At the option of the Government, Government inspection may be performed concurrently with the MCMC, or independently on samples selected by the Government representative. When independent Government inspection is performed, the MCMC shall ensure that adequate test equipment is available to perform the inspection.

(g) Inspection or monitoring by the Government may be accomplished at any time convenient to the Government.

(h) All MCMC generated quality records shall be available for review by Government personnel via QMSS at all times.

(i) Discrepancies noted by any of the above personnel will be brought to the attention of the MCMC. All official notification of discrepancies shall be in writing from either the Contracting Officer, COR, or personnel duly assigned by the Contracting Officer. Any official notice of unsatisfactory performance shall be in writing from the Contracting Officer.

(j) In addition to the foregoing inspections, inspection of the methods of performing the services under this contract may be performed by the Master or Officers of a prepositioning ship to assure conformance with applicable maritime laws, rules, and regulations relating to the performance of such activities on board ships and to ensure the general safety and sea-worthiness of the ship. Any shipboard MCMC activity or condition found by the Master of a ship to be in violation of, or not in consonance with, any of the foregoing may be brought to the attention of the COR by the Master of the vessel or one of her Officers on his behalf. If the activity or condition is not discontinued or corrected as directed by the Master within such time period and in such manner as shall be acceptable to the Master, the Master may issue a written notice to the COR with a copy to the MCMC; such notice may be the basis of removal from the vessel as expeditiously as possible of the employee(s) responsible for the failure to comply with the Master's instructions.

(k) Differences in interpretation of technical issues or the inspection reports will be brought to the attention of the COR for resolution. Issues not resolved at this level will be forwarded to the Contracting Officer for final determination.

(l) The Government reserves the right to participate in MCMC ISO 9001:2015 internal audits or perform independent ISO 9001:2015 external audits.

E-2 ACCEPTANCE

Place of acceptance is Blount Island, Jacksonville, Florida unless other is designated on the individual task order. No written acceptance document is required. Certification of invoices for payment shall be considered acceptance of services and supplies delivered unless a formal notice of unsatisfactory performance has been issued in accordance with paragraph E-l, (i) above.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.246-2	Inspection of Supplies-Fixed-Price.	Aug 1996		
52.246-3	Inspection of Supplies-Cost-Reimbursement.	May 2001		
52.246-4	Inspection of Services-Fixed-Price.	Aug 1996		
52.246-5	Inspection of Services-Cost-Reimbursement.	Apr 1984		
52.246-15	Certificate of Conformance.	Apr 1984		
52.246-16	Responsibility for Supplies.	Apr 1984		

FAR Clauses Incorporated by Full Text

52.246-11 Higher-Level Contract Quality Requirement. (Dec 2014)

Higher-Level Contract Quality Requirement (Dec 2014)

(a) The Contractor shall comply with the higher-level quality standard(s) listed below.

The Contractor shall comply with the "American National Standards Institute/ International Organization for Standardization, ANSI/ISO, currently 9001:2015", and CmdO 5000.11, which is hereby incorporated into this contract by reference. The contractor shall be certified within nine months of contract award to the provisions of ANSI/ISO, 9001:2015 by a Government approved third party certification organization. Additionally, the contractor shall employ quality control measures as described in ANSI/ASQ Z1.4-2003, ANSI/ASQ Z1.9-2003 and the Lean Six Sigma principles, concepts, and practices recognized as standards by the American Society of Quality.

(b) The Contractor shall include applicable requirements of the higher-level quality standard(s) listed in paragraph (a) of this clause and the requirement to flow down such standards, as applicable, to lower-tier subcontracts, in-

(1) Any subcontract for critical and complex items (see 46.203(b) and (c)); or

(2) When the technical requirements of a subcontract require-

(i) Control of such things as design, work operations, in-process control, testing, and inspection; or

(ii) Attention to such factors as organization, planning, work instructions, documentation control, and advanced metrology.

(End of clause)

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Destination Instructions: See Section E for more details. DoDAAC: M38450 CountryCode: USA COMMANDING OFFICER BLOUNT ISLAND COMMAND(ORGANIC), 5880 CHANNEL VIEW BLDG 100 JACKSONVILLE, FL 32226-3404 UNITED STATES TBD, TBD Email: TBD Telephone: TBD

0002	Inspection and Acceptance Location Both Destination Instructions: See Section E for more details. DoDAAC: M38450 CountryCode: USA COMMANDING OFFICER BLOUNT ISLAND COMMAND(ORGANIC), 5880 CHANNEL VIEW BLDG 100 JACKSONVILLE, FL 32226-3404 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
0003	Inspection and Acceptance Location Both Destination Instructions: See Section E for more details. DoDAAC: M38450 CountryCode: USA COMMANDING OFFICER BLOUNT ISLAND COMMAND(ORGANIC), 5880 CHANNEL VIEW BLDG 100 JACKSONVILLE, FL 32226-3404 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
0004	Inspection and Acceptance Location Both Destination Instructions: See Section E for more details. DoDAAC: M38450 CountryCode: USA COMMANDING OFFICER BLOUNT ISLAND COMMAND(ORGANIC), 5880 CHANNEL VIEW BLDG 100 JACKSONVILLE, FL 32226-3404 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
0005	Inspection and Acceptance Location Both Destination Instructions: See Section E for more details. DoDAAC: M38450 CountryCode: USA COMMANDING OFFICER BLOUNT ISLAND COMMAND(ORGANIC), 5880 CHANNEL VIEW BLDG 100 JACKSONVILLE, FL 32226-3404 UNITED STATES

	TBD, TBD Email: TBD Telephone: TBD
0006	Inspection and Acceptance Location Both Destination Instructions: See Section E for more details. DoDAAC: M38450 CountryCode: USA COMMANDING OFFICER BLOUNT ISLAND COMMAND(ORGANIC), 5880 CHANNEL VIEW BLDG 100 JACKSONVILLE, FL 32226-3404 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
0007	Inspection and Acceptance Location Both Destination Instructions: See Section E for more details. DoDAAC: M38450 CountryCode: USA COMMANDING OFFICER BLOUNT ISLAND COMMAND(ORGANIC), 5880 CHANNEL VIEW BLDG 100 JACKSONVILLE, FL 32226-3404 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
0008	Inspection and Acceptance Location Both Destination Instructions: See Section E for more details. DoDAAC: M38450 CountryCode: USA COMMANDING OFFICER BLOUNT ISLAND COMMAND(ORGANIC), 5880 CHANNEL VIEW BLDG 100 JACKSONVILLE, FL 32226-3404 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
Option Line Item 1001	Inspection and Acceptance Location Both Destination Instructions: See Section E for more details. DoDAAC: M38450 CountryCode: USA

	COMMANDING OFFICER BLOUNT ISLAND COMMAND(ORGANIC), 5880 CHANNEL VIEW BLDG 100 JACKSONVILLE, FL 32226-3404 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
Option Line Item 1002	Inspection and Acceptance Location Both Destination Instructions: See Section E for more details. DoDAAC: M38450 CountryCode: USA COMMANDING OFFICER BLOUNT ISLAND COMMAND(ORGANIC), 5880 CHANNEL VIEW BLDG 100 JACKSONVILLE, FL 32226-3404 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
Option Line Item 1003	Inspection and Acceptance Location Both Destination Instructions: See Section E for more details. DoDAAC: M38450 CountryCode: USA COMMANDING OFFICER BLOUNT ISLAND COMMAND(ORGANIC), 5880 CHANNEL VIEW BLDG 100 JACKSONVILLE, FL 32226-3404 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
Option Line Item 1004	Inspection and Acceptance Location Both Destination Instructions: See Section E for more details. DoDAAC: M38450 CountryCode: USA COMMANDING OFFICER BLOUNT ISLAND COMMAND(ORGANIC), 5880 CHANNEL VIEW BLDG 100 JACKSONVILLE, FL 32226-3404 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
Option Line Item 1005	Inspection and Acceptance Location Both Destination Instructions: See Section E for more details.

	DoDAAC: M38450 CountryCode: USA COMMANDING OFFICER BLOUNT ISLAND COMMAND(ORGANIC), 5880 CHANNEL VIEW BLDG 100 JACKSONVILLE, FL 32226-3404 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
Option Line Item 1006	Inspection and Acceptance Location Both Destination Instructions: See Section E for more details. DoDAAC: M38450 CountryCode: USA COMMANDING OFFICER BLOUNT ISLAND COMMAND(ORGANIC), 5880 CHANNEL VIEW BLDG 100 JACKSONVILLE, FL 32226-3404 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
Option Line Item 1007	Inspection and Acceptance Location Both Destination Instructions: See Section E for more details. DoDAAC: M38450 CountryCode: USA COMMANDING OFFICER BLOUNT ISLAND COMMAND(ORGANIC), 5880 CHANNEL VIEW BLDG 100 JACKSONVILLE, FL 32226-3404 UNITED STATES TBD, TBD Email: TBD Telephone: TBD

Section F - Deliveries or Performance

F-1 PERFORMANCE PERIOD

PERIOD OF PERFORMANCE. The Government may issue task orders against this contract from the date of award for a period of five years, and an additional five years upon exercising Option I. Refer to Section H-8 Ordering of Services for additional guidance related to task order issuance.

Contractual Coverage	Period of Performance
Transition Phase-In/Phase-Out	Upon Contract Award for a period of 90 days
Basic Ordering Period	Contract Award date through five year period
Option Ordering Period I	Five year Optional Ordering Period

Each task order will cite the period of performance.

Line Item	Delivery Schedule	Quantity	Address and POC
0001	Period of Performance From 04 Jun 2027 To 03 Jun 2032	60 Months	
0002	Period of Performance From 04 Jun 2027 To 03 Jun 2032	5,744,860 Hours	
0003	Period of Performance From 04 Jun 2027 To 03 Jun 2032	2,829,845 Hours	
0004	Period of Performance From 04 Jun 2027 To 03 Jun 2032	9,802,285 Lot	
0005	Period of Performance From 04 Jun 2027 To 03 Jun 2032	27,281,013 Lot	
0006	Period of Performance From 04 Jun 2027 To 03 Jun 2032	341,304,476 Lot	

0007	Period of Performance From 04 Jun 2027 To 03 Jun 2032	1 Unit	
0008	Period of Performance From 04 Jun 2027 To 03 Sep 2027	3 Months	
Option Line Item 1001	Period of Performance From 04 Jun 2032 To 03 Jun 2037	60 Months	
Option Line Item 1002	Period of Performance From 04 Jun 2032 To 03 Jun 2037	5,744,860 Hours	
Option Line Item 1003	Period of Performance From 04 Jun 2032 To 03 Jun 2037	2,829,845 Hours	
Option Line Item 1004	Period of Performance From 04 Jun 2032 To 03 Jun 2037	11,308,480 Lot	
Option Line Item 1005	Period of Performance From 04 Jun 2032 To 03 Jun 2037	39,753,912 Lot	
Option Line Item 1006	Period of Performance From 04 Jun 2032 To 03 Jun 2037	393,748,450 Lot	
Option Line Item 1007	Period of Performance From 04 Jun 2032 To 03 Jun 2037	1 Unit	

FAR Clauses Incorporated by Reference

Number	**Title**	**Effective Date**	**Alternate/ Deviation**	**Variation Effective Date**
52.242-15	Stop-Work Order. (Alternate I)	Aug 1989	Alternate I	Apr 1984
52.242-15	Stop-Work Order.	Aug 1989		

DFARS Clauses Incorporated by Reference

Variation

Number	Title	Effective Date	Alternate/ Deviation	Effective Date
252.223-7003	Change in Place of Performance--Ammunition and Explosives.	Dec 1991		

Section G - Contract Administration Data

G-1 CONTRACTING OFFICER AND ADMINISTRATIVE AUTHORITY

(a) After award, this contract will be administered by the office listed below.

PROCURING CONTRACTING OFFICER

CONTRACTS OFFICE (CODE 902)

5880 CHANNEL VIEW BOULEVARD

BLOUNT ISLAND COMMAND

JACKSONVILLE, FL 32226-3404

(b) The Contracting Officer (KO) is the only person authorized to approve changes or modify any of the requirements under this contract, and, notwithstanding any provisions contained elsewhere in this contract, this authority remains with the KO. In the event the MCMC effects any change at the direction of any person other than the KO, the change will be at the MCMC's risk, without authority, and no adjustment will be made in the contract amount to cover any increase in costs incurred because of this change.

(c) Contractual problems of any nature which occur during the life of the contract must be handled in conformance with public laws and regulations and must be referred to the KO for resolution. The MCMC is directed to bring all contractual problems to the immediate attention of the KO. Any request for contract changes or modification will also be referred to the KO.

(d) The KO will appoint a Contracting Officer's Representative (COR) and Quality Assurance (QA) personnel to inspect and accept the MCMC's performance and assist the KO to administer this contract.

(e) All correspondence concerning this contract, such as requests for information, explanation of terms, and contract interpretation shall be submitted to the KO.

G-2 CONTRACTING OFFICER'S REPRESENTATIVE (COR)

(a) The COR for this contract will be assigned at the Task Order level. To assist with the inspection and monitoring of the services, specific technical personnel report directly to the COR. These individuals are:

(1) Contracting Officer Technical Representative (COTR) - Technical representatives of the COR used to perform specific technical or administrative functions (i.e. Shipboard, Navy, Information Systems, Installation Services). The COTR ensures that the contractor delivers the expected results on time and within scope while maintaining quality standards and technical accuracy. However, they do not have authority to make binding decisions or modify contract terms themselves--that's the role of the KO.

(2) COTRs responsibilities are limited to the following:

a. Contract Oversight: The COTR monitors the contractor's performance to ensure compliance with the contract's terms, conditions, and specifications. They oversee project timelines, deliverables, and quality.

b. Technical Guidance: They provide technical expertise and guidance to contractors to ensure that work is done in accordance with the contract's technical requirements. This may involve clarifying technical issues or offering solutions to any problems that arise.

c. Liaison Role: COTRs serve as a communication link between the contractor and the KO and COR. They ensure that both parties understand each other's needs and expectations, and that the contractor's performance aligns with the contract's objectives.

d. Performance Monitoring and Reporting: COTRs assess the contractor's performance, track milestones, and document progress. They typically report any issues, delays, or deviations from the contract to the KO and COR, and CORs must follow CmdO 4200.2 when carrying out these responsibilities.

e. Approval of Deliverables: They are responsible for reviewing and approving or rejecting the contractor's deliverables (such as reports, products, or services) based on the terms of the contract.

f. Quality Assurance: The COTR helps ensure that the contractor meets required standards of quality and works within the scope of the contract. If the contractor fails to meet these standards, the COTR may take corrective action.

g. Issue Resolution: If technical problems arise or the contractor faces challenges, the COTR works with both the contractor and the KO to find appropriate solutions or to adjust timelines.

h. Compliance and Documentation: The COTR ensures that all work is performed in compliance with relevant regulations, standards, and contract terms. They also document decisions, approvals, and communications for accountability and future reference.

i. Training and Guidance: In some cases, a COTR may provide training to the contractor or government personnel regarding specific technical requirements or procedures.

(3) Quality Assurance Representatives (QAR) - QA personnel are appointed from the functional area(s) to assist the COR. Their duties will include quality assurance, inspection, surveillance, and certification of MCMC performance. QA authority will not include directing or authorizing the MCMC to change the scope or terms of the contract. The QAR personnel will be monitored by the COR.

(b) The authority of the COR is confined to inspection of services as specified herein. Only the KO has authority to make changes to the terms and conditions of this contract, including deviation from specification requirements. In the event the MCMC does deviate from the terms of the contract, or perform unauthorized work, such shall be at the risk of, and any costs associated thereto, shall be borne by the MCMC.

(c) A copy of the COR's and COTRs appointment letter will be furnished to the MCMC. The KO will notify the MCMC in writing of the names, duties, and limitations of QAR personnel.

(d) Letters of Caution. As part of routine contract administration, the COR and COTRs may issue Letters of Caution to document performance concerns, quality issues, or other matters requiring contractor attention. A Letter of Caution is an administrative communication intended to notify the contractor of observed issues and request corrective action. It does not constitute a formal contractual remedy, does not direct changes to the scope of work, and does not authorize the contractor to perform work outside the terms and conditions of the contract. Only the Contracting Officer may take formal contractual action or modify the contract.

G-3 INVOICING, VOUCHERING, AND PAYMENT INSTRUCTIONS

(a) Invoices/vouchers will be submitted monthly. The MCMC shall utilize Wide Area Workflow when invoicing. Certification of the invoice for payment will not occur if detailed backup in the prescribed format, or if the information contained therein is determined to be inaccurate or incomplete.

(b) Invoice Content. Separate invoices shall be submitted for each Task Order which references Contract Line-Item Number (CLIN)/SubCLIN (SLIN) and the appropriate Accounting and Appropriation data shall be identified. Documentation shall include:

(1) Labor: The detailed backup for each invoice shall cite the hours by named personnel by Task Order and CLIN/SLIN. The work accomplished shall be coded as to differentiate between on-site work, augmentation work (straight time and overtime), and shipboard work. The detailed backup for each invoice which includes labor charges shall cite the hours by named personnel by ship and port area maintenance sites by CLIN/SLIN and Task Order, and data/codes which indicate the following information accurately and completely to the satisfaction of the KO:

(a) Accounting Number (e.g. department)

(b) Labor Category (as described in the applicable AWD or CBA) and regular hourly salary and number of hours associated with the regular hourly salary

(c) Overtime Pay shall be designated by separate line which indicates the number of hours and type of overtime (time and a half or double time)

(d) Period the charges were incurred with approval number

(e) Subtotal (of hours for each employee)

(f) Dollars (wages for each employee, separated for regular hours and overtime types)

(g) Total Labor (hours, dollars and add-ons); to include associated indirect rates and

(h) Total number of employees

(2) Contractor Acquired Property (CAP)/Subcontracts: The detailed backup for each invoice for CAP by CLIN/SLIN shall indicate the following information accurately and completely to the satisfaction of the KO:

(a) Accounting Number (e.g. department; this and other data should match those used for labor, e.g., Program Management, so all costs for that area may be readily identified.)

(b) Vendor

(c) Task Order Number

(d) Date

(e) Dollar Amount

(f) Approval Number (assigned by PCO prior to purchase)

(g) Description of item/service purchased (e.g. toolbox, computer repair, etc.)

(3) Travel: The detailed backup for each invoice which includes expenditures for travel should include a notation that explains the reason for the travel, the employee's name, the dates, the appropriate Travel Request Number approved by the KO and the amount. See Section H-10 for details.

(c) All invoices shall be paid subject to adjustments which may be required because of audit review. Overtime, Travel, Materials/ODC/CAP shall strictly be reimbursement of actual cost and shall not bear fee. See Section H-8.8 for details.

G-4 ACCOUNTING AND APPROPRIATION DATA

Task orders issued under this contract may be fully funded or incrementally funded. Each task order will state the applicable clauses given the funding method determined by the KO. Accounting and appropriation data will be set forth in individual task orders issued under this contract. The payment office will be identified by each task order.

The amount shown on each task order will be considered applicable for the purpose of the Limitation of Funds and Limitation of Cost Clauses in Section I. The MCMC shall advise the KO upon reaching 75% of the stated amount within the 60-day notification period.

G-5 SEGREGATION OF COSTS BY EQUIPMENT OWNERSHIP GROUPS

The MPS assets requiring maintenance/support services can be subdivided into equipment ownership groups as detailed in the individual ship plans and Production Planning Considerations. For the purpose of this requirement, an equipment ownership group identifies the service, command or task organization responsible for funding a portion or portions of the contract effort. As a result of multiple funding activities, the contract includes CLINs and their appropriate Accounting Classification Reference Numbers (ACRNs), the equipment ownership group, and requisite accounting and appropriation citations to which costs will be charged. The MCMC's accounting procedures and practices must be sufficient to reflect accurately all direct and indirect costs incurred by equipment ownership group. The MCMC must indicate costs incurred by charging for these equipment ownership groups. Cost by equipment ownership group will be reported monthly. The structure is set up to allow specific funding relating to the following "Equipment Ownership Groups" efforts:

Marine Corps

Navy Support Element

Naval Construction Element

Naval Beach Group

Marine Corps Prepositioning Program - Norway

Marine Corps Prepositioning Program - Philippines

Any Additional Marine Corps Prepositioning Program- Ashore Sites

G-6 CONTRACT COST AND STATUS REPORT

The MCMC shall provide a timely and accurate electronic Contract Cost and Status Report (CCSR) for each task order in the following format. The CCSR shall be submitted monthly, concurrent with invoice submission, commencing 30 days after contract award. The CCSR shall include, but not limited to, the following information:

(1) MCMC's name and address

(2) Contract number and Task Order number

(3) Date of report

(4) Title

(5) Period covered by the report

(6) Contract value by ACRN

(7) Funded value by ACRN

(8) Actual cost of work performed by CLIN/SLIN

(9) Percentage of funded

(10) Funding balance

(11) Estimate at completion (EAC) or projected costs at completion of the Task Order; EAC shall include a breakdown of anticipated labor, materials, other direct costs associated with task order completion

(12) Delta committed to invoiced

(13) Delta committed to EAC or projected

(14) Narrative explanation by ACRN of any anticipated variances from CLIN values.

(15) Costs incurred by equipment ownership group for the reporting period, total contractual expenditures by equipment ownership group as of reporting date, and projected total contract costs by equipment ownership group

(16) Name of person(s) preparing report, including telephone number

G-7 INDIRECT COST RATES

The Government will not be obligated to reimburse indirect costs in excess of the indirect rate ceilings established in Contract Attachment J-1. These ceilings apply to the contractor and all subcontractors, and shall govern the indirect rates applicable to each task order issued under this IDIQ.

DFARS Clauses Incorporated by Reference

Number	**Title**	**Effective Date**	**Alternate/ Deviation**	**Variation Effective Date**
252.201-7000	Contracting Officer's Representative.	Dec 1991		
252.204-7006	Billing Instructions-Cost Vouchers	May 2023		
252.217-7007	Payments.	Dec 1991		
252.217-7008	Bonds.	Dec 1991		
252.231-7000	Supplemental Cost Principles	Dec 1991		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		
252.232-7008	Assignment of Claims (Overseas).	Jun 1997		

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions. (Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at https://www.sam.gov; and

(2) Be registered to use WAWF at https://wawf.eb.mil/ following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at https://wawf.eb.mil/

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

____

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

____

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

Field Name in WAWF	*Data to be entered in WAWF*
Pay Official DoDAAC	____
Issue By DoDAAC	____
Admin DoDAAC	____
Inspect By DoDAAC	____
Ship To Code	____
Ship From Code	____

Mark For Code	____
Service Approver (DoDAAC)	____
Service Acceptor (DoDAAC)	____
Accept at Other DoDAAC	____
LPO DoDAAC	____
DCAA Auditor DoDAAC	____
Other DoDAAC(s)	____

*(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")*

*(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)*

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

____

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Section H - Special Contract Requirements

H-1 STANDARD WORKDAY

A standard workday is defined as any eight hours of productive labor during the core business hours of 5 a.m. through 5 p.m., Monday through Friday. Performance may be required beyond the normal standard workday and if so will be specified within the applicable task order. Requests by the MCMC to alter the Standard Workday must be approved by the Government prior to implementation.

H-2 HOLIDAYS

a) Government personnel observe the following holidays by designated location:

<u>United States Holidays</u>

New Year's Day

Birthday of Martin Luther King, Jr.

Washington's Birthday

Memorial Day

Independence Day

Juneteenth

Labor Day

Columbus Day

Veterans Day

Thanksgiving Day

Christmas Day

<u>Norway Holidays</u>

Christmas Eve

Christmas Day

New Years Day

Maundy Thursday

Good Friday

Easter Monday

Labour Day

Constitution Day

Ascension Day

Whit Monday

<u>Philippines Holidays</u>

Christmas Eve

Christmas Day

Ninoy Aquino Day

National Heroes Day

All Saints Day Eve

All Saints Day

Bonoifacio Day

Feast of the Immaculate Conception of Mary

Rizal Day

New Years Day

Last Day of the Year

Chinese New Year

Arawng Kagitingan

Maundy Thursday

Good Friday

Black Saturday

Labour Day

Independence Day

b) In addition to the days designated as holidays, the Government observes the following days:
Any other day designated by Federal Statute
Any other day designated by Executive Order
Any other day designated by the President's Proclamation

c) It is understood and agreed between the Government and the MCMC that observance of such days by Government personnel shall not otherwise be a reason for an additional period of performance, or entitlement of compensation except as set forth within the contract. In the event the MCMC's personnel are required to work during the holiday, they may be reimbursed by the MCMC, however, no form of holiday or other premium compensation will be reimbursed either as a direct or indirect cost, other than their normal compensation for the time worked; the MCMC shall employ flexibly scheduled hours to avoid overtime.

d) When the Government grants excused absence to its employees, assigned MCMC personnel may also be dismissed at the discretion of the MCMC; the MCMC agrees to continue to provide sufficient personnel to perform critical tasks already in operation or scheduled, and shall be guided by the instructions issued by the KO or the COR.

H-3 DESTRUCTIVE WEATHER

(a) In such cases where hurricanes/foul weather threatens MCMC operations, the following applies:

(1) Blount Island Command (BlCmd) will determine if the facility will be closed for hurricanes/foul weather.

(2) When such a determination is made, all MCMC employees will promptly depart the facility, with specific exceptions such as those personnel required to prepare the facility for foul weather as determined by BlCmd.

H-4 PPE and administrative / clerical equipment and supplies.

The MCMC shall provide all Personal Protective Equipment (PPE). PPE, administrative/clerical equipment and supplies required for this effort will be included on appropriate ODC CLINs.

H-5 CONDUCT OF MCMC PERSONNEL

(a) For the reasons set forth below, the KO may direct the MCMC to remove any employee from performance under this contract:

(1) The employee is found to be a security risk.

(2) The employee is found to have violated orders of the CO, ship's Master, or ship's regulations.

(3) The employee is found in violation of federal or state laws.

(4) The employee is found in violation of local laws in a foreign country.

(b) In the event it becomes necessary to remove any employee for any of the above reasons, the MCMC shall bear all costs associated with replacing the employee.

H-6 CONTRACTOR IDENTIFICATION

Contractor personnel performing services on Department of Defense (DoD) installations or other Government facilities shall ensure they are readily identifiable as contractor employees. Contractor personnel shall identify themselves as contractor personnel at the onset of every off-site meeting, conference, or any other gathering attended in support of this contract.

The MCMC shall provide distinctive clothing with company name to "shop/ labor" type personnel, a shirt, or jacket as a minimum. The contractor shall have the option to supply their office personnel with either the distinctive clothing or a badge with company name which shall be worn in a conspicuous place on the body. These shall be worn at all times in performance of this contract to readily identify the person as a contractor employee.

H-7 RESTRICTION ON EMPLOYMENT OF DEPARTMENT OF DEFENSE (DoD) PERSONNEL

In performing this contract, the MCMC shall not use or employ (on either a full or part-time basis) any active duty DoD personnel (civilian or military) without the prior approval of the KO. Such approval may be given only in circumstances where it is clear that no laws or DoD, or service instruction, regulations, or policies might possibly be contravened and no appearance of a conflict of interest will result.

H-8 ORDERING OF SERVICES

This is a single award hybrid IDIQ contract with the flexibility to award task orders on a CPFF, FFP, and Cost Reimbursable (for Overtime/Materials /Travel) basis as defined by the respective CLINs against which Task Orders will be issued.

a) The MCMC shall not proceed with any work under a proposed task order unless authorized in writing by the cognizant KO.

b) A task order will indicate an effective date, which shall be considered the start date for the determination of due dates for deliverables is concerned.

c) The period of performance will be specified in individual task orders. In the event that a task order requires performance that extends beyond the current contract term, the MCMC shall be required to complete performance within the period set forth in the task order, provided such period does not extend beyond one year after expiration of the contract.

d) Funds for services to be provided under this contract will be obligated by each individual task order. Task Orders issued using the CPFF CLINs will likely be incrementally funded.

H-8.1 Task Order Content

a) Each task order issued under this contract will include the following information as applicable:

1) Contract number and task order number

2) Pay Office

3) Date of the order

4) Description of the work to be performed

5) The work schedule, period of performance or required completion date;

6) Place of delivery or performance

7) CLIN/SLIN number(s) and description, quantity, unit price and extended total

8) The cost plus any applicable fees (for cost type CLINs)

9) Accounting and appropriation data.

10) Any other pertinent information as appropriate (e.g., task order COR/COTR designation, etc.)

b) Firm Fixed Price (FFP) Program Management services will be consolidated on one overarching Task Order per period of performance and will not be apportioned to the associated CPFF CLINs. The price for CLIN 0001 and 1001 are what the Government expects to issue annually.

H-8.2 Ordering Process:

After contract award, individual task orders will be awarded. The ordering procedures below are provided for informational purposes only. The actual procedures (including response times) may vary according to individual order circumstances. It is anticipated that each task order will be placed in accordance with the following procedures, according to which CLIN is being ordered:

(a) *CLIN X008 (Transition CLIN)* - The first task order issued under this IDIQ will be for the FFP amount on CLIN 0008. This task order will be issued unilaterally.

(b) *CLIN X001* - The Government plans to issue one (1) task order per year against CLIN X001, ordering 12 months of FFP program management support. Task orders issued will utilize the FFP unit pricing included in Attachment #J-7 'CLIN X001' tab for the applicable year in which the task order is issued. As the requirement is already defined and priced at the contract level, these task orders will be issued unilaterally to the Contractor.

(c) CLINs X002, X003 - Upon identification of a requirement, the cognizant technical office will develop an estimate for the number of total hours needed to perform the required work. A pre-task order conference will be held with the Contractor to go over the scope of work/requirements, and agree upon a labor mix breakdown to perform the work. The estimated labor rates in Attachment J-7 will be used depending on the year of the Ordering Period the task order is issued. The task order will utilize these estimated labor rates for the purpose of obligating funds and establishing a ceiling value on each task order that the contractor may not exceed without the approval of the Contracting Officer. The Government plans to issue these task orders unilaterally to the Contractor.

(d) CLIN X004 - When a requirement is identified, the cognizant technical office shall prepare a written description of the work to be performed. A pre-task order conference will be conducted with the Contractor to review the requirement, validate the scope, confirm required tasks, and establish an appropriate labor mix. The Contractor will be requested to propose a cost proposal for the agreed upon work. This indirect rate ceilings established in Attachment J-1 shall apply to this CLIN. For proposed labor, the Contractor will propose the labor categories, hours and rates to be used. The fee ceiling identified in Attachment J-7 shall be applied based on the applicable Ordering Period year in which the task order is issued. The Government will evaluate the cost proposal and may request additional cost /price data as needed. Each task order will incorporate the agreed-upon labor mix and rates to establish the total estimated cost and obligate funds. The resultant task order ceiling represents the maximum amount the Contractor is authorized to incur. The Contractor shall not exceed this ceiling without prior written authorization from the Contracting Officer. The Government plans to issue task orders on a bilateral basis. CLINs X005 (Travel), X006 (ODCs) - Typically, a separate task order will not be issued for these CLINs, but rather fundings for these CLINs would be included on a task order issued against CLINs X002, X003, and/or X004. The amount funded for these CLINs on task orders will be agreed upon in the pre-task order conference.

The Government will evaluate proposed amounts and conduct negotiations if determined necessary. A task order award will be executed by the Contracting Officer and sent to the contractor via e-mail as notice to begin work. The contractor is cautioned that no work is to be started prior to receipt of a properly signed and executed task order award or other authorization by the Contracting Officer. Orders may be issued orally by the Contracting Officer; however, orally issued orders will be followed up with a written order within seven (7) business days.

The Contractor is responsible for immediately notifying the Contracting Officer of any difficulties in performing in accordance with the terms of the order.

H-8.3 Reserved

H-8.4 Release of Claims

After completing each task order, and prior to submission of final invoice, the MCMC shall furnish to the KO, a release of claims against any outstanding balances or claims arising out of the task order. These are claims other than those specifically resulting from work that is reasonably anticipated by the MCMC when originally estimating the order.

H-8.5 Task Order Close-Out

It is the intention of the KO to perform closeout procedures on an individual task order basis. The MCMC agrees to perform those internal functions necessary to support this process in a timely manner. Task order closeout will occur as soon as possible after task order performance has concluded.

H-8.6 Reserved.

H-8.7 Indirect Rate Change Notification

The Government is not obligated to reimburse indirect costs in excess of the indirect rate ceilings established in Contract Attachment J-1. Accordingly, indirect rates shall not be increased above the ceiling rates identified at contract award.

H-8.8 ODC Cost CLIN Ordering Instructions

The contractor is authorized to incur Other Direct Costs necessary for performance of this contract. ODCs shall be reimbursed at actual cost. Indirect burdens (e.g., G&A, material handling) are permitted only at the rates proposed and incorporated into the contract. No fee shall be applied to ODCs. The contractor shall obtain Government approval for any individual ODC purchase exceeding the threshold identified in Section G. All ODCs must be supported by vendor invoices or receipts, and they must meet the federal cost principle standards of being allowable, allocable, and reasonable to the contract.

H-8.9 Allowable Costs

Material and Travel will be reimbursed in accordance with (IAW) FAR subsections 31.205-26 and 31.205-46 and Section H-10 of the contract. Overtime premiums authorized and approved by the Government will be reimbursed IAW Section G-3 and FAR 52.222-2, and overtime funding ceilings shall be established within each individual task order.

H-8.10 Incorporation of Proposal Elements

The Government intends to incorporate RFP Attachment J-7, Cost Model Workbook, into the resultant contract. The Government may also incorporate, by reference or full text, specific portions of the successful Offeror's proposal as revised and accepted during negotiations and final proposal revision. Any technical features, capabilities, or performance characteristics proposed by the Contractor that exceed the requirements of the Statement of Work (SOW), and that are accepted by the Government, shall become binding requirements of the contract and shall be performed at no additional cost to the Government unless otherwise negotiated.

H-9 CONTRACTOR ACQUIRED PROPERTY (CAP)/SUBCONTRACTS

(a) The MCMC shall furnish supplies/services required for performance of the maintenance effort. The MCMC is required to comply with FAR 52.208-9, Contractor Use of Mandatory Sources of Supply or Services and FAR 52.251-1, Government Supply Sources. When the supplies are not available through the Government supply system or services not available through the mandatory sources, the MCMC will request authorization to purchase/subcontract in accordance with FAR 52.244-2 Subcontracts as incorporated into this contract. The MCMC shall not apply fee to materials acquired through the Government supply system(s) or services not available through the mandatory sources and CAP.

(b) All CAP for which the MCMC is subsequently reimbursed is Organic Government Property (OGP) for which the Government holds title.

(c) The MCMC shall provide an original copy of all Lease Agreement(s), upon contract award and subsequent lease renewal, to the government to substantiate reimbursement.

H-10 TRAVEL PROCEDURES

(a) Travel - The MCMC is responsible for making all necessary travel arrangements for employees. MCMC travel associated with FFP CLINs do not require Government approval. All employee travel in support of FFP CLINs, to include vacations and any allowances/compensation associated with OCONUS support (except as noted in paragraphs (c)(2) and (c)(3) below), are included in the respective CLIN price and therefore do not require Government approval. All travel associated with required employee training (except New Equipment Training (NET)) shall not be a direct charge under this contract: the MCMC shall internally manage/coordinate and process all training and associated travel to meet the requirements of this contract. All CPFF travel requirements shall be pre-approved by the Government, to include travel itinerary, duration, modes of transportation, dates and estimated costs. Costs for travel shall be billed in accordance with the regulatory implementation of Public Law 99-234 and FAR 31.205-46 Travel Costs (subject to local policy and procedures). In the case of CPFF OCONUS personnel, a consolidated Travel Report shall be submitted on a monthly basis to the KO for the approval of all planned CPFF OCONUS personnel travel. The MCMC shall be reimbursed for CPFF travel expenses incurred as follows:

(1) The MCMC shall not be reimbursed for lodging or subsistence for shipboard personnel while in Port during the MMC.

(2) Travel expenses associated with the coordination of services performed at other prime contractor or subcontractor facilities shall not be reimbursable under this contract unless specifically approved, in writing, by the KO.

(3) The KO will utilize the Joint Travel Regulations (JTR) and the applicable GSA or Department of State per diem and lodging rates to evaluate MCMC travel requests prior to approval, ensuring the estimated travel costs are reasonable. The MCMC shall, in performance of necessary travel, utilize the lowest cost mode commensurate with the requirements of the mission and in accordance with good traffic management principles. When it is necessary to use air or rail travel, the MCMC shall use coach, tourist class, or similar accommodations to the extent consistent with the successful and economical accomplishment of the mission for which the travel is being performed. Automobile rental shall be reimbursed at the cost for a compact economy model. Exceptions to the foregoing require KO approval.

(4) Travel requests must be submitted and approved by the Government prior to the assignment of irrevocable/nonrefundable reservations or other expenditure of funds. Travel requests must be submitted to the KO. The KO endorsement of approved requests will include an approval number (e. g., Task Order#-TO0001) which shall be cited on the invoice for which the MCMC is reimbursed. MCMC travel associated with corporate events /requirements/training shall not be approved or directly reimbursed. In the case of OCONUS personnel, a consolidated Travel Report shall be submitted on a monthly basis to the KO for the approval of all planned OCONUS personnel travel.

(5) The MCMC's invoices shall include evidence such as receipts substantiating actual costs incurred for authorized travel. In no event will such payments exceed rates of common carriers.

(6) No markups (indirects) or fee is allowed on travel.

(c) Travel/Per Diem for OCONUS Personnel (CPFF CLINs only) - The Government will pay the costs of travel and will pay per diem in connection with travel as set forth below:

(1) The Government will not reimburse travel expenses associated with involuntary removal of personnel, for cause, from OCONUS duty by the Government or the MCMC. In addition, the Government will not reimburse travel expenses associated with voluntary separation from duty.

(2) The Government will pay one way costs of travel to the nearest hospital in the event it is required for treatment of an accident or illness, or if treatment cannot be furnished at the nearest hospital, the Government will pay one way costs of travel to the employee's residence. Upon release from either a foreign or CONUS hospital, the Government will pay a one way trip for either return to the ship or travel to the employee's residence.

(3) In the event of emergencies verified by the Red Cross, the Government will pay the costs of travel to and from the employee's residence if the costs are equal to or less than the transportation cost to and from the nearest CONUS port for employees assigned aboard a ship. No per diem will be paid.

(4) The Government will pay all travel and per diem costs in connection with personnel dispatched for maintenance.

(d) No reimbursement shall be allowed for travel costs incurred as a result of the following:

(1) The MCMC is expected to recoup any travel costs associated with the resignation/termination of an individual employee who does not complete his/her initial assignment. The MCMC is expected to defray the cost associated with replacement personnel travel by recouping travel costs from departing personnel. Each instance shall be reviewed separately and shall be subject to the approval of the KO to determine whether the employee early departure is a bona fide, independently verifiable circumstance, i.e., a Red Cross message. A copy of such documentation will be provided to the Government at the time of billing.

(2) The rehire of an employee who did not successfully complete their 12 month assignment, except when the resignation was the result of a bona fide, independently verifiable circumstance, i.e., a Red Cross message. Each instance shall be reviewed separately and shall be subject to the approval of the KO. A copy of such documentation will be provided to the Government at the time of billing.

(e) Per Diem. Expenses for subsistence and lodging shall be reimbursed to the MCMC only to the extent that overnight stay is necessary and authorized by the KO for performance of the services required under this contract. When authorized, per diem shall be paid by the MCMC to his employees at a per diem rate not to exceed the rate specified in the JTR. The authorized per diem rate shall be the same as the prevailing per diem locality. The rates will be based on rates contained in the JTR. Fractional parts of a day shall be payable on a prorated basis for purposes of billing for per diem charges. Fractional billing for the first and last travel day shall be on a 3/4 day basis. Reimbursement to the MCMC for per diem shall be limited to actual payments to employees for authorized per diem not to exceed the authorized per diem defined herein. The MCMC shall retain supporting documentation for per diem expenses as evidence of actual payment.

H-11 RESERVED

H-12 CONTINUOUS PROCESS IMPROVEMENT (CPI)

The MCMC is included in the scope of the Commands' ISO 9001:2015 certification and is required to align its internal processes to support the certification. Paragraph 8.5 of ISO 9001:2015 Quality Systems Standard requires the implementation of a CPI program. See Section C.2.2.1.6 of the SOW.

The MCMC is encouraged to identify and implement internal process improvements that support effective and efficient performance under this contract, consistent with ISO 9001:2015 and CmdO P5000.11. The Government may, at its discretion, consider incorporating mutually beneficial process improvements into the contract through bilateral modification, subject to applicable laws and regulations. This clause does not establish an entitlement to additional compensation, incentives, or costsharing for process improvements.

H-13 BASE SUPPORT

Base support shall be provided by the Government to the MCMC. Failure by the MCMC to comply with the requirements stated below shall release the Government, without prejudice, from its obligation to provide base support by the date(s) required.

Base support is provided for all workspaces, equipment, and facilities (services provided include facilities and equipment maintenance and repair, equipment procurement, custodial, pest control, refuse services and grounds maintenance) where this contract shall be performed. All Government property in the possession of the MCMC, provided through this contract, shall be used and managed in accordance with the Government Property clauses.

The Government shall furnish and maintain all required facilities and facility-support equipment, including building air compressors, HVAC units, and ice machines. Personnel-support equipment for on-site personnel will include but not be limited to; desks, chairs, telephones, computers, printers, and copiers needed to perform the contract.

Utility service to include water, and electricity and sewer on the Government facility will be provided at no cost to the MCMC for the duration of this contract. The MCMC shall carefully conserve utilities furnished and be required to participate in all energy conservation programs.

H-14 CONDITIONS APPLICABLE TO EMPLOYMENT IN FOREIGN PORTS

The MCMC agrees to comply with any and all applicable agreements between the United States and foreign Governments where performance may be required. When a requirement for performance in a foreign country is known, applicable agreements will be secured and furnished to the MCMC.

H-15 DIFFERENTIAL PAY

MCMC personnel who are required to work in areas that have been declared areas of imminent danger will be entitled to differential pay if DoD civilian employees are also receiving differential pay. The rate of differential pay will be equal to that paid to DoD civilian employees in the same area.

In the event the MCMC must pay additional compensation above established by Department of State standards for DoD civilians to retain or obtain personnel to perform in a theater of operations during a declared contingency, the MCMC must obtain prior approval by the KO before incurring any additional compensation costs. The MCMC shall furnish proper business case analysis to the KO to substantiate any adjustment to the contract. Any such increases shall not be subject to fee.

H-16 AVOIDANCE OF ORGANIZATIONAL CONFLICTS OF INTEREST

(a) To prevent conflicting roles that may bias the MCMC's judgment or objectivity, and to preclude the MCMC from obtaining an unfair competitive advantage in concurrent or future acquisition, the MCMC shall be restricted as set forth below and IAW BICmd Order 4200.3:

(1) In accordance with FAR Subpart 9.5, entitled "Organizational and Consultant Conflicts of Interest," the MCMC shall avoid conflicts of interest in accordance with the principles set forth in this subpart. Since the MCMC under terms of this contract will have access to Government and third part data which might place the MCMC in an OCI, the MCMC shall perform this contract as set forth below:

a. To refrain from unauthorized use or disclosure to any individual, corporation, or organization of information/data/software (referred to hereinafter as "data") proprietary to the Government or other companies coming into its possession in connection with the work under this contract for as long as it remains proprietary.

b. To establish associate MCMC relationships by executing written agreements between companies having a proprietary interest in such data. These agreements shall prescribe the scope of authorized use of such data as well as necessary safeguards against unauthorized use of disclosure. A copy of the agreement shall be furnished to the KO promptly after execution of the contract.

c. The MCMC shall formally train its employees, in regard to OCI, that they shall not divulge proprietary data obtained from other companies or from the Government to anyone except as authorized in writing. The MCMC shall require its employees to execute certificates attesting to their training and understanding of the requirements to safeguard all sensitive information. The MCMC shall warrant that its employees shall not use for their benefit any data, advice, trade secrets, confidential financial information, proprietary or restricted information (to include FOR OFFICIAL USE ONLY information) that the employee received in connection with this contract, during or subsequent to the term of his/her employment.

d. To obtain from each of its employees, whose responsibility in connection with the work under this contract may be reasonably expected to involve access to such proprietary data or classified information (Government or MCMC generated), a written agreement between the company and employee, which in substance shall provide that the employee will not, during employment by the MCMC or thereafter, disclose any such proprietary data or classified information to which the employee had access in connection with the work under this contract.

e. To refrain from utilizing proprietary data or classified Government information coming into its possession in connection with work under this contract for purposes other than those for which it has been furnished, unless specifically authorized by the organization providing such proprietary data or Government information.

f. To hold the Government harmless for any cost/loss resulting from the unauthorized use of disclosure of third party data or software by the MCMC, its employees, MCMC, or agents.

g. The MCMC shall insert language conforming to this requirement in all MCMC/partnering agreement(s).

h. If MCMC determines that it, or any potential MCMC, has an OCI, or a potential OCI, then the MCMC shall address the conflict of interest, and shall provide a mitigation plan for the conflict of interest. The mitigation plan shall relieve the OCI such that the full scope of the work can be performed by the MCMC.

(2) The KO may terminate this contract for convenience, in whole or in part, if he/she deems termination necessary, to avoid an OCI. If the MCMC was aware of a potential OCI prior to award, or discovered an actual or potential conflict after award but did not disclose it, or misrepresented relevant information to the KO, the Government any terminate the contract for default, debar the MCMC from Government contracts, or pursue other remedies as may be permitted by law or this contract.

(3) The general rules in FAR 9.505 prescribe limitations on contracting as the means of avoiding, neutralizing, or mitigating OCI that might otherwise exist in the stated situations. Illustrative examples are also provided in FAR 9.508. The two underlying principles are; preventing the existence of conflicting roles that might bias a MCMC judgment; and preventing unfair competitive advantage by a MCMC competing for award.

(4) Except with the prior written consent of the KO, the MCMC shall not compete (as a prime MCMC, main supplier, or consultant) during the period of this contract, including any extension thereof, and for one year thereafter, for the award of any contract for supplies or services which was generated under this contract. This prohibition does not prohibit the MCMC from competing on the follow-on to this contract.

(5) When a prospective MCMC has an unmitigated OCI conflict or the KO cannot determine fair pricing, the Government reserves the right to exercise some or all of the following rights:

a. Render MCMC(s) ineligible for award for the specified task order and/or future contract;

b. Require prospective MCMC(s) withdrawal from at least one team when affiliates participate on two different teams in the same acquisition;

c. When the prime offeror proposes and subcontracts with more than one prime MCMC for the same effort the Government may evaluate the prospective proposal(s) as high risk may result in non-award.

H-17 ASSOCIATE CONTRACTOR AGREEMENTS

(a) Pursuant to the responsibilities under the MCPP contract, the MCMC may find it necessary to forge relationships with companies, individuals, or organizations (hereinafter called "associate contractors" to facilitate exchanges of information necessary to the performance of this contract. Relationships shall be identified via written agreements.

(1) The agreements shall provide for the timely, free, and direct exchange of information and data necessary to the performance of this contract and shall be structured to ensure effective communication between counterparts at all levels. Agreements shall include the provision that any proprietary information furnished by an associated contractor will be protected from unauthorized release or disclosure beyond the scope of the agreements. Further, the agreements shall hold the Government harmless from liability for the unauthorized disclosure of proprietary information.

(2) The MCMC may be required to support technical interface/integration meetings with other BICmd contractors and other Government agencies.

(3) The MCMC will not be required to provide proprietary information to non-Government entities or personnel absent a non-disclosure agreement between the MCMC and those entities/personnel.

(4) BICmd contractors, other contractors, or other Government agencies are not authorized to direct the MCMC in any manner.

(b) The MCMC agrees to include language, substantially the same as identified in H-17 requirements, in all subcontracts. This agreement will not relieve the MCMC of its responsibility to manage it subcontracts effectively nor is it intended to establish privity of contract between the Government and the MCMC's subcontractors.

(c) This requirement shall not prejudice the MCMC or its subcontractors from negotiating separate organizational conflict of interest agreements with BICmd contractors. Separate agreements shall not restrict any of the Government's rights, nor shall they conflict with the Government's rights established herein.

(d) In the event of a disagreement as to what constitutes a permissible exchange of information or data under associate contractor agreements, the matter shall be brought to the attention of the KO for resolution.

H-18 PARTNERING

(a) The Government may engage in partnering. Participation in the partnering process is entirely voluntary and is based upon a mutual commitment between government and industry to work cooperatively as a Team to identify and resolve problems and facilitate contract performance. Partnering requires the parties to look beyond the strict bounds of the contract in order to formulate actions that promote their common goals and objectives. It is a relationship that is based upon open and continuous communication, mutual trust and respect, and the replacement of the "us vs. them" mentality of the past with a "win-win" philosophy for the future. Partnering also promotes synergy, creative thinking, pride in performance, and the creation of a shared vision for success.

(b) After contract award, the Government and the successful offeror will decide whether to engage in the partnering process. Accordingly, offerors shall not include any anticipated costs associated with the implementation of the partnering process in their proposed cost (e.g. cost of hiring a facilitator and conducting the partnering workshop). If the parties elect to partner, any costs associated with that process shall be identified and agreed to after contract award.

(c) The establishment of this partnering arrangement does not affect the legal responsibilities or relationship of the parties and cannot be used to alter, supplement, or deviate from the terms of the contract. Any changes to the contract must be executed in writing by the KO.

H-19 COMMON TOOLS REIMBURSEMENT

As provided in the Collective Bargaining Agreement, common tools which are defined as, "Tools available from commercial sources which are used by employees on a daily basis and are not power driven or do not require calibration," shall be furnished by the MCMC's employees except for shipboard personnel. The employees shall also be responsible for maintaining and replacing these tools. The government will utilize the following estimated tool kit costs provided below in consideration of reasonable cost reimbursement for employee purchased tools allowable and allocable to CPFF CLINs:

LABOR CATEGORY	TOOL KIT COST	REFERENCE
ELECTRONIC SYSTEMS (COMM)	$1,255	Technical Library SL-3-11477B
ELECTRO-OPTICAL	$3,584	Technical Library SL-3-09863B
GENERAL MECHANIC (CESE, ENGR, MT, ORD and WELDER)	$5,378	Technical Library SL-3-11668A
CORROSION CONTROL TECH	$ 62	Navy Tool Lists (Tab: CCT)
LIGHTERAGE FINISHER (NAVY)	$ 212	Navy Tool Lists (Tab: LF)
MARINE DIESEL MECHANIC (NAVY)	$2,700	Navy Tool Lists (Tab: MDM)
MARINE ELECTRICIAN (NAVY)	$1,700	Navy Tool Lists (Tab: ME)
SHIPFITTER QC (NAVY)	$ 290	Navy Tool Lists (Tab: SFQA)
SURVEYOR (NAVY)	$ 257	Navy Tool Lists (Tab: SRV)

H-20 PUBLICITY

Publicity releases in connection with this contract shall not be made by the MCMC unless prior written approval has been received from the KO.

H-21 CONTRACT TRANSITION - PHASE-IN/PHASE-OUT PLAN REQUIREMENTS

(a) General.

(1) RESERVED

(2) Transition Tasks: This part identifies general transition tasks applicable to the MCMC as either the successor or the incumbent. Tasks identified in this part and in the Phase-In/Phase-Out Plan are directive and are supportive of the requirements incorporated by reference of FAR 52.237-3 -- Continuity of Services, and shall be accomplished in addition to the requirements identified in the SOW.

IDIQ Contract Kickoff: Upon award of the base IDIQ contract, the contractor shall participate in a Government led contract kickoff meeting. The kickoff meeting will establish communication protocols, reporting expectations, task order initiation procedures, and any required coordination mechanisms between the Government, the incumbent (if applicable), and the successor contractor. The contractor shall provide all required attendees and materials as identified by the Government

Recurring Meetings: During the transition period and throughout performance, the contractor shall participate in recurring meetings as directed by the Government. These may include, but are not limited to, weekly transition status meetings, monthly program management reviews, and ad hoc coordination meetings as required to ensure continuity of services. The contractor shall provide updates on transition progress, risks, issues, staffing, and any actions required to maintain uninterrupted performance. The contractor shall provide meeting minutes, action items, and follow up documentation when requested by the Government.

The joint inventory referenced in the paragraphs below, is an inventory conducted with the participation of the incumbent and successor with monitoring from Government personnel. These inventories will be properly documented and copies provided to the participating parties.

(3) Transition Period: The Government will define the contract transition period. This period will not exceed 90 calendar days. All program responsibilities shall be transferred to the successor MCMC no more than 90 calendar days after transition period begins.

(4) Transition Goals:

a. The successor shall provide sufficient qualified personnel to perform SOW requirements.

b. The successor shall inventory and secure all OGP, and facilities from the incumbent as of the date the Government accepts the joint inventory.

c. The incumbent shall cooperate with the successor and Government personnel to ensure an orderly transition.

d. The incumbent shall provide the COR detailed causative research substantiating the jointly discovered inventory discrepancies.

e. All personnel associated with the MCPP requirement shall be required to possess a valid CAC. Travel associated for OCONUS personnel shall be considered.

(b) Transition Tasks:

(1) Phase-In - The successor shall:

a. Accept the incumbent's phase-in/phase-out service plan and negotiate in good faith the timing, nature, and extent of transition training.

b. Attend incumbent furnished phase-in training.

c. Assign and identify requisite Program Manager, Program Management Staff and necessary transition personnel.

d. Assemble and co-locate transition team with incumbent.

e. Assess overall equipment status and condition.

f. Observe applicable MCPP (MMC-14 operations/projection MMC-15) and establish a formal date of transfer of full operational responsibility for MMC/Afloat/OCONUS program/production/project management.

g. Provide enough personnel during hands-on training and observation period to ensure sufficient number of qualified personnel to continue MMC operations through transition of operational responsibility. The number of personnel shall be submitted to the Government for approval.

h. Have requisite qualified personnel necessary to assume MCPP operations and allow for as many incumbent personnel as practicable to remain on the job to facilitate continuity and consistency of services while transferring responsibility.

i. The successor MCMC shall assume responsibility from the incumbent MCMC for the accountability of all Government MCPP property unless the Government assigns responsibility earlier, based on the hand off of inventories from the incumbent to successor.

1. All Government property including the intermediate supply accounts shall be jointly inventoried. The results of these inventories will form the baseline for accountability of the involved assets. Results of these joint inventories shall be provided to the COR.

2. A statistical sampling with at least a 95 percent confidence level, of the intermediate supply accounts shall be conducted. This sample will reflect the percentage of accuracy of these accounts. A written plan for the procedure of this sampling shall be provided to the Government for approval no later than 20 days after contract award. The successor MCMC shall begin cyclic inventories to correct errors and reconcile the accounts. The cyclic inventory shall be in compliance with the MCO 4400.201, Intermediate Level Management Policy Manual. The resulting files will be the baseline inventory for these accounts.

(2) Phase-Out: The incumbent shall:

a. Maintain MCPP operational and maintenance responsibility in accordance with the SOW requirements until formal transfer is complete.

b. Make available to the successor no later than 30 days prior to end of the Transition Period:

1. All historical APSR records including vendor lists, GCSS-MC/NTCSS/DPAS records, and organic maintenance records, etc.

2. All equipment status records and information pertaining to equipment status, location, and condition.

3. All equipment logistic requisition status, that is, requisition numbers, estimated delivery dates, and priority requisitioned.

4. Ensure that all funded materiel requirements are on valid requisitions.

5. All information concerning known material and technical deficiencies.

6. All technical data, manuals, publications, Tables of Organization (TOs), and Tables of Equipment (TEs) and Modification Instructions (MI).

7. All information pertaining to pending and in-process modifications.

8. All records except those designated as company proprietary.

(3) Under the cognizance of Government, assist the successor MCMC in conducting the inventories described in paragraph C-1(a)(2).

(4) Allow the successor MCMC to observe and participate in hands-on operation and maintenance of transitioning equipment in support of their Phase-In requirements.

(5) That for any change in the term of the contract as a result of the Phase-In/Phase-Out requirement(s), of 10 days or more, the contract cost (including fee) shall be revised on a pro-rata basis at the price for the latest option year.

Section I - Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-3	Gratuities.	Apr 1984		
52.203-5	Covenant Against Contingent Fees.	May 2014		
52.203-6	Restrictions on Subcontractor Sales to the Government.	Jun 2020		
52.203-7	Anti-Kickback Procedures.	Jun 2020		
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity.	May 2014		
52.203-10	Price or Fee Adjustment for Illegal or Improper Activity.	May 2014		
52.203-12	Limitation on Payments to Influence Certain Federal Transactions.	Jun 2020		
52.203-13	Contractor Code of Business Ethics and Conduct.	Nov 2021		
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017		
52.204-9	Personal Identity Verification of Contractor Personnel.	Jan 2011		
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards.	Feb 2026		
52.204-13	System for Award Management-Maintenance.	Feb 2026		
52.204-19	Incorporation by Reference of Representations and Certifications.	Dec 2014		
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded.	Feb 2026		
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters.	Feb 2026		
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations.	Feb 2026		
52.210-1	Market Research. (Deviation)	Feb 2026		
52.215-2	Audit and Records-Negotiation. (Deviation)	Feb 2026		
52.215-8	Order of Precedence-Uniform Contract Format.	Feb 2026		
52.215-10	Price Reduction for Defective Certified Cost or Pricing Data.	Aug 2011		
52.215-11	Price Reduction for Defective Certified Cost or Pricing Data -- Modifications (DEVIATION 2022-O0001)	Feb 2026	Deviation 2022-O0001	Oct 2021
52.215-12	Subcontractor Certified Cost or Pricing Data (DEVIATION 2022-O0001)	Feb 2026	Deviation 2022-O0001	Oct 2021
52.215-13	Subcontractor Certified Cost or Pricing Data -- Modifications (Deviation 2022-O0001)	Feb 2026	Deviation 2022-O0001	Oct 2021
52.215-15	Pension Adjustments and Asset Reversions.	Feb 2026		
52.215-18	Reversion or Adjustment of Plans for Postretirement Benefits (PRB) Other Than Pensions.	Feb 2026		
52.215-19	Notification of Ownership Changes.	Feb 2026		
52.215-23	Limitations on Pass-Through Charges.	Feb 2026		
52.216-8	Fixed Fee.	Jun 2011		
52.219-8	Utilization of Small Business Concerns.	Feb 2026		
52.219-9	Small Business Subcontracting Plan. (Alternate II)	Feb 2026	Alternate II	Feb 2026
52.219-9	Small Business Subcontracting Plan.	Feb 2026		
52.219-16	Liquidated Damages-Subcontracting Plan.	Feb 2026		
52.222-1	Notice to the Government of Labor Disputes.	Feb 2026		
52.222-3	Convict Labor. (Deviation)	Feb 2026		
52.222-35	Equal Opportunity for Veterans.	Feb 2026		
52.222-36	Equal Opportunity for Workers with Disabilities. (Deviation)	Feb 2026		
52.222-37	Employment Reports on Veterans.	Feb 2026		
52.222-40	Notification of Employee Rights Under the National Labor Relations Act.	Feb 2026		
52.222-41	Service Contract Labor Standards.	Feb 2026		
52.222-43	Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts). (Deviation)	Feb 2026		
52.222-50	Combating Trafficking in Persons.	Feb 2026		
52.222-54	Employment Eligibility Verification.	Feb 2026		
52.222-55	Minimum Wages for Contractor Workers Under Executive Order 14026.	Feb 2026		
52.222-62	Paid Sick Leave Under Executive Order 13706.	Feb 2026		
52.223-5	Pollution Prevention and Right-to-Know Information.	May 2024		
52.223-10	Waste Reduction Program. (DEVIATION 2025-O0004)	Mar 2025	Deviation 2025-O0004	Mar 2025
52.223-23	Sustainable Products and Services. (DEVIATION 2025-O0004)	Feb 2026	Deviation 2025-O0004	Mar 2025
52.224-3	Privacy Training.	Jan 2017		
52.224-3	Privacy Training. (Alternate I)	Jan 2017	Alternate I	Jan 2017
52.226-7	Drug-Free Workplace.	May 2024		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		
52.228-5	Insurance-Work on a Government Installation.	Jan 1997		
52.228-7	Insurance-Liability to Third Persons.	Mar 1996		
52.229-12	Tax on Certain Foreign Procurements.	Feb 2021		
52.230-2	Cost Accounting Standards.	Feb 2026		
52.230-6	Administration of Cost Accounting Standards.	Feb 2026		

52.232-4	Payments under Transportation Contracts and Transportation-Related Services Contracts.	Apr 1984		
52.232-11	Extras.	Apr 1984		
52.232-17	Interest.	May 2014		
52.232-18	Availability of Funds.	Apr 1984		
52.232-20	Limitation of Cost. (Deviation 2026-O0038)	Feb 2026		
52.232-22	Limitation of Funds.	Feb 2026		
52.232-23	Assignment of Claims.	May 2014		
52.232-24	Prohibition of Assignment of Claims.	May 2014		
52.232-25	Prompt Payment. (Alternate I)	Jan 2017	Alternate I	Feb 2002
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018		
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023		
52.233-3	Protest after Award. (Alternate I)	Feb 2026	Alternate I	Feb 2026
52.233-3	Protest after Award.	Feb 2026		
52.233-4	Applicable Law for Breach of Contract Claim.	Feb 2026		
52.237-2	Protection of Government Buildings, Equipment, and Vegetation.	Apr 1984		
52.237-3	Continuity of Services.	Jan 1991		
52.240-91	Security Prohibitions and Exclusions.	Feb 2026		
52.240-93	Basic Safeguarding of Covered Contractor Information Systems.	Feb 2026		
52.242-1	Notice of Intent to Disallow Costs.	Apr 1984		
52.242-3	Penalties for Unallowable Costs.	Feb 2026		
52.242-5	Payments to Small Business Subcontractors.	Jan 2017		
52.242-13	Bankruptcy.	Jul 1995		
52.243-1	Changes-Fixed-Price. (Deviation 2026-O0038) (Alternate II)	Feb 2026	Alternate II	Feb 2026
52.243-2	Changes-Cost-Reimbursement. (Alternate II)	Feb 2026	Alternate II	Feb 2026
52.243-2	Changes-Cost-Reimbursement.	Feb 2026		
52.244-5	Competition in Subcontracting.	Aug 2024		
52.245-1	Government Property.	Sep 2021		
52.245-9	Use and Charges.	Apr 2012		
52.246-26	Reporting Nonconforming Items.	Aug 2024		
52.247-5	Familiarization with Conditions.	Apr 1984		
52.247-8	Estimated Weights or Quantities Not Guaranteed.	Apr 1984		
52.247-15	Contractor Responsibility for Loading and Unloading.	Apr 1984		
52.247-17	Charges.	Apr 1984		
52.247-18	Multiple Shipments.	Apr 1984		
52.247-68	Report of Shipment (REPSHIP).	Feb 2006		
52.249-2	Termination for Convenience of the Government (Fixed-Price).	Apr 2012		
52.249-6	Termination (Cost-Reimbursement).	May 2004		
52.249-8	Default (Fixed-Price Supply and Service).	Apr 1984		
52.249-14	Excusable Delays.	Apr 1984		
52.253-1	Computer Generated Forms.	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	**Title**	**Effective Date**	**Alternate/ Deviation**	**Variation Effective Date**
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7001	Prohibition on Persons Convicted of Fraud or Other Defense-Contract-Related Felonies.	Jan 2023		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.203-7003	Agency Office of the Inspector General.	Aug 2019		
252.204-7000	Disclosure of Information.	Oct 2016		
252.204-7003	Control of Government Personnel Work Product.	Apr 1992		
252.204-7004	Antiterrorism Awareness Training for Contractors.	Jan 2023		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting. (DEVIATION 2024-O0013 REVISION 1)	May 2024	Deviation 2024-O0013	May 2024
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.204-7023	Reporting Requirements for Contracted Services. (Alternate I)	Jul 2021	Alternate I	Jul 2021
252.205-7000	Provision of Information to Cooperative Agreement Holders.	Oct 2024		
252.209-7004	Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism.	May 2019		
252.211-7008	Use of Government-Assigned Serial Numbers.	Sep 2010		
252.215-7002	Cost Estimating System Requirements.	Jan 2025		
252.217-7004	Job Orders and Compensation.	May 2006		
252.217-7028	Over and Above Work.	Dec 1991		
252.219-7996	Small Business Subcontracting Plan (DoD Contracts). (DEVIATION 2026-O0037)	Feb 2026	Deviation 2026-O0037	Feb 2026
252.223-7002	Safety Precautions for Ammunition and Explosives.	Nov 2023		
	Prohibition on Storage, Treatment, and Disposal of Toxic or Hazardous			

252.223-7006	Materials.	Sep 2014		
252.223-7008	Prohibition of Hexavalent Chromium.	Jan 2023		
252.225-7001	Buy American and Balance of Payments Program.	Feb 2024		
252.225-7012	Preference for Certain Domestic Commodities.	Apr 2022		
252.225-7040	Contractor Personnel Supporting U.S. Armed Forces Deployed Outside the United States.	Aug 2025		
252.225-7041	Correspondence in English.	Jun 1997		
252.225-7048	Export-Controlled Items.	Jun 2013		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7058	Postaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.	Jan 2023		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023		
252.225-7993	Prohibition on Providing Funds to the Enemy. (DEVIATION 2024-O0003)	Dec 2023	Deviation 2024-O0003	Dec 2023
252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.	Jan 2023		
252.226-7003	Drug-Free Work Force.	Aug 2024		
252.227-7991	Rights in Bid or Proposal Information. (DEVIATION 2026-O0036)	Feb 2026	Deviation 2026-O0036	Feb 2026
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	Jan 2023		
252.240-7999	Prohibition on the Procurement of Covered Semiconductor Products and Services from Companies Providing Covered Semiconductor Products and Services to Huawei. (DEVIATION 2025-O0007)	Sep 2025	Deviation 2025-O0007	Sep 2025
252.243-7001	Pricing of Contract Modifications.	Dec 1991		
252.243-7002	Requests for Equitable Adjustment.	Dec 2022		
252.244-7999	Subcontracts for Commercial Products or Commercial Services. (DEVIATION 2026-O0015)	Feb 2026	Deviation 2026-O0015	Jan 2026
252.245-7003	Contractor Property Management System Administration	Jan 2025		
252.245-7005	Management and Reporting of Government Property.	Jan 2024		
252.246-7004	Safety of Facilities, Infrastructure, and Equipment for Military Operations.	Oct 2010		
252.247-7000	Hardship Conditions	Aug 2000		
252.247-7007	Liability and Insurance.	Dec 1991		
252.247-7028	Application for U.S. Government Shipping Documentation/ Instructions.	Jun 2012		

FAR Clauses Incorporated by Full Text

52.211-11 Liquidated Damages-Supplies, Services, or Research and Development. (Sep 2000)

Liquidated Damages-Supplies, Services, or Research and Development (Sept 2000)

(a) If the Contractor fails to deliver the supplies or perform the services within the time specified in this contract, the Contractor shall, in place of actual damages, pay to the Government liquidated damages of $46,000.00 (BOBO Class ship)/$84,000.00 (LMSR Class ship) per calendar day of ship departure delay. In addition, the contractor shall be assessed liquidated damages in the amount of $34.00 per Government reinspection of nonconforming services; such liquidated damages specifically excludes any newly discovered non-conformities which were not identified at initial inspection. The Government will not assess Liquidated damages for reinspection of nonconforming services which are identified by government approved joint and/or in-process inspection(s).

(b) If the Government terminates this contract in whole or in part under the Default-Fixed-Price Supply and Service clause, the Contractor is liable for liquidated damages accruing until the Government reasonably obtains delivery or performance of similar supplies or services. These liquidated damages are in addition to excess costs of repurchase under the Termination clause.

(c) The Contractor will not be charged with liquidated damages when the delay in delivery or performance is beyond the control and without the fault or negligence of the Contractor as defined in the Default-Fixed-Price Supply and Service clause in this contract.

(End of clause)

52.215-21 Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data-Modifications. (Alternate II) (Tailored) (Feb 2026) Alternate II (Oct 1997)

Alternate II (Oct 1997). As prescribed in 15.110(u)(2), add the following paragraph (c) to the basic clause:

(c) When the proposal is submitted, also submit one copy via email each to the Contracting Officer and Contract Specialist

52.216-7 Allowable Cost and Payment. (Feb 2026)

Allowable Cost and Payment (Feb 2026)

(a) Invoicing.

(1) The Government will make payments to the Contractor when requested as work progresses, but (except for small business concerns) not more often than once every 2 weeks, in amounts determined to be allowable by the Contracting Officer in accordance with Federal Acquisition Regulation (FAR) subpart 31.2 in effect on the date of this contract and the terms of this contract. The Contractor may submit to an authorized representative of the Contracting Officer, in such form and reasonable detail as the representative may require, an invoice or voucher supported by a statement of the claimed allowable cost for performing this contract.

(2) Contract financing payments are not subject to the interest penalty provisions of the Prompt Payment Act. Interim payments made prior to the final payment under the contract are contract financing payments, except interim payments if this contract contains Alternate I to the clause at 52.232-25.

(3) The designated payment office will make interim payments for contract financing on the TBD at the task order level day after the designated billing office receives a proper payment request. In the event that the Government requires an audit or other review of a specific payment request to ensure compliance with the terms and conditions of the contract, the designated payment office is not compelled to make payment by the specified due date.

(b) Reimbursing costs.

(1) For the purpose of reimbursing allowable costs (except as provided in paragraph (b)(2) of this clause, with respect to pension, deferred profit sharing, and employee stock ownership plan contributions), the term "costs" includes only-

(i) Those recorded costs that, at the time of the request for reimbursement, the Contractor has paid by cash, check, or other form of actual payment for items or services purchased directly for the contract;

(ii) When the Contractor is not delinquent in paying costs of contract performance in the ordinary course of business, costs incurred, but not necessarily paid, for-

(A) Supplies and services purchased directly for the contract and associated financing payments to subcontractors, provided payments determined due will be made-

(1) In accordance with the terms and conditions of a subcontract or invoice; and

(2) Ordinarily within 30 days of the submission of the Contractor's payment request to the Government;

(B) Materials issued from the Contractor's inventory and placed in the production process for use on the contract;

(C) Direct labor;

(D) Direct travel;

(E) Other direct in-house costs; and

(F) Properly allocable and allowable indirect costs, as shown in the records maintained by the Contractor for purposes of obtaining reimbursement under Government contracts; and

(iii) The amount of financing payments that have been paid by cash, check, or other forms of payment to subcontractors.

(2) Accrued costs of Contractor contributions under employee pension plans shall be excluded until actually paid unless-

(i) The Contractor's practice is to make contributions to the retirement fund quarterly or more frequently; and

(ii) The contribution does not remain unpaid 30 days after the end of the applicable quarter or shorter payment period (any contribution remaining unpaid shall be excluded from the Contractor's indirect costs for payment purposes).

(3) Notwithstanding the audit and adjustment of invoices or vouchers under paragraph (g) of this clause, allowable indirect costs under this contract shall be obtained by applying indirect cost rates established in accordance with paragraph (d) of this clause.

(4) Any statements in specifications or other documents incorporated in this contract by reference designating performance of services or furnishing of materials at the Contractor's expense or at no cost to the Government shall be disregarded for purposes of cost-reimbursement under this clause.

(c) *Small business concerns*. A small business concern may receive more frequent payments than every 2 weeks.

(d) Final indirect cost rates.

(1) Final annual indirect cost rates and the appropriate bases shall be established in accordance with subpart 42.7 of the Federal Acquisition Regulation (FAR) in effect for the period covered by the indirect cost rate proposal.

(2)

(i) The Contractor shall submit an adequate final indirect cost rate proposal to the Contracting Officer (or cognizant Federal agency official) and auditor within the 6-month period following the expiration of each of its fiscal years. Reasonable extensions, for exceptional circumstances only, may be requested in writing by the Contractor and granted in writing by the Contracting Officer. The Contractor shall support its proposal with adequate supporting data.

(ii) The proposed rates shall be based on the Contractor's actual cost experience for that period. The appropriate Government representative and the Contractor shall establish the final indirect cost rates as promptly as practical after receipt of the Contractor's proposal.

(iii) An adequate indirect cost rate proposal shall include the following data unless otherwise specified by the cognizant Federal agency official:

(A) Summary of all claimed indirect expense rates, including pool, base, and calculated indirect rate.

(B) *General and Administrative expenses (final indirect cost pool)*. Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts).

(C) *Overhead expenses (final indirect cost pool)*. Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts) for each final indirect cost pool.

(D) *Occupancy expenses (intermediate indirect cost pool)*. Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts) and expense reallocation to final indirect cost pools.

(E) Claimed allocation bases, by element of cost, used to distribute indirect costs.

(F) Facilities capital cost of money factors computation.

(G) Reconciliation of books of account (*i.e.*, General Ledger) and claimed direct costs by major cost element.

(H) Schedule of direct costs by contract and subcontract and indirect expense applied at claimed rates, as well as a subsidiary schedule of Government participation percentages in each of the allocation base amounts.

(I) Schedule of cumulative direct and indirect costs claimed and billed by contract and subcontract.

(J) *Subcontract information*. Listing of subcontracts awarded to companies for which the contractor is the prime or upper-tier contractor (include prime and subcontract numbers; subcontract value and award type; amount claimed during the fiscal year; and the subcontractor name, address, and point of contact information).

(K) Summary of each time-and-materials and labor-hour contract information, including labor categories, labor rates, hours, and amounts; direct materials; other direct costs; and, indirect expense applied at claimed rates.

(L) Reconciliation of total payroll per IRS form 941 to total labor costs distribution.

(M) Listing of decisions/agreements/approvals and description of accounting/organizational changes.

(N) Certificate of final indirect costs (see 52.242-4, Certification of Final Indirect Costs).

(O) Contract closing information for contracts physically completed in this fiscal year (include contract number, period of performance, contract ceiling amounts, contract fee computations, level of effort, and indicate if the contract is ready to close).

(iv) The following supplemental information is not required to determine if a proposal is adequate, but may be required during the audit process:

(A) Comparative analysis of indirect expense pools detailed by account to prior fiscal year and budgetary data.

(B) General organizational information and limitation on allowability of compensation for certain contractor personnel. See 31.205-6(p).

(C) Identification of prime contracts under which the contractor performs as a subcontractor.

(D) Description of accounting system (excludes contractors required to submit a CAS Disclosure Statement or contractors where the description of the accounting system has not changed from the previous year's submission).

(E) Procedures for identifying and excluding unallowable costs from the costs claimed and billed (excludes contractors where the procedures have not changed from the previous year's submission).

(F) Certified financial statements and other financial data (*e.g.*, trial balance, compilation, review, *etc.*).

(G) Management letter from outside CPAs concerning any internal control weaknesses.

(H) Actions that have been and/or will be implemented to correct the weaknesses described in the management letter from subparagraph (G) of this section.

(I) List of all internal audit reports issued since the last disclosure of internal audit reports to the Government.

(J) Annual internal audit plan of scheduled audits to be performed in the fiscal year when the final indirect cost rate submission is made.

(K) Federal and State income tax returns.

(L) Securities and Exchange Commission 10-K annual report.

(M) Minutes from board of directors meetings.

(N) Listing of delay claims and termination claims submitted which contain costs relating to the subject fiscal year.

(O) Contract briefings, which generally include a synopsis of all pertinent contract provisions, such as: contract type, contract amount, product or service(s) to be provided, contract performance period, rate ceilings, advance approval requirements, pre-contract cost allowability limitations, and billing limitations.

(v) The Contractor shall update the billings on all contracts to reflect the final settled rates and update the schedule of cumulative direct and indirect costs claimed and billed, as required in paragraph (d)(2)(iii)(I) of this section, within 60 days after settlement of final indirect cost rates.

(3) The Contractor and the appropriate Government representative shall execute a written understanding setting forth the final indirect cost rates. The understanding shall specify (i) the agreed-upon final annual indirect cost rates, (ii) the bases to which the rates apply, (iii) the periods for which the rates apply, (iv) any specific indirect cost items treated as direct costs in the settlement, and (v) the affected contract and/or subcontract, identifying any with advance agreements or special terms and the applicable rates. The understanding shall not change any monetary ceiling, contract obligation, or specific cost allowance or disallowance provided for in this contract. The understanding is incorporated into this contract upon execution.

(4) Failure by the parties to agree on a final annual indirect cost rate shall be a dispute within the meaning of the Disputes clause.

(5) Within 120 days (or longer period if approved in writing by the Contracting Officer) after settlement of the final annual indirect cost rates for all years of a physically complete contract, the Contractor shall submit a completion invoice or voucher to reflect the settled amounts and rates. The completion invoice or voucher shall include settled subcontract amounts and rates. The prime contractor is responsible for settling subcontractor amounts and rates included in the completion invoice or voucher and providing status of subcontractor audits to the contracting officer upon request.

(6)

(i) If the Contractor fails to submit a completion invoice or voucher within the time specified in paragraph (d)(5) of this clause, the Contracting Officer may-

(A) Determine the amounts due to the Contractor under the contract; and

(B) Record this determination in a unilateral modification to the contract.

(ii) This determination constitutes the final decision of the Contracting Officer in accordance with the Disputes clause.

(e) *Billing rates*. Until final annual indirect cost rates are established for any period, the Government shall reimburse the Contractor at billing rates established by the Contracting Officer or by an authorized representative (the cognizant auditor), subject to adjustment when the final rates are established. These billing rates-

(1) Shall be the anticipated final rates; and

(2) May be prospectively or retroactively revised by mutual agreement, at either party's request, to prevent substantial overpayment or underpayment.

(f) *Quick-closeout procedures*. Quick-closeout procedures are applicable when the conditions in FAR 42.708(a) are satisfied.

(g) *Audit*. At any time or times before final payment, the Contracting Officer may have the Contractor's invoices or vouchers and statements of cost audited. Any payment may be-

(1) Reduced by amounts found by the Contracting Officer not to constitute allowable costs; or

(2) Adjusted for prior overpayments or underpayments.

(h) Final payment.

(1) Upon approval of a completion invoice or voucher submitted by the Contractor in accordance with paragraph (d)(5) of this clause, and upon the Contractor's compliance with all terms of this contract, the Government shall promptly pay any balance of allowable costs and that part of the fee (if any) not previously paid.

(2) The Contractor shall pay to the Government any refunds, rebates, credits, or other amounts (including interest, if any) accruing to or received by the Contractor or any assignee under this contract, to the extent that those amounts are properly allocable to costs for which the Contractor has been reimbursed by the Government. Reasonable expenses incurred by the Contractor for securing refunds, rebates, credits, or other amounts shall be allowable costs if approved by the Contracting Officer. Before final payment under this contract, the Contractor and each assignee whose assignment is in effect at the time of final payment shall execute and deliver-

(i) An assignment to the Government, in form and substance satisfactory to the Contracting Officer, of refunds, rebates, credits, or other amounts (including interest, if any) properly allocable to costs for which the Contractor has been reimbursed by the Government under this contract; and

(ii) A release discharging the Government, its officers, agents, and employees from all liabilities, obligations, and claims arising out of or under this contract, except-

(A) Specified claims stated in exact amounts, or in estimated amounts when the exact amounts are not known;

(B) Claims (including reasonable incidental expenses) based upon liabilities of the Contractor to third parties arising out of the performance of this contract; provided, that the claims are not known to the Contractor on the date of the execution of the release, and that the Contractor gives notice of the claims in writing to the Contracting Officer within 6 years following the release date or notice of final payment date, whichever is earlier; and

(C) Claims for reimbursement of costs, including reasonable incidental expenses, incurred by the Contractor under the patent clauses of this contract, excluding, however, any expenses arising from the Contractor's indemnification of the Government against patent liability.

(End of clause)

52.216-18 Ordering. (Aug 2020)

Ordering (Aug 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from date of award through 10 years, if all options are exercised.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when-

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either-

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

52.216-19 Order Limitations. (Oct 1995)

Order Limitations (Oct 1995)

(a) *Minimum order*. When the Government requires supplies or services covered by this contract in an amount of less than $2,500, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order*. The Contractor is not obligated to honor-

(1) Any order for a single item in excess of $100,000,000;

(2) Any order for a combination of items in excess of $125,000,000; or

(3) A series of orders from the same ordering office within 7 days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (*i.e.*, includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 10 days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

52.216-22 Indefinite Quantity. (Feb 2026)

Indefinite Quantity (Feb 2026)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the ordering period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order, which may include order options to be exercised after the ordering period of this contract but before the end of the period of performance of the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order, including options exercised, to the same extent as if the order were completed during the contract's ordering period; provided, that the Contractor shall not be required to make any deliveries under this contract after 12 months after the ordering period end date.

(End of clause)

52.217-9 Option to Extend the Term of the Contract. (Mar 2000)

Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 30 days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 10 Years.

(End of clause)

52.219-28 Postaward Small Business Program Rerepresentation. (Alternate I) (Feb 2026) Alternate I (Feb 2026)

Alternate I (FEB 2026). As prescribed in 19.101(a)(2)(iii)(B), substitute the following paragraph (g)(1) for paragraph (g)(1) of the basic clause:

(g)(1) The Contractor represents its small business size status for each one of the NAICS codes assigned to this contract.

NAICS Code	Small business concern (yes/no)
____	____
____	____
____	____

[*Contracting Officer to insert NAICS codes.*]

52.222-2 Payment for Overtime Premiums. (Feb 2026)

Payment for Overtime Premiums (Feb 2026)

(a) The use of overtime is authorized under this contract if the overtime premium cost does not exceed TBD at Task Order level or the overtime premium is paid for work-

(1) Necessary to cope with emergencies such as those resulting from accidents, natural disasters, breakdowns of production equipment, or occasional production bottlenecks of a sporadic nature;

(2) By indirect-labor employees such as those performing duties in connection with administration, protection, transportation, maintenance, standby plant protection, operation of utilities, or accounting;

(3) To perform tests, industrial processes, laboratory procedures, loading or unloading of transportation conveyances, and operations in flight or afloat that are continuous in nature and cannot reasonably be interrupted or completed otherwise; or

(4) That will result in lower overall costs to the Government.

(b) Any request for estimated overtime premiums that exceeds the amount specified above must include all estimated overtime for contract completion and must-

(1) Identify the work unit; *e.g.*, department or section in which the requested overtime will be used, together with present workload, staffing, and other data of the affected unit sufficient to permit the Contracting Officer to evaluate the necessity for the overtime;

(2) Demonstrate the effect that denial of the request will have on the contract delivery or performance schedule;

(3) Identify the extent to which approval of overtime would affect the performance or payments in connection with other Government contracts, together with identification of each affected contract; and

(4) Provide reasons why the required work cannot be performed by using multishift operations or by employing additional personnel.

(End of clause)

52.222-42 Statement of Equivalent Rates for Federal Hires. (May 2014)

Statement of Equivalent Rates for Federal Hires (May 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR Part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C.5341 or 5332.

This Statement is for Information Only: It is not a Wage Determination

AAV Mechanic -- WG664108 -- $25.98

AAV Mechanic Sr -- WG664110 -- $29.66

Ammunition Technician (TAKE) -- GS034605 -- $17.20

Artillery Mechanic -- WG660508 -- $25.98

Artillery Mechanic Sr -- WG660510 -- $29.60

Carpenter -- WG460705 -- $20.63

Carpenter Lead -- WG460707 -- $24.20

CBRN Specialist -- GS180204 -- $15.39

Container Inspector -- WG191008 -- $25.98

Container Inspector/Certifier -- WG191010 -- $29.66

Contract Expeditor -- GS110209 -- $25.84

Corrosion Control Technician -- WG410209 -- $27.83

Desktop Support Technician -- GS221009 -- $25.84

Desktop Support Technician Sr -- GS221011 -- $31.18

Dispatcher -- GS215104 -- $15.39

Driver Messenger -- WG350202 -- $14.73

Electrical Equipment Repair Tech -- WG285407 -- $24.20

Electronic Industrial Controls Mechanic -- WG260608 -- $25.98

Electronic Industrial Controls Mechanic Lead -- WG260610 -- $29.66

Electronic Technician -- WG260410 -- $29.66

Electronic Technician Jr -- WG260408 -- $25.98

Electronic Technician Lead -- WL260410 -- $32.58

Electronic Technician Sr -- WG260410 -- $29.66

Engineer Assistant -- GS164006 -- $19.03

Engineer Equipment Mechanic -- WG580310 -- $29.66

Engineer Equipment Mechanic Sr -- WG580310 -- $29.66

Engineer Equipment Mechanic (Junior) -- WG580307 -- $24.20

Engineer Mechanic -- WG580608 -- $25.98

Fiscal Technician -- GS051007 -- $21.09

Freight Operations Specialist -- GS210207 -- $21.09

Freight Operations Specialist Lead -- GS210207 -- $21.09

Fuel Equipment Servicer -- WG543107 -- $24.20

General Maintenance Tech -- WG530008 -- $25.98

Hazardous Material Waste Specialist -- WG691209 -- $27.83

Hazardous Material Waste Specialist Sr -- WG691211 -- $31.44

Heavy Equipment Operator -- WG571611 -- $31.44

Heavy Truck Driver -- WG570507 -- $24.20

HVAC Mechanic -- WG530611 -- $31.44

Hygiene Equipment Mechanic -- WG540907 -- $24.20

Industrial Technician II -- WG260607 -- $24.20

Intermediate Auto Mechanic -- WG584108 -- $25.98

Intermediate Auto Mechanic Sr -- WG584110 -- $29.66

Intermediate Auto Mechanic Sr Lead -- WL584110 -- $32.58

ISO Librarian -- GS191009 -- $25.84

Laborer -- WG350203 -- $16.97

LAV Mechanic -- WG664108 -- $25.98

LAV Mechanic Sr -- WG664110 -- $29.66

Lighterage Finisher -- WG912211 -- $31.44

Lighterage Maintenance Technician -- WG912211 -- $31.44

Logistics Specialist III -- GS034605 -- $17.20

Logistics Specialist III Lead -- GS034605 -- $17.20

Machinist -- WG341408 -- $25.98

Machinist Lead -- WG341410 -- $29.66

Marine Diesel Mechanic -- WG533411 -- $31.44

Marine Diesel Mechanic Sr -- WL533410 -- $32.58

Marine Electrician -- WG533411 -- $31.44

Material Handler -- WG690705 -- $20.63

Material Specialist II -- GS200304 -- $15.39

Material Specialist III -- GS200306 -- $19.03

Material Specialist III Lead -- GS034606 -- $19.03

Mechanic Technician Sr -- WG584110 -- $29.66

Medical Equipment Repair -- WG480509 -- $27.83

Medical Equipment Repair Lead -- WG480510 -- $29.66

Motor Transport Mechanic -- WG582308 -- $25.98

Navy 3M Systems Coordinator -- GS031806 -- $19.03

Navy Craft Equipment Specialist -- WG167011 -- $31.44

Navy Equipment Specialist -- WG167011 -- $31.44

Navy PlannerEstimator -- WG613X10 -- $29.66

Network Engineer -- GS221011 -- $31.18

Network Security Specialist -- GS221012 -- $37.45

Optical Instrument Technician -- WG330610 -- $29.66

Ordnance Mechanic -- WG580308 -- $25.98

Painter Helper -- WG410207 -- $24.20

Personnel Specialist IV -- GS020105 -- $17.20

Preservationist -- WG700607 -- $24.20

Production Control Clerk -- GS033507 -- $21.09

Production Planning Analyst -- GS033409 -- $25.84

Scale House Attendant -- WG542405 -- $20.63

Secretary III -- GS031807 -- $21.09

Shipfitter -- WG713X11 -- $31.44

Shipment Coordinator -- GS210207 -- $21.09

Shipment/Planning Specialist -- GS210107 -- $21.09

Supervisor Electrical -- GS167011 -- $31.18

Tank Mechanic -- WG664108 -- $25.98

Tank Mechanic Sr -- WG664110 -- $29.66

Tractor Trailer Operator -- WG570505 -- $20.63

Vehicle Detailer -- WG541705 -- $20.63

Wash Rack Attendant -- WG350202 -- $14.73

Weapons Technician (Turret) -- WG665608 -- $25.98

Weapons Technician Sr (Turret) -- WG665610 -- $29.66

Welder -- WG370309 -- $27.83

Woodworker -- WG460405 -- $20.63

(End of clause)

52.223-3 Hazardous Material Identification and Safety Data. (Feb 2026)

HAZARDOUS MATERIAL IDENTIFICATION AND SAFETY DATA (FEB 2026)

(a) *Hazardous material*, as used in this clause, includes any material defined as hazardous under the latest version of Federal Standard No. 313 (including revisions adopted during the term of the contract).

(b) The Offeror must list any hazardous material, as defined in paragraph (a) of this clause, to be delivered under this contract. The hazardous material shall be properly identified and include any applicable identification number, such as National Stock Number or Special Item Number. This information shall also be included on the Safety Data Sheet submitted under this contract.

Material (If none, insert *None*)	Identification No.
___	___
___	___
___	___

(c) This list must be updated during performance of the contract whenever the Contractor determines that any other material to be delivered under this contract is hazardous.

(d) The apparently successful offeror agrees to submit, for each item as required prior to award, a Safety Data Sheet, meeting the requirements of 29 CFR 1910.1200(g) and the latest version of Federal Standard No. 313, for all hazardous material identified in paragraph (b) of this clause. Data shall be submitted in accordance with Federal Standard No. 313, whether or not the apparently successful offeror is the actual manufacturer of these items. Failure to submit the Safety Data Sheet prior to award may result in the apparently successful offeror being considered nonresponsible and ineligible for award.

(e) If, after award, there is a change in the composition of the item(s) or a revision to Federal Standard No. 313, which renders incomplete or inaccurate the data submitted under paragraph (d) of this clause, the Contractor shall promptly notify the Contracting Officer and resubmit the data.

(f) Neither the requirements of this clause nor any act or failure to act by the Government shall relieve the Contractor of any responsibility or liability for the safety of Government, Contractor, or subcontractor personnel or property.

(g) Nothing contained in this clause shall relieve the Contractor from complying with applicable Federal, State, and local laws, codes, ordinances, and regulations (including the obtaining of licenses and permits) in connection with hazardous material.

(h) The Government's rights in data furnished under this contract with respect to hazardous material are as follows:

(1) To use, duplicate and disclose any data to which this clause is applicable. The purposes of this right are to-

(i) Apprise personnel of the hazards to which they may be exposed in using, handling, packaging, transporting, or disposing of hazardous materials;

(ii) Obtain medical treatment for those affected by the material; and

(iii) Have others use, duplicate, and disclose the data for the Government for these purposes.

(2) To use, duplicate, and disclose data furnished under this clause, in accordance with subparagraph (h)(1) of this clause, in precedence over any other clause of this contract providing for rights in data.

(3) The Government is not precluded from using similar or identical data acquired from other sources.

(End of clause)

52.228-9 Cargo Insurance. (May 1999)

Cargo Insurance (May 1999)

(a) The Contractor, at the Contractor's expense, shall provide and maintain, during the continuance of this contract, cargo insurance of $250,000 per vehicle to cover the value of property on each vehicle and of $2,000,000 to cover the total value of the property in the shipment.

(b) All insurance shall be written on companies acceptable to Marine Corps Logistics Command (LOGCOM), and policies shall include such terms and conditions as required by Marine Corps Logistics Command (LOGCOM). The Contractor shall provide evidence of acceptable cargo insurance to Marine Corps Logistics Command (LOGCOM) before commencing operations under this contract.

(c) Each cargo insurance policy shall include the following statement:

"It is a condition of this policy that the Company shall furnish-

(1) Written notice to Marine Corps Logistics Command (LOGCOM) 814 Radford Blvd. Albany, GA 31704, 30 days in advance of the effective date of any reduction in, or cancellation of, this policy; and

(2) Evidence of any renewal policy to the address specified in paragraph (1) of this statement, not less than 15 days prior to the expiration of any current policy on file with Marine Corps Logistics Command (LOGCOM)."

(End of clause)

52.229-8 Taxes-Foreign Cost-Reimbursement Contracts. (Mar 1990)

Taxes-Foreign Cost-Reimbursement Contracts (Mar 1990)

(a) Any tax or duty from which the United States Government is exempt by agreement with any foreign Government, or from which the Contractor or any subcontractor under this contract is exempt under the laws of any foreign Government, shall not constitute an allowable cost under this contract.

(b) If the Contractor or subcontractor under this contract obtains a foreign tax credit that reduces its Federal income tax liability under the United States Internal Revenue Code (Title26, U.S. Code) because of the payment of any tax or duty that was reimbursed under this contract, the amount of the reduction shall be paid or credited at the time of such offset to the Government of the United States as the Contracting Officer directs.

(End of clause)

52.242-4 Certification of Final Indirect Costs. (Jan 1997)

CERTIFICATION OF FINAL INDIRECT COSTS (JAN 1997)

(a) The Contractor shall-

(1) Certify any proposal to establish or modify final indirect cost rates;

(2) Use the format in paragraph (c) of this clause to certify; and

(3) Have the certificate signed by an individual of the Contractor's organization at a level no lower than a vice president or chief financial officer of the business segment of the Contractor that submits the proposal.

(b) Failure by the Contractor to submit a signed certificate, as described in this clause, may result in final indirect costs at rates unilaterally established by the Contracting Officer.

(c) The certificate of final indirect costs shall read as follows:

Certificate of Final Indirect Costs

This is to certify that I have reviewed this proposal to establish final indirect cost rates and to the best of my knowledge and belief:

1. All costs included in this proposal (identify proposal and date) to establish final indirect cost rates for (identify period covered by rate) are allowable in accordance with the cost principles of the Federal Acquisition Regulation (FAR) and its supplements applicable to the contracts to which the final indirect cost rates will apply; and

2. This proposal does not include any costs which are expressly unallowable under applicable cost principles of the FAR or its supplements.

Firm: ____

Signature: ____

Name of Certifying Official: ____

Title: ____

Date of Execution: ____

(End of clause)

52.244-2 Subcontracts. (Jun 2020)

SUBCONTRACTS (JUN 2020)

(a) *Definitions*. As used in this clause-

"Approved purchasing system" means a Contractor's purchasing system that has been reviewed and approved in accordance with part 44 of the Federal Acquisition Regulation (FAR).

"Consent to subcontract" means the Contracting Officer's written consent for the Contractor to enter into a particular subcontract.

Subcontract means any contract, as defined in FAR subpart 2.1, entered into by a subcontractor to furnish supplies or services for performance of the prime contract or a subcontract. It includes, but is not limited to, purchase orders, and changes and modifications to purchase orders.

(b) When this clause is included in a fixed-price type contract, consent to subcontract is required only on unpriced contract actions (including unpriced modifications or unpriced delivery orders), and only if required in accordance with paragraph (c) or (d) of this clause.

(c) If the Contractor does not have an approved purchasing system, consent to subcontract is required for any subcontract that-

(1) Is of the cost-reimbursement, time-and-materials, or labor-hour type; or

(2) Is fixed-price and exceeds-

(i) For a contract awarded by the Department of Defense, the Coast Guard, or the National Aeronautics and Space Administration, the greater of the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, or 5 percent of the total estimated cost of the contract; or

(ii) For a contract awarded by a civilian agency other than the Coast Guard and the National Aeronautics and Space Administration, either the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, or 5 percent of the total estimated cost of the contract.

(d) If the Contractor has an approved purchasing system, the Contractor nevertheless shall obtain the Contracting Officer's written consent before placing the following subcontracts:

Under Micro-Purchase Threshold. As defined in FAR Subpart 2.1. Each Micro-Purchase shall be approved by the Government. Government approval authority will be determined by designation by the Contracting Officer. Over Micro-Purchase Threshold. Procurments over the Micro-Purchase Threshold up to $25,000.00 will be submitted to the designated Contracting Officer Representative, for approval. Over $25,000. The Contracting Officer will approve all purchases over $25,000.00. Additionally, all purchases for CAP or Subcontracts regardless of dollar value are subject to audit or review at any time. The Contractor shall maintain a real-time or near real-time accounting system which reflects all available information relative to CAP/Subcontracts, associated Task Orders and Accounting Classification Reference Number (ACRN); this system shall be available to the Government for review on a continual basis. CAP also includes any subcontracted efforts.

(e)
(1) The Contractor shall notify the Contracting Officer reasonably in advance of placing any subcontract or modification thereof for which consent is required under paragraph (b), (c), or (d) of this clause, including the following information:

(i) A description of the supplies or services to be subcontracted.

(ii) Identification of the type of subcontract to be used.

(iii) Identification of the proposed subcontractor.

(iv) The proposed subcontract price.

(v) The subcontractor's current, complete, and accurate certified cost or pricing data and Certificate of Current Cost or Pricing Data, if required by other contract provisions.

(vi) The subcontractor's Disclosure Statement or Certificate relating to Cost Accounting Standards when such data are required by other provisions of this contract.

(vii) A negotiation memorandum reflecting-

(A) The principal elements of the subcontract price negotiations;

(B) The most significant considerations controlling establishment of initial or revised prices;

(C) The reason certified cost or pricing data were or were not required;

(D) The extent, if any, to which the Contractor did not rely on the subcontractor's certified cost or pricing data in determining the price objective and in negotiating the final price;

(E) The extent to which it was recognized in the negotiation that the subcontractor's certified cost or pricing data were not accurate, complete, or current; the action taken by the Contractor and the subcontractor; and the effect of any such defective data on the total price negotiated;

(F) The reasons for any significant difference between the Contractor's price objective and the price negotiated; and

(G) A complete explanation of the incentive fee or profit plan when incentives are used. The explanation shall identify each critical performance element, management decisions used to quantify each incentive element, reasons for the incentives, and a summary of all trade-off possibilities considered.

(2) The Contractor is not required to notify the Contracting Officer in advance of entering into any subcontract for which consent is not required under paragraph (b), (c), or (d) of this clause.

(f) Unless the consent or approval specifically provides otherwise, neither consent by the Contracting Officer to any subcontract nor approval of the Contractor's purchasing system shall constitute a determination-

(1) Of the acceptability of any subcontract terms or conditions;

(2) Of the allowability of any cost under this contract; or

(3) To relieve the Contractor of any responsibility for performing this contract.

(g) No subcontract or modification thereof placed under this contract shall provide for payment on a cost-plus-a-percentage-of-cost basis, and any fee payable under cost-reimbursement type subcontracts shall not exceed the fee limitations in FAR 15.404-4(c)(4)(i).

(h) The Contractor shall give the Contracting Officer immediate written notice of any action or suit filed and prompt notice of any claim made against the Contractor by any subcontractor or vendor that, in the opinion of the Contractor, may result in litigation related in any way to this contract, with respect to which the Contractor may be entitled to reimbursement from the Government.

(i) The Government reserves the right to review the Contractor's purchasing system as set forth in FAR subpart 44.3.

(j) Paragraphs (c) and (e) of this clause do not apply to the following subcontracts, which were evaluated during negotiations:

None________

(End of clause)

52.246-20 Warranty of Services. (May 2001)

Warranty of Services (May 2001)

(a) *Definition.*"Acceptance," as used in this clause, means the act of an authorized representative of the Government by which the Government assumes for itself, or as an agent of another, ownership of existing and identified supplies, or approves specific services, as partial or complete performance of the contract.

(b) Notwithstanding inspection and acceptance by the Government or any provision concerning the conclusiveness thereof, the Contractor warrants that all services performed under this contract will, at the time of acceptance, be free from defects in workmanship and conform to the requirements of this contract. The Contracting Officer shall give written notice of any defect or nonconformance to the Contractor 90 days after completion of the service; 30 days after receipt of written notice; the Government may obtain the services from another source and charge the Contractor any excess cost . This notice shall state either-

(1) That the Contractor shall correct or reperform any defective or nonconforming services; or

(2) That the Government does not require correction or reperformance.

(c) If the Contractor is required to correct or reperform, it shall be at no cost to the Government, and any services corrected or reperformed by the Contractor shall be subject to this clause to the same extent as work initially performed. If the Contractor fails or refuses to correct or reperform, the Contracting Officer may, by contract or otherwise, correct or replace with similar services and charge to the Contractor the cost occasioned to the Government thereby, or make an equitable adjustment in the contract price.

(d) If the Government does not require correction or reperformance, the Contracting Officer shall make an equitable adjustment in the contract price.

(End of clause)

52.247-1 Commercial Bill of Lading Notations. (Feb 2006)

Commercial Bill of Lading Notations (Feb 2006)

When the Contracting Officer authorizes supplies to be shipped on a commercial bill of lading and the Contractor will be reimbursed these transportation costs as direct allowable costs, the Contractor shall ensure before shipment is made that the commercial shipping documents are annotated with either of the following notations, as appropriate:

(a) If the Government is shown as the consignor or the consignee, the annotation shall be:

Transportation is for the (a) Marine Corps Logistics Command (LOGCOM) and the actual total transportation charges paid to the carrier(s) by the consignor or consignee are assignable to, and shall be reimbursed by, the Government.

(b) If the Government is not shown as the consignor or the consignee, the annotation shall be:

Transportation is for the Marine Corps Logistics Command (LOGCOM) and the actual total transportation charges paid to the carrier(s) by the consignor or consignee shall be reimbursed by the Government, pursuant to cost-reimbursement contract No. M67004-27-D-XXXX. This may be confirmed by contacting Marine Corps Logistics Command (LOGCOM) 814 Radford Blvd Albany, GA 31704.

(End of clause)

52.247-19 Stopping in Transit for Partial Unloading. (Apr 1984)

Stopping in Transit for Partial Unloading (Apr 1984)

When multiple shipments are tendered at one time to the Contractor for movement from one origin to two or more consignees along the route between the origin and the last destination, the rate charged shall be the rate applicable to the aggregate weight, plus a charge of TBD on each individual Task Order for each shipment unloaded at an intermediate point en route to the last destination.

(End of clause)

52.252-2 Clauses Incorporated by Reference. (Feb 1998)

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

https://www.acquisition.gov/

(End of clause)

52.252-4 Alterations in Contract. (Apr 1984)

Alterations in Contract (Apr 1984)

Portions of this contract are altered as follows:

None

(End of clause)

52.252-6 Authorized Deviations in Clauses. (Nov 2020)

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

DFARS Clauses Incorporated by Full Text

252.204-7021 Contractor Compliance with the Cybersecurity Maturity Model Certification Level Requirements. (Nov 2025)

CONTRACTOR COMPLIANCE WITH THE CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) *Definitions*. As used in this clause-

"Controlled unclassified information" means information the Government creates or possesses, or information an entity creates or possesses for or on behalf of the Government, that a law, regulation, or Governmentwide policy requires or permits an agency to handle using safeguarding or dissemination controls (32 CFR 2002.4(h)).

"Current" means-

(1) With regard to Conditional Cybersecurity Maturity Model Certification (CMMC) Status-

(i) Not older than 180 days for Conditional Level 2 (Self) assessments and Conditional Level 2 (certified third-party assessment organization (C3PAO)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance by an affirming official (see 32 CFR 170.4); and

(ii) Not older than 180 days for Conditional Level 3 (Defense Industrial Base Cybersecurity Assessment Center (DIBCAC)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance by an affirming official;

(2) With regard to Final CMMC Status-

(i) Not older than 1 year for Final Level 1 (Self), with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.15); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official;

(ii) Not older than 3 years for Final Level 2 (Self) assessments and Final Level 2 (C3PAO) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(iii) Not older than 3 years for Final Level 3 (DIBCAC) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(3) With regard to affirmation of continuous compliance (32 CFR 170.22), not older than 1 year with no changes in compliance with the requirements at 32 CFR part 170.

"Cybersecurity Maturity Model Certification (CMMC) status" means the result of meeting or exceeding the minimum required score for the corresponding assessment. The potential statuses are as follows:

(1) Final Level 1 (Self).

(2) Conditional Level 2 (Self).

(3) Final Level 2 (Self).

(4) Conditional Level 2 (C3PAO).

(5) Final Level 2 (C3PAO).

(6) Conditional Level 3 (DIBCAC).

(7) Final Level 3 (DIBCAC).

"Cybersecurity Maturity Model Certification unique identifier (CMMC UID)" means 10 alpha-numeric characters assigned to each CMMC assessment and reflected in the Supplier Performance Risk System (SPRS) for each contractor information system.

"Federal contract information (FCI)" means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government. It does not include information provided by the Government to the public, such as on public websites, or simple transactional information, such as information necessary to process payments.

"Plan of action and milestones" means a document that identifies tasks to be accomplished. It details resources required to accomplish the elements of the plan, any milestones in meeting the tasks, and scheduled completion dates for the milestones, as defined in National Institute of Standards and Technology Special Publication 800-115 (32 CFR 170.21).

(b) *Framework*. The Cybersecurity Maturity Model Certification (CMMC) is a framework for assessing a contractor's compliance with applicable information security protections (see 32 CFR part 170).

(c) *Duplication*. The CMMC assessments will not duplicate efforts from any other comparable DoD assessment, except for rare circumstances when a reassessment may be necessary, for example, when there are indications of issues with cybersecurity and/or compliance with CMMC requirements.

(d) *Requirements*. The Contractor shall-

(1)(i) Have and maintain for the duration of the contract a current CMMC status at the following CMMC level, or higher: ____ *Contracting Officer insert: CMMC Level 1 (Self); CMMC Level 2 (Self); CMMC Level 2 (C3PAO); or CMMC Level 3 (DIBCAC)* for all information systems used in performance of the contract, task order, or delivery order that process, store, or transmit FCI or CUI; and

(ii) Consult 32 CFR 170.23 related to the flowdown of the CMMC requirements, and flow down the correct CMMC level to subcontracts and other contractual instruments;

(2) Only process, store, or transmit FCI or CUI on contractor information systems that have a CMMC status at the CMMC level required in paragraph (d)(1) of this clause, or higher;

(3) Complete on an annual basis, and maintain as current, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required in paragraph (d)(1) of this clause in the Supplier Performance Risk System (SPRS) (*https://piee.eb.mil*) for each CMMC UID applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract;

(4) Ensure all subcontractors and suppliers complete prior to subcontract award, and maintain on an annual basis, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required for the subcontract or other contractual instrument for each of the subcontractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the subcontract; and

(5) If the Contractor has a CMMC Status of Conditional, successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(e) *Reporting*. The Contractor shall-

(1) Submit to the Contracting Officer-

(i) The CMMC UID(s) issued by SPRS for contractor information systems that will process, store, or transmit FCI or CUI during performance of the contract; and

(ii) Any changes in the CMMC UIDs generated in SPRS throughout the life of the contract, task order, or delivery order, if applicable;

(2) Enter into SPRS the results of a current self-assessment for each CMMC UID, not covered by a C3PAO assessment or DIBCAC assessment, applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract; and

(3) Complete in SPRS on an annual basis and maintain as current an affirmation of continuous compliance by the affirming official (see 32 CFR 170.4) for each self-assessment, C3PAO assessment, or DIBCAC assessment required under the contract in SPRS.

(f) *Subcontracts*. The Contractor shall-

(1) Insert the substance of this clause, including this paragraph (f) and excluding paragraph (e)(1), in subcontracts and other contractual instruments, including those for the acquisition of commercial products or commercial services, excluding commercially available off-the-shelf items, if the subcontract or other contractual instrument will contain a requirement to process, store, or transmit FCI or CUI; and

(2) Prior to awarding a subcontract or other contractual instrument, ensure that the subcontractor has a current CMMC certificate or current CMMC status at the CMMC level that is appropriate for the information that is being flowed down to the subcontractor based on the requirements at 32 CFR 170.23.

(End of clause)

252.211-7003 Item Unique Identification and Valuation. (Jan 2023)

ITEM UNIQUE IDENTIFICATION AND VALUATION (JAN 2023)

(a) *Definitions*. As used in this clause-

"Automatic identification device" means a device, such as a reader or interrogator, used to retrieve data encoded on machine-readable media.

"Concatenated unique item identifier" means-

(1) For items that are serialized within the enterprise identifier, the linking together of the unique identifier data elements in order of the issuing agency code, enterprise identifier, and unique serial number within the enterprise identifier; or

(2) For items that are serialized within the original part, lot, or batch number, the linking together of the unique identifier data elements in order of the issuing agency code; enterprise identifier; original part, lot, or batch number; and serial number within the original part, lot, or batch number.

"Data matrix" means a two-dimensional matrix symbology, which is made up of square or, in some cases, round modules arranged within a perimeter finder pattern and uses the Error Checking and Correction 200 (ECC200) specification found within International Standards Organization (ISO)/International Electrotechnical Commission (IEC) 16022.

"Data qualifier" means a specified character (or string of characters) that immediately precedes a data field that defines the general category or intended use of the data that follows.

"DoD recognized unique identification equivalent" means a unique identification method that is in commercial use and has been recognized by DoD. All DoD recognized unique identification equivalents are listed at *https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html*.

"DoD item unique identification" means a system of marking items delivered to DoD with unique item identifiers that have machine-readable data elements to distinguish an item from all other like and unlike items. For items that are serialized within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier and a unique serial number. For items that are serialized within the part, lot, or batch number within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier; the original part, lot, or batch number; and the serial number.

" Enterprise " means the entity (e.g., a manufacturer or vendor) responsible for assigning unique item identifiers to items.

" Enterprise identifier" means a code that is uniquely assigned to an enterprise by an issuing agency.

"Government's unit acquisition cost" means-

(1) For fixed-price type line, subline, or exhibit line items, the unit price identified in the contract at the time of delivery;

(2) For cost-type or undefinitized line, subline, or exhibit line items, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery; and

(3) For items produced under a time-and-materials contract, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery.

"Issuing agency" means an organization responsible for assigning a globally unique identifier to an enterprise, as indicated in the Register of Issuing Agency Codes for ISO/IEC 15459, located at http://www.aimglobal.org/?Reg_Authority15459.

"Issuing agency code" means a code that designates the registration (or controlling) authority for the enterprise identifier.

"Item" means a single hardware article or a single unit formed by a grouping of subassemblies, components, or constituent parts.

" Lot or batch number" means an identifying number assigned by the enterprise to a designated group of items, usually referred to as either a lot or a batch, all of which were manufactured under identical conditions.

"Machine-readable" means an automatic identification technology media, such as bar codes, contact memory buttons, radio frequency identification, or optical memory cards.

"Original part number" means a combination of numbers or letters assigned by the enterprise at item creation to a class of items with the same form, fit, function, and interface.

"Parent item" means the item assembly, intermediate component, or subassembly that has an embedded item with a unique item identifier or DoD recognized unique identification equivalent.

"Serial number within the enterprise identifier" means a combination of numbers, letters, or symbols assigned by the enterprise to an item that provides for the differentiation of that item from any other like and unlike item and is never used again within the enterprise.

"Serial number within the part, lot, or batch number" means a combination of numbers or letters assigned by the enterprise to an item that provides for the differentiation of that item from any other like item within a part, lot, or batch number assignment.

"Serialization within the enterprise identifier" means each item produced is assigned a serial number that is unique among all the tangible items produced by the enterprise and is never used again. The enterprise is responsible for ensuring unique serialization within the enterprise identifier.

"Serialization within the part, lot, or batch number" means each item of a particular part, lot, or batch number is assigned a unique serial number within that part, lot, or batch number assignment. The enterprise is responsible for ensuring unique serialization within the part, lot, or batch number within the enterprise identifier.

"Type designation" means a combination of letters and numerals assigned by the Government to a major end item, assembly or subassembly, as appropriate, to provide a convenient means of differentiating between items having the same basic name and to indicate modifications and changes thereto.

"Unique item identifier" means a set of data elements marked on items that is globally unique and unambiguous. The term includes a concatenated unique item identifier or a DoD recognized unique identification equivalent.

"Unique item identifier type" means a designator to indicate which method of uniquely identifying a part has been used. The current list of accepted unique item identifier types is maintained at *https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html*.

(b) The Contractor shall deliver all items under a contract line, subline, or exhibit line item.

(c) *Unique item identifier.*

(1) The Contractor shall provide a unique item identifier for the following:

(i) Delivered items for which the Government's unit acquisition cost is $5,000 or more, except for the following line items:

Contract Line, Subline, or Exhibit Line Item Number	Item Description
N/A	____
____	____
____	____

(ii) Items for which the Government's unit acquisition cost is less than $5,000 that are identified in the Schedule or the following table:

Contract Line, Subline, or Exhibit Line Item Number	Item Description
____	____
____	____
____	____

(If items are identified in the Schedule, insert "See Schedule in this table.)

(iii) Subassemblies, components, and parts embedded within delivered items, items with warranty requirements, DoD serially managed reparables and DoD serially managed nonreparables as specified in Attachment Number ____.

(iv) Any item of special tooling or special test equipment as defined in FAR 2.101 that have been designated for preservation and storage for a Major Defense Acquisition Program as specified in Attachment Number ____.

(v) Any item not included in (i), (ii), (iii), or (iv) for which the contractor creates and marks a unique item identifier for traceability.

(2) The unique item identifier assignment and its component data element combination shall not be duplicated on any other item marked or registered in the DoD Item Unique Identification Registry by the contractor.

(3) The unique item identifier component data elements shall be marked on an item using two dimensional data matrix symbology that complies with ISO/IEC International Standard 16022, Information technology - International symbology specification - Data matrix; ECC200 data matrix specification.

(4) *Data syntax and semantics of unique item identifiers.* The Contractor shall ensure that-

(i) The data elements (except issuing agency code) of the unique item identifier are encoded within the data matrix symbol that is marked on the item using one of the following three types of data qualifiers, as determined by the Contractor:

(A) Application Identifiers (AIs) (Format Indicator 05 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(B) Data Identifiers (DIs) (Format Indicator 06 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(C) Text Element Identifiers (TEIs) (Format Indicator 12 of ISO/IEC International Standard 15434), in accordance with the Air Transport Association Common Support Data Dictionary; and

(ii) The encoded data elements of the unique item identifier conform to the transfer structure, syntax, and coding of messages and data formats specified for Format Indicators 05, 06, and 12 in ISO/IEC International Standard 15434, Information Technology - Transfer Syntax for High Capacity Automatic Data Capture Media.

(5) *Unique item identifier*.

(i) The Contractor shall-

(A) Determine whether to-

(1) Serialize within the enterprise identifier;

(2) Serialize within the part, lot, or batch number; or

(3) Use a DoD recognized unique identification equivalent (e.g. Vehicle Identification Number); and

(B) Place the data elements of the unique item identifier (enterprise identifier; serial number; DoD recognized unique identification equivalent; and for serialization within the part, lot, or batch number only: original part, lot, or batch number) on items requiring marking by paragraph (c)(1) of this clause, based on the criteria provided in MIL-STD-130, Identification Marking of U.S. Military Property, latest version;

(C) Label shipments, storage containers and packages that contain uniquely identified items in accordance with the requirements of MIL-STD-129, Military Marking for Shipment and Storage, latest version; and

(D) Verify that the marks on items and labels on shipments, storage containers, and packages are machine readable and conform to the applicable standards. The contractor shall use an automatic identification technology device for this verification that has been programmed to the requirements of Appendix A, MIL-STD-130, latest version.

(ii) The issuing agency code-

(A) Shall not be placed on the item; and

(B) Shall be derived from the data qualifier for the enterprise identifier.

(d) For each item that requires item unique identification under paragraph (c)(1)(i), (ii), or (iv) of this clause or when item unique identification is provided under paragraph (c)(1)(v), in addition to the information provided as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the Contractor shall report at the time of delivery, as part of the Material Inspection and Receiving Report, the following information:

(1) Unique item identifier.

(2) Unique item identifier type.

(3) Issuing agency code (if concatenated unique item identifier is used).

(4) Enterprise identifier (if concatenated unique item identifier is used).

(5) Original part number (if there is serialization within the original part number).

(6) Lot or batch number (if there is serialization within the lot or batch number).

(7) Current part number (optional and only if not the same as the original part number).

(8) Current part number effective date (optional and only if current part number is used).

(9) Serial number (if concatenated unique item identifier is used).

(10) Government's unit acquisition cost.

(11) Unit of measure.

(12) Type designation of the item as specified in the contract schedule, if any.

(13) Whether the item is an item of Special Tooling or Special Test Equipment.

(14) Whether the item is covered by a warranty.

(e) For embedded subassemblies, components, and parts that require DoD item unique identification under paragraph (c)(1)(iii) of this clause or when item unique identification is provided under paragraph (c)(1)(v), the Contractor shall report as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the following information:

(1) Unique item identifier of the parent item under paragraph (c)(1) of this clause that contains the embedded subassembly, component, or part.

(2) Unique item identifier of the embedded subassembly, component, or part.

(3) Unique item identifier type.**

(4) Issuing agency code (if concatenated unique item

identifier is used).**

(5) Enterprise identifier (if concatenated unique item identifier is used).**

(6) Original part number (if there is serialization within the original part number).**

(7) Lot or batch number (if there is serialization within the lot or batch number).**

(8) Current part number (optional and only if not the same as the original part number).**

(9) Current part number effective date (optional and only if current part number is used).**

(10) Serial number (if concatenated unique item identifier is used).**

(11) Description.

** Once per item.

(f) The Contractor shall submit the information required by paragraphs (d) and (e) of this clause as follows:

(1) End items shall be reported using the receiving report capability in Wide Area WorkFlow (WAWF) in accordance with the clause at 252.232-7003. If WAWF is not required by this contract, and the contractor is not using WAWF, follow the procedures at http://dodprocurementtoolbox.com/site/uidregistry/.

(2) Embedded items shall be reported by one of the following methods-

(i) Use of the embedded items capability in WAWF;

(ii) Direct data submission to the IUID Registry following the procedures and formats at http://dodprocurementtoolbox.com/site /uidregistry/; or

(iii) Via WAWF as a deliverable attachment for exhibit line item number (fill in) ____, Unique Item Identifier Report for Embedded Items, Contract Data Requirements List, DD Form 1423.

(g) *Subcontracts*. If the Contractor acquires by subcontract, any item(s) for which item unique identification is required in accordance with paragraph (c)(1) of this clause, the Contractor shall include this clause, including this paragraph (g), in the applicable subcontract(s), including subcontracts for commercial products or commercial services.

(End of clause)

252.223-7001 Hazard Warning Labels. (Dec 1991)

HAZARD WARNING LABELS (DEC 1991)

(a) "Hazardous material," as used in this clause, is defined in the Hazardous Material Identification and Material Safety Data clause of this contract.

(b) The Contractor shall label the item package (unit container) of any hazardous material to be delivered under this contract in accordance with the Hazard Communication Standard (29 CFR 1910.1200 et seq). The Standard requires that the hazard warning label conform to the requirements of the standard unless the material is otherwise subject to the labelling requirements of one of the following statutes:

(1) Federal Insecticide, Fungicide and Rodenticide Act;

(2) Federal Food, Drug and Cosmetics Act;

(3) Consumer Product Safety Act;

(4) Federal Hazardous Substances Act; or

(5) Federal Alcohol Administration Act.

(c) The Offeror shall list which hazardous material listed in the Hazardous Material Identification and Material Safety Data clause of this contract will be labelled in accordance with one of the Acts in paragraphs (b)(1) through (5) of this clause instead of the Hazard Communication Standard. Any hazardous material not listed will be interpreted to mean that a label is required in accordance with the Hazard Communication Standard.

MATERIAL (If None, Insert "None.")	ACT
____	____
____	____
____	____

(d) The apparently successful Offeror agrees to submit, before award, a copy of the hazard warning label for all hazardous materials not listed in paragraph (c) of this clause. The Offeror shall submit the label with the Material Safety Data Sheet being furnished under the Hazardous Material Identification and Material Safety Data clause of this contract.

(e) The Contractor shall also comply with MIL-STD-129, Marking for Shipment and Storage (including revisions adopted during the term of this contract).

(End of clause)

252.225-7043 Antiterrorism/Force Protection for Defense Contractors Outside the United States. (Jun 2015)

ANTITERRORISM/FORCE PROTECTION POLICY FOR DEFENSE CONTRACTORS OUTSIDE THE UNITED STATES (JUN 2015)

(a) *Definition*. " United States ," as used in this clause, means, the 50 States, the District of Columbia , and outlying areas.

(b) Except as provided in paragraph (c) of this clause, the Contractor and its subcontractors, if performing or traveling outside the United States under this contract, shall-

(1) Affiliate with the Overseas Security Advisory Council, if the Contractor or subcontractor is a U.S. entity;

(2) Ensure that Contractor and subcontractor personnel who are U.S. nationals and are in-country on a non-transitory basis, register with the U.S. Embassy, and that Contractor and subcontractor personnel who are third country nationals comply with any security related requirements of the Embassy of their nationality;

(3) Provide, to Contractor and subcontractor personnel, antiterrorism/force protection awareness information commensurate with that which the Department of Defense (DoD) provides to its military and civilian personnel and their families, to the extent such information can be made available prior to travel outside the United States; and

(4) Obtain and comply with the most current antiterrorism/force protection guidance for Contractor and subcontractor personnel.

(c) The requirements of this clause do not apply to any subcontractor that is-

(1) A foreign government;

(2) A representative of a foreign government; or

(3) A foreign corporation wholly owned by a foreign government.

(d) Information and guidance pertaining to DoD antiterrorism/force protection can be obtained from _TBD - AT/FP Point of Contact and website.

(End of clause)

252.225-7963	**Antiterrorism/Force Protection for Defense Contractors Outside the United States. (DEVIATION 2026-O0041)**	**(Feb 2026)**	**Deviation 2026-O0041**	**(Feb 2026)**

ANTITERRORISM/FORCE PROTECTION POLICY FOR DEFENSE CONTRACTORS OUTSIDE THE UNITED STATES (DEVIATION 2026-O0041) (FEB 2026)

(a) *Definition*. "United States," as used in this clause, means, the 50 States, the District of Columbia, and outlying areas.

(b) Except as provided in paragraph (c) of this clause, the Contractor and its subcontractors, if performing or traveling outside the United States under this contract, shall--

(1) Affiliate with the Overseas Security Advisory Council, if the Contractor or subcontractor is a U.S. entity;

(2) Ensure that Contractor and subcontractor personnel who are U.S. nationals and are in-country on a non-transitory basis, register with the U. S. Embassy, and that Contractor and subcontractor personnel who are third country nationals comply with any security related requirements of the Embassy of their nationality;

(3) Provide, to Contractor and subcontractor personnel, antiterrorism/force protection awareness information commensurate with that which the Department of Defense (DoD) provides to its military and civilian personnel and their families, to the extent such information can be made available prior to travel outside the United States; and

(4) Obtain and comply with the most current antiterrorism/force protection guidance for Contractor and subcontractor personnel.

(c) The requirements of this clause do not apply to any subcontractor that is--

(1) A foreign government;

(2) A representative of a foreign government; or

(3) A foreign corporation wholly owned by a foreign government.

(d) Information and guidance pertaining to DoD antiterrorism/force protection can be obtained from _TBD - AT/FP Point of Contact and website.

(End of clause)

252.227-7989	**Rights in Technical Data, Computer Software, and Computer Software Documentation--Other Than Commercial Products and Commercial Services. (DEVIATION 2026-O0036)**	**(Feb 2026)**	**Deviation 2026-O0036**	**(Feb 2026)**

RIGHTS IN TECHNICAL DATA, COMPUTER SOFTWARE, ANDCOMPUTER SOFTWARE DOCUMENTATION--OTHER THAN COMMERCIAL PRODUCTS OR COMMERCIAL SERVICES(DEVIATION 2026-O0036) (FEB 2026)

(a) *Definitions*. As used in this clause--

"Commercial computer software" means software developed or regularly used for nongovernmental purposes which--

(1) Has been sold, leased, or licensed to the public;

(2) Has been offered for sale, lease, or license to the public;

(3) Has not been offered, sold, leased, or licensed to the public but will be available for commercial sale, lease, or license in time to satisfy the delivery requirements of this contract; or

(4) Satisfies a criterion expressed in paragraph (1), (2), or (3) of this definition and would require only minor modification to meet the requirements of this contract.

"Computer database" means a collection of data recorded in a form capable of being processed by a computer. The term does not include computer software.

"Computer program" means a set of instructions, rules, or routines recorded in a form that is capable of causing a computer to perform a specific operation or series of operations.

"Computer software" means computer programs, source code, source code listings, object code listings, design details, algorithms, processes, flow charts, formulae and related material that would enable the software to be reproduced, recreated, or recompiled. Computer software does not include computer databases or computer software documentation.

"Computer software documentation" means owner's manuals, user's manuals, installation instructions, operating instructions, and other similar items, regardless of storage medium, that explain the capabilities of the computer software or provide instructions for using the software.

"Covered Government support contractor" means a contractor (other than a litigation support contractor covered by 252.204-7014) under a contract, the primary purpose of which is to furnish independent and impartial advice or technical assistance directly to the Government in support of the Government's management and oversight of a program or effort, rather than to directly furnish an end item or service to accomplish a program or effort, provided that the contractor--

(1) Is not affiliated with the prime contractor or a first-tier subcontractor on the program or effort, or with any direct competitor of such prime contractor or any such first-tier subcontractor in furnishing end items or services of the type developed or produced on the program or effort; and

(2) Receives access to technical data or computer software for performance of a Government contract that contains the clause at 252.227-7994, Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends.

"Detailed manufacturing or process data" means technical data that describe the steps, sequences, and conditions of manufacturing, processing or assembly used by the manufacturer to produce an item or component or to perform a process.

"Developed" means--

(1) (Applicable to technical data other than computer software documentation.) An item, component, or process exists and is workable. Thus, the item or component must have been constructed or the process practiced. Workability is generally established when the item, component, or process has been analyzed or tested sufficiently to demonstrate to reasonable people skilled in the applicable art that there is a high probability that it will operate as intended. Whether, how much, and what type of analysis or testing is required to establish workability depends on the nature of the item, component, or process, and the state of the art. To be considered "developed," the item, component, or process need not be at the stage where it could be offered for sale or sold on the commercial market, nor must the item, component, or process be actually reduced to practice within the meaning of Title 35 of the United States Code;

(2) A computer program has been successfully operated in a computer and tested to the extent sufficient to demonstrate to reasonable persons skilled in the art that the program can reasonably be expected to perform its intended purpose;

(3) Computer software, other than computer programs, has been tested or analyzed to the extent sufficient to demonstrate to reasonable persons skilled in the art that the software can reasonably be expected to perform its intended purpose; or

(4) Computer software documentation the contractor must deliver under a contract has been written, in any medium, in sufficient detail to comply with requirements under that contract.

"Developed exclusively at private expense" means development was accomplished entirely with costs charged to indirect cost pools, costs not allocated to a Government contract, or any combination thereof.

(1) Private expense determinations should be made at the lowest practicable level.

(2) Under fixed-price contracts, when total costs are greater than the firm-fixed-price or ceiling price of the contract, the additional development costs necessary to complete development shall not be considered when determining whether development was at Government, private, or mixed expense.

"Developed exclusively with Government funds" means development was not accomplished exclusively or partially at private expense.

"Developed with mixed funding" means development was accomplished partially with costs charged to indirect cost pools and/or costs not allocated to a government contract, and partially with costs charged directly to a government contract.

"Form, fit, and function data" means technical data that describe the required overall physical, functional, and performance characteristics (along with the qualification requirements, if applicable) of an item, component, or process to the extent necessary to permit identification of physically and functionally interchangeable items.

"Generated" means, with regard to technical data or computer software, first created in the performance of this contract.

"Government purpose" means any activity in which the United States Government is a party, including cooperative agreements with international or multi-national defense organizations, or sales or transfers by the United States Government to foreign governments or international organizations. Government purposes include competitive procurement, but do not include the rights to use, modify, reproduce, release, perform, display, or disclose technical data, computer software, or computer software documentation for commercial purposes or authorize others to do so.

"Government purpose rights" means the rights to--

(1) Use, modify, reproduce, release, perform, display, or disclose technical data, computer software, or computer software documentation within the Government without restriction; and

(2) Release or disclose technical data, computer software, or computer software documentation outside the Government and authorize persons to whom release or disclosure has been made to use, modify, reproduce, release, perform, display, or disclose that data or software for United States Government purposes.

"Limited rights" means the rights to use, modify, reproduce, release, perform, display, or disclose technical data, in whole or in part, within the Government. The Government may not, without the written permission of the party asserting limited rights, release or disclose the technical data outside the Government, use the technical data for manufacture, or authorize the technical data to be used by another party, except that the Government may reproduce, release, or disclose such data or authorize the use or reproduction of the data by persons outside the Government if--

(1) The reproduction, release, disclosure, or use is--

(i) Necessary for emergency repair and overhaul; or

(ii) A release or disclosure to--

(A) A covered Government support contractor in performance of its covered Government support contract for use, modification, reproduction, performance, display, or release or disclosure to a person authorized to receive limited rights technical data; or

(B) A foreign government, of technical data other than detailed manufacturing or process data, when use of such data by the foreign government is in the interest of the Government and is required for evaluational or informational purposes;

(2) The recipient of the technical data is subject to a prohibition on the further reproduction, release, disclosure, or use of the technical data; and

(3) The contractor or subcontractor asserting the restriction is notified of such reproduction, release, disclosure, or use.

"Minor modification" means a modification that does not significantly alter the nongovernmental function or purpose of the software or is of the type customarily provided in the commercial marketplace.

"Other than commercial computer software" means software that does not qualify as commercial computer software under the definition of "commercial computer software" of this clause.

"Restricted rights" apply only to other than commercial computer software and mean the Government's rights to--

(1) Use a computer program with one computer at one time. The program may not be accessed by more than one terminal or central processing unit or time shared unless otherwise permitted by this contract;

(2) Transfer a computer program to another Government agency without the further permission of the Contractor if the transferor destroys all copies of the program and related computer software documentation in its possession and notifies the licensor of the transfer. Transferred programs remain subject to the provisions of this clause;

(3) Make a reasonable number of copies of the computer software required for the purposes of safekeeping (archive), backup, modification, or other activities authorized in paragraphs (1), (2), (4) and (5) of this definition;

(4) Modify computer software provided that the Government may--

(i) Use the modified software only as provided in paragraphs (1) and (3) of this definition; and

(ii) Not release or disclose the modified software except as provided in paragraphs (2) and (5) of this clause;

(5) Use, modify, reproduce, perform, display, or release or disclose the computer software, and permit contractors, subcontractors, or covered Government support contractors to do so, for purposes set forth in subparagraph (i) of this paragraph, subject to the conditions set forth in subparagraphs (ii) of this paragraph:

(i)(A) In performance of service contracts (see FAR 37.101), to diagnose and correct deficiencies, to modify the software to enable a computer program to be combined with, adapted to, or merged with other computer programs, or when necessary to respond to urgent tactical situations, provided that the Government notifies the party which has granted restricted rights that any such release or disclosure to particular contractors or subcontractors was made;

(B) To perform emergency repairs or overhaul of items or components procured under this or a related contract, when necessary to perform such repairs or overhaul; or

(C) For the management and oversight of a program or effort by a person authorized to receive restricted rights computer software, including in the performance of covered Government support contracts.

(ii)(A) Any contractor, subcontractor, or covered Government support contractor receiving access to the software for the purposes of subparagraphs (i), (ii), or (iii) of this paragraph shall be subject to the use and nondisclosure agreement at 227.7103-7 or be performing a Government contract that contains the clause at 252.227-7994, Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends;

(B) The Government must not permit any recipient of the software under this paragraph to decompile, disassemble, or reverse engineer the software, or use software decompiled, disassembled, or reverse engineered by the Government pursuant to paragraph (4) of this definition, for any other purpose; and

(C) Any use, modification, reproduction, performance, display, release, or disclosure of the computer software under this paragraph remains subject to the limitations in paragraphs (1) through (4) of this definition.

"Small Business Innovation Research/Small Business Technology Transfer (SBIR/STTR) data" means all technical data or computer software developed or generated in the performance of a phase I, II, or III SBIR/STTR contract or subcontract.

"Technical data" means recorded information, regardless of the form or method of the recording, of a scientific or technical nature (including computer software documentation). The term does not include computer software or financial, administrative, cost or pricing, or management information, or information incidental to contract administration.

"Unlimited rights" means rights to use, modify, reproduce, perform, display, release, or disclose technical data, computer software, or computer software documentation in whole or in part, in any manner, and for any purpose whatsoever, and to have or authorize others to do so.

(b) *Applicability*. (1) Except as provided in paragraph (b)(2) of this clause--

(i) This clause governs all technical data related to other than commercial products or commercial services or to any portion of a commercial product or commercial service that was developed in any part at Government expense;

(ii) This clause governs all other than commercial computer software or other than commercial computer software documentation; and

(iii) The clause at DFARS 252.227-7990, Technical Data--Commercial Products and Commercial Services, governs the technical data related to any portion of a commercial product or commercial service that was developed exclusively at private expense.

(2) The clause at DFARS 252.227-7993, Rights in Other Than Commercial Technical Data and Computer Software--Small Business Innovation Research Program and Small Business Technology Transfer Program, governs technical data that are SBIR/STTR data.

(c) *Rights in technical data and computer software*. The Contractor grants or shall obtain for the Government the following royalty free, worldwide, nonexclusive, irrevocable license rights:

(1) *Unlimited rights*. The Government shall have unlimited rights in technical data, computer software, or computer software documentation that are--

(i) Data related to an item, component, or process which has been or will be developed exclusively with Government funds;

(ii) Studies, analyses, test data, or similar data produced for this contract, when the study, analysis, test, or similar work was specified as an element of performance;

(iii) Technical data created exclusively with Government funds in the performance of a contract that does not require the development, manufacture, construction, or production of items, components, or processes;

(iv) Form, fit, and function data;

(v) Technical data necessary for installation, operation, maintenance, or training purposes (other than detailed manufacturing or process data);

(vi) Government-furnished corrections or changes to--

(A) Technical data furnished to the Contractor by the Government; or

(B) Computer software or computer software documentation;

(vii) Data, computer software, or computer software documentation that is publicly available or previously released or disclosed by the Contractor or subcontractor without restrictions on further use, release or disclosure, other than a release or disclosure resulting from the sale, transfer, or other assignment of interest in the technical data to another party or the sale or transfer of some or all of a business entity or its assets to another party;

(viii) Data, computer software, or computer software documentation in which the Government has obtained unlimited rights under another Government contract or as a result of negotiations;

(ix) Data furnished to the Government, under this or any other Government contract or subcontract, with--

(A) Government purpose license rights or limited rights and the restrictive condition(s) has/have expired; or

(B) Government purpose rights and the Contractor's exclusive right to use such data for commercial purposes has expired; or

(x) Computer software developed exclusively with Government funds;

(xi) Computer software documentation the contractor must deliver under this contract; or

(xvii) Computer software or computer software documentation furnished to the Government, under this or any other Government contract or subcontract with--

(A) Restricted rights in computer software, limited rights in technical data, or government purpose license rights and the restrictive conditions have expired; or

(B) Government purpose rights and the Contractor's exclusive right to use such software or documentation for commercial purposes has expired.

(2) *Government purpose rights*. (i) The Government shall have government purpose rights for a 5-year period, or such other period as may be negotiated, in technical data or computer software--

(A) Related to items, components, or processes developed with mixed funding except when the Government is entitled to unlimited rights in such data or software as provided in paragraphs (c)(1)(ii), (c)(1)(iv) through (c)(1)(ix), and (c)(1)(xii) through (c)(1)(x)(v)(i) of this clause; or

(B) Created with mixed funding in the performance of a contract that does not require the development, manufacture, construction, or production of items, components, or processes.

(ii) The 5-year period, or such other period as may have been negotiated, shall begin upon execution of the contract, subcontract, letter contract (or similar contractual instrument), contract modification, or option exercise that required development of the items, components, or processes, development of the computer software, or creation of the data described in paragraph (c)(2)(i)(B) of this clause. Upon expiration of the 5-year or other negotiated period, the Government shall have unlimited rights in the technical data or computer software.

(iii) The Government will not release or disclose technical data or computer software in which it has government purpose rights unless--

(A) Prior to release or disclosure, the intended recipient completes the nondisclosure agreement at DFARS 227.7103-7; or

(B) The recipient is a Government contractor receiving access to the data or software for performance of a Government contract that contains the clause at DFARS 252.227-7994, Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends.

(iv) The Contractor has the exclusive right, including the right to license others, to use technical data or computer software in which the Government has obtained government purpose rights under this contract for any commercial purpose during the time period specified in the government purpose rights legend prescribed in paragraph (g)(3) of this clause.

(3) *Limited rights*. (i) Except as provided in paragraphs (c)(1)(ii) and (c)(1)(iv) through (c)(1)(ix) of this clause, the Government shall have limited rights in technical data--

(A) Related to items, components, or processes developed exclusively at private expense and marked with the limited rights legend prescribed in paragraph (g) of this clause; or

(B) Created exclusively at private expense in the performance of a contract that does not require the development, manufacture, construction, or production of items, components, or processes.

(ii) The Government will require a recipient of limited rights data for emergency repair or overhaul to destroy the data and all copies in its possession promptly following completion of the emergency repair/overhaul and to notify the Contractor that the data have been destroyed.

(iii) The Contractor, its subcontractors, and suppliers are not required to provide the Government additional rights to use, modify, reproduce, release, perform, display, or disclose technical data furnished to the Government with limited rights. However, if the Government desires to obtain additional rights in technical data in which it has limited rights, the Contractor agrees to promptly enter into negotiations with the Contracting Officer to determine whether there are acceptable terms for transferring such rights. The Contractor shall ensure that any resulting license agreement, made part of the contract, lists or describes all technical data for which the Government has been granted additional rights and specifies those additional rights.

(iv) The Contractor acknowledges that--

(A) The Government is authorized to release or disclose limited rights data to covered Government support contractors;

(B) The Government will notify the contractor of such release or disclosure;

(C) The Contractor or the party asserting restrictions in the limited rights legend may--

(1) Require each covered Government support contractor to enter into a nondisclosure agreement directly with the Contractor or the party asserting restrictions regarding use of the data; or

(2) Waive in writing the requirement for a nondisclosure agreement; and

(D) Any such nondisclosure agreement shall address the restrictions on the covered Government support contractor's use of the limited rights data as set forth in the clause at DFARS 252.227-7994, Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends. The nondisclosure agreement shall not include any additional terms and conditions unless mutually agreed to by the parties to the nondisclosure agreement.

(4) *Restricted rights*. (i) The Government shall have restricted rights in other than commercial computer software the contractor must deliver, or that is otherwise provided, to the Government under this contract that was developed exclusively at private expense.

(ii) The Contractor, its subcontractors, or suppliers are not required to provide the Government additional rights in other than commercial computer software delivered or otherwise provided to the Government with restricted rights. However, if the Government desires to obtain additional rights in such software, the Contractor agrees to promptly enter into negotiations with the Contracting Officer to determine whether there are acceptable terms for transferring such rights. The Contractor shall ensure that any resulting license agreement, made part of the contract, lists or describes all other than commercial computer software for which the Government has been granted additional rights and specifies those additional rights.

(iii) The Contractor acknowledges that--

(A) The Government is authorized to release or disclose restricted rights computer software to covered Government support contractors;

(B) The Government will notify the Contractor of such release or disclosure;

(C) The Contractor or the party asserting restrictions in the restricted rights legend may--

(1) Require each such covered Government support contractor to enter into a nondisclosure agreement directly with the Contractor or the party asserting restrictions regarding the use of the software; or

(2) Waive in writing the requirement for a nondisclosure agreement; and

(D) Any such nondisclosure agreement shall address the restrictions on the covered Government support contractor's use of the restricted rights software as set forth in the clause at DFARS 252.227-7994, Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends. The nondisclosure agreement shall not include any additional terms and conditions unless mutually agreed to by the parties to the nondisclosure agreement.

(5) *Specifically negotiated license rights*. The standard license rights granted to the Government under paragraphs (c)(1) through (c)(4) of this clause, including the period during which the Government shall have government purpose rights in technical data or computer software, may be modified by mutual agreement but shall not provide the Government lesser rights than provided in the definition of "limited rights" or restricted rights" of this clause. Any negotiated rights shall be identified in a license agreement made part of this contract.

(6) *Prior government rights*. Technical data or computer software that will be delivered, furnished, or otherwise provided to the Government under this contract, in which the Government has previously obtained rights shall be delivered, furnished, or provided with the preexisting rights, unless--

(i) The parties have agreed otherwise; or

(ii) The restrictions on the Government's rights to use, modify, reproduce, release, perform, display, or disclose the data or software have expired or no longer apply.

(7) *Release from liability*. The Contractor agrees to release the Government from liability for any authorized release or disclosure of technical data or computer software made in accordance with this clause or any negotiated license agreement. This release from liability for the Government also applies to releases or disclosures made by a third party who received the data or software from an authorized recipient. For any unauthorized use or disclosure by such third parties of technical data or computer software marked with restrictive legends, the Contractor agrees to seek relief solely from that party.

(d) *Contractor rights in technical data and computer software*. The Contractor retains all rights not granted to the Government.

(e) *Third party copyrighted data and software*. The Contractor shall not, without the written approval of the Contracting Officer, incorporate any copyrighted data or software in the technical data or computer software the contractor must deliver under this contract unless the Contractor is the copyright owner or has obtained license rights for the Government of the appropriate scope set forth in paragraph (c) of this clause, and has affixed a statement of the license or licenses obtained on behalf of the Government and other persons to the data transmittal document.

(f) *Identification and delivery of data to be delivered with restrictions on use, release, or disclosure*. (1) This paragraph does not apply to restrictions based solely on copyright.

(2) Except as provided in paragraph (f)(3) of this clause, technical data or computer software that the Contractor asserts should be furnished to the Government with restrictions on use, release, or disclosure are identified in an attachment to this contract (the Attachment). The Contractor shall not deliver any data or software with restrictive markings unless the data are listed on the Attachment.

(3) In addition to the assertions made in the Attachment, the Contractor may identify other assertions after award when based on new information or inadvertent omissions unless the inadvertent omissions would have materially affected the source selection decision. The Contractor shall submit such identification and assertions to the Contracting Officer as soon as practicable prior to the scheduled date for delivery of the data or software, in the following format, and signed by an official authorized to contractually obligate the Contractor:

Identification and Assertion of Restrictions on the Government's Use, Release, or Disclosure of Technical Data or Computer Software

The Contractor asserts for itself, or the persons identified below, that the Government's rights to use, release, or disclose the following technical data or computer software should be restricted--

Technical Data or Computer Software to be Furnished With Restrictions[1]	Basis for Assertion[2]	Asserted Rights Category[3]	Name of Person Asserting Restrictions[4]
(LIST)	(LIST)	(LIST)	(LIST)
══	══	══	══

[1] If the assertion is applicable to items, components or processes developed at private expense, identify both the data and each such item, component, or process.

[2] Generally, the development of an item, component, process, or computer software at private expense, either exclusively or partially, is the only basis for asserting restrictions on the Government's rights to use, release, or disclose computer software or technical data related to such items, components, or processes. Indicate whether development was exclusively or partially at private expense. If development was not at private expense, enter the specific reason for asserting that the Government's rights should be restricted.

[3] Enter asserted rights category (e.g., rights in SBIR/STTR data generated under another contract, limited rights, restricted rights, or government purpose rights under this or a prior contract, or specifically negotiated licenses).

4 Corporation, individual, or other person, as appropriate.
Date ____
Printed Name and Title ____
Signature ____
(End of identification and assertion)

(4) When requested by the Contracting Officer, the Contractor shall provide sufficient information to enable the Contracting Officer to evaluate the Contractor's assertions. The Contracting Officer reserves the right to add the Contractor's assertions to the Attachment and validate any listed assertion, at a later date, in accordance with the procedures in the DFARS 252.227-7997, Validation of Asserted Restrictions, clause of this contract.

(g) *Marking requirements*. The Contractor, and its subcontractors or suppliers, may only assert restrictions on the Government's rights to use, modify, reproduce, release, perform, display, or disclose technical data or computer software the Contractor must deliver under this contract by marking the deliverable data or software subject to restriction. Except as provided in paragraph (g)(7) of this clause, only the following legends are authorized under this contract: the government purpose rights legend at paragraph (g)(3) of this clause; the limited rights legend at paragraph (g)(4) of this clause; the restricted rights legend at paragraph (g)(5) of this clause; the special license rights legend at paragraph (g)(6) of this clause; and a notice of copyright as prescribed under 17 U.S.C. 401 or 402.

(1) *General marking instructions*. The Contractor, or its subcontractors or suppliers, shall conspicuously and legibly mark the appropriate legend on all technical data or computer software that qualify for such markings. The authorized legends shall be placed on the transmittal document or storage container and, for printed material, each page of the printed material containing technical data or computer software for which restrictions are asserted. When only portions of a page of printed material are subject to the asserted restrictions, such portions shall be identified by circling, underscoring, with a note, or other appropriate identifier. Technical data or computer software transmitted directly from one computer or computer terminal to another shall contain a notice of asserted restrictions. For software that will or might be used in combat or situations that simulate combat conditions, the contractor shall not insert instructions that interfere with or delay the operation of computer software in order to display a restrictive rights legend or other license statement at any time prior to or during use of the computer software, or otherwise cause such interference or delay, unless the Contracting Officer's written permission to deliver such software has been obtained prior to delivery. Reproductions of technical data or computer software or any portions thereof subject to asserted restrictions shall also reproduce the asserted restrictions.

(2) *Omitted markings*. (i) Technical data or computer software delivered or otherwise provided under this contract without restrictive markings will be presumed to have been delivered with unlimited rights. To the extent practicable, if the Contractor has requested permission (see paragraph (g)(2)(ii) of this clause) to correct an inadvertent omission of markings, the Contracting Officer will not release or disclose the technical data or computer software pending evaluation of the request.

(ii) The Contractor may request permission to have conforming and justified restrictive markings placed on unmarked technical data or computer software at its expense. The request must be received by the Contracting Officer within 6 months following the furnishing or delivery of such technical data or computer software, or any extension of that time approved by the Contracting Officer. The Contractor shall--

(A) Identify the technical data or computer software that should have been marked;

(B) Demonstrate that the omission of the marking was inadvertent, the proposed marking is justified and conforms with the requirements for the marking of technical data or computer software contained in this clause; and

(C) Acknowledge, in writing, that the Government has no liability with respect to any disclosure, reproduction, or use of the technical data or computer software made prior to the addition of the marking or resulting from the omission of the marking.

(3) *Government purpose rights markings*. Technical data or computer software delivered or otherwise furnished to the Government with government purpose rights shall be marked as follows:

GOVERNMENT PURPOSE RIGHTS

Contract Number ____

Contractor Name ____
Contractor Address ____
Expiration Date ____

The Government's rights to use, modify, reproduce, release, perform, display, or disclose these technical data or computer software are restricted by the government purpose rights license in the DFARS 252.227-7989, Rights in Technical Data, Computer Software, and Computer Software Documentation--Other Than Commercial Products and Commercial Services, clause contained in the above identified contract. No restrictions apply after the expiration date shown above. Any reproduction of technical data or portions thereof marked with this legend must also reproduce the markings.

(End of legend)

(4) *Limited rights markings*. Data delivered or otherwise furnished to the Government with limited rights shall be marked as follows:

LIMITED RIGHTS

Contract Number ____
Contractor Name ____
Contractor Address ____

The Government's rights to use, modify, reproduce, release, perform, display, or disclose these technical data are restricted by the limited rights license in the DFARS 252.227-7989, Rights in Technical Data, Computer Software, and Computer Software Documentation--Other Than Commercial Products and Commercial Services, clause contained in the above identified contract. Any reproduction of technical data or portions thereof marked with this legend must also reproduce the markings. Any person, other than the Government, who has been provided access to such data must promptly notify the above named Contractor.

(End of legend)

(5) Restricted rights markings. Software delivered or otherwise furnished to the Government with restricted rights shall be marked as follows:

RESTRICTED RIGHTS

Contract Number ____
Contractor Name ____
Contractor Address ____

The Government's rights to use, modify, reproduce, release, perform, display, or disclose this software are restricted by the restricted rights license in the DFARS 252.227-7014, Rights in Other Than Commercial Computer Software and Other Than Commercial Computer Software Documentation, clause contained in the above identified contract. Any reproduction of computer software or portions thereof marked with this legend must also reproduce the markings. Any person, other than the Government, who has been provided access to such software must promptly notify the above named Contractor.

(End of legend)

(6) Special license rights markings. (i) Technical data or computer software in which the Government's rights stem from a specifically negotiated license shall be marked as follows:

SPECIAL LICENSE RIGHTS

The Government's rights to use, modify, reproduce, release, perform, display, or disclose these data or software are restricted by Contract Number *[Insert contract number]* ____, *License Number [Insert license identifier]* ____. Any reproduction of technical data, computer software, or portions thereof marked with this legend must also reproduce the markings.

(End of legend)

(ii) For purposes of this clause, special licenses do not include government purpose license rights acquired under a prior contract (see paragraph (c)(5) of this clause).

(7) *Preexisting data or software markings*. If the terms of a prior contract or license permitted the Contractor to restrict the Government's rights to use, modify, reproduce, release, perform, display, or disclose technical data or computer software deliverable under this contract, and those restrictions are still applicable, the Contractor may mark such data or software with the appropriate restrictive legend for which the data or software qualified under the prior contract or license. The Contractor shall follow the marking procedures in paragraph (g)(1) of this clause.

(h) *Contractor procedures and records*. Throughout performance of this contract, the Contractor and its subcontractors or suppliers that will deliver technical data or computer software with other than unlimited rights, shall--

(1) Have, maintain, and follow written procedures sufficient to assure that restrictive markings are used only when authorized by the terms of this clause; and

(2) Maintain records sufficient to justify the validity of any restrictive markings on technical data or computer software delivered under this contract.

(i) *Removal of unjustified and nonconforming markings*--(1) *Unjustified technical data markings*. The rights and obligations of the parties regarding the validation of restrictive markings on technical data or computer software delivered or to be delivered under this contract are contained in the DFARS 252.227-7997, Validation of Asserted Restrictions, clause of this contract. Notwithstanding any provision of this contract concerning inspection and acceptance, the Government may ignore or, at the Contractor's expense, correct or strike a marking if, in accordance with the procedures in the Validation of Asserted Restrictions clause of this contract, a restrictive marking is determined to be unjustified.

(2) *Nonconforming technical data or computer software markings*. A nonconforming marking is a marking placed on technical data or computer software delivered or otherwise furnished to the Government under this contract that is not in the format authorized by this contract. Correction of nonconforming markings is not subject to the DFARS 252.227-7997, Validation of Asserted Restrictions, clause of this contract. If the Contracting Officer notifies the Contractor of a nonconforming marking and the Contractor fails to remove or correct such marking within 60 days, the Government may ignore or, at the Contractor's expense, remove or correct any nonconforming marking.

(j) *Relation to patents*. Nothing contained in this clause shall imply a license to the Government under any patent or be construed as affecting the scope of any license or other right otherwise granted to the Government under any patent.

(k) *Limitation on charges for rights in technical data, computer software, or computer software documentation*. (1) The Contractor shall not charge to this contract any cost, including, but not limited to, license fees, royalties, or similar charges, for rights in technical data, computer software, or computer software documentation the Contractor must deliver under this contract when--

(i) The Government has acquired, by any means, the same or greater rights in the data or software; or

(ii) The data or software are available to the public without restrictions.

(2) The limitation in paragraph (k)(1) of this clause--

(i) Includes costs charged by a subcontractor or supplier, at any tier, or costs incurred by the Contractor to acquire rights in subcontractor or supplier technical data, computer software, or computer software documentation, if the subcontractor or supplier has been paid for such rights under any other Government contract or under a license conveying the rights to the Government; and

(ii) Does not include the reasonable costs of reproducing, handling, or mailing the documents or other media in which the technical data, computer software, or computer software documentation will be delivered.

(l) *Applicability to subcontractors or suppliers*. (1) The Contractor shall ensure that the rights afforded its subcontractors and suppliers under 10 U.S.C. 3771-3775, 10 U.S.C. 3781-3786, and the identification, assertion, and delivery processes of paragraph (f) of this clause are recognized and protected.

(2)(i) Except as provided in paragraph (l)(2)(ii) of this clause, the Contractor shall include this clause in any subcontract or contractual instrument under which technical data or computer software will be obtained from a subcontractor or supplier for delivery to the Government. This requirement applies to technical data or software related to other than commercial products or commercial services, or related to commercial products or commercial services developed in any part with Government funds. The Contractor shall also require its subcontractors and suppliers to include this clause, without alteration except to identify the parties, in any contractual instrument under which technical data or computer software will be obtained from a subcontractor or supplier for delivery to the Government. This clause will govern the technical data related to an other than commercial product or service or to any portion of a commercial product or commercial service that was developed in any part at Government expense, and the clause at 252.227-7990 will govern the technical data related to any portion of a commercial item that was developed exclusively at private expense. No other clause shall be used to expand or reduce the Government's, the Contractor's, or a higher-tier subcontractor's or supplier's rights in a subcontractor's or supplier's technical data, computer software, or computer software documentation.

(ii) The Contractor shall use the clause at DFARS 252.227-7993, Rights in Other Than Commercial Technical Data and Computer Software--Small Business Innovation Research Program and Small Business Technology Transfer Program, to govern technical data, computer software, or computer software documentation that is SBIR/STTR data.

(3) Technical data, computer software, or computer software documentation a subcontractor or supplier must deliver shall normally be delivered to the next higher-tier contractor, subcontractor, or supplier. However, when there is a requirement in the prime contract for data which may be submitted with other than unlimited rights by a subcontractor or supplier, then said subcontractor or supplier may fulfill its requirement by submitting such data or software directly to the Government, rather than through a higher-tier contractor, subcontractor, or supplier.

(4) The Contractor and higher-tier subcontractors or suppliers shall not use the award of a contract as economic leverage to obtain rights in technical data, computer software, or computer software documentation from their subcontractors or suppliers.

(5) In no event shall the Contractor use its obligation to recognize and protect subcontractor or supplier rights in technical data, computer software, or computer software documentation as an excuse for failing to satisfy its contractual obligations to the Government.

(End of clause)

252.237-7023 Continuation of Essential Contractor Services. (Oct 2010)

CONTINUATION OF ESSENTIAL CONTRACTOR SERVICES (OCT 2010)

(a) *Definitions*. As used in this clause-

(1) "Essential contractor service" means a service provided by a firm or individual under contract to DoD to support mission-essential functions, such as support of vital systems, including ships owned, leased, or operated in support of military missions or roles at sea; associated support activities, including installation, garrison, and base support services; and similar services provided to foreign military sales customers under the Security Assistance Program. Services are essential if the effectiveness of defense systems or operations has the potential to be seriously impaired by the interruption of these services, as determined by the appropriate functional commander or civilian equivalent.

(2) "Mission-essential functions" means those organizational activities that must be performed under all circumstances to achieve DoD component missions or responsibilities, as determined by the appropriate functional commander or civilian equivalent. Failure to perform or sustain these functions would significantly affect DoD's ability to provide vital services or exercise authority, direction, and control.

(b) The Government has identified all or a portion of the contractor services performed under this contract as essential contractor services in support of mission essential functions. These services are listed in attachment ____, Mission-Essential Contractor Services, dated ____.

(c)(1) The Mission-Essential Contractor Services Plan submitted by the Contractor, is incorporated in this contract.

(2) The Contractor shall maintain and update its plan as necessary. The Contractor shall provide all plan updates to the Contracting Officer for approval.

(3) As directed by the Contracting Officer, the Contractor shall participate in training events, exercises, and drills associated with Government efforts to test the effectiveness of continuity of operations procedures and practices.

(d)(1) Notwithstanding any other clause of this contract, the contractor shall be responsible to perform those services identified as essential contractor services during crisis situations (as directed by the Contracting Officer), in accordance with its Mission-Essential Contractor Services Plan.

(2) In the event the Contractor anticipates not being able to perform any of the essential contractor services identified in accordance with paragraph (b) of this section during a crisis situation, the Contractor shall notify the Contracting Officer or other designated representative as expeditiously as possible and use its best efforts to cooperate with the Government in the Government's efforts to maintain the continuity of operations.

(e) The Government reserves the right in such crisis situations to use Federal employees, military personnel or contract support from other contractors, or to enter into new contracts for essential contractor services.

(f) Changes. The Contractor shall segregate and separately identify all costs incurred in continuing performance of essential services in a crisis situation. The Contractor shall notify the Contracting Officer of an increase or decrease in costs within ninety days after continued performance has been directed by the Contracting Officer, or within any additional period that the Contracting Officer approves in writing, but not later than the date of final payment under the contract. The Contractor's notice shall include the Contractor's proposal for an equitable adjustment and any data supporting the increase or decrease in the form prescribed by the Contracting Officer. The parties shall negotiate an equitable price adjustment to the contract price, delivery schedule, or both as soon as is practicable after receipt of the Contractor's proposal.

(g) The Contractor shall include the substance of this clause, including this paragraph (g), in subcontracts for the essential services.

(End of clause)

252.249-7000 Special Termination Costs. (Dec 1991)

SPECIAL TERMINATION COSTS (DEC 1991)

(a) *Definition.* "Special termination costs," as used in this clause, means only costs in the following categories as defined in Part 31 of the Federal Acquisition Regulation (FAR)-

(1) Severance pay, as provided in FAR 31.205-6(g);

(2) Reasonable costs continuing after termination, as provided in FAR 31.205-42(b);

(3) Settlement of expenses, as provided in FAR 31.205-42(g);

(4) Costs of return of field service personnel from sites, as provided in FAR 31.205-35 and FAR 31.205-46(c); and

(5) Costs in paragraphs (a)(1), (2), (3), and (4) of this clause to which subcontractors may be entitled in the event of termination.

(b) Notwithstanding the Limitation of Cost/Limitation of Funds clause of this contract, the Contractor shall not include in its estimate of costs incurred or to be incurred, any amount for special termination costs to which the Contractor may be entitled in the event this contract is terminated for the convenience of the Government.

(c) The Contractor agrees to perform this contract in such a manner that the Contractor's claim for special termination costs will not exceed $ ____. The Government shall have no obligation to pay the Contractor any amount for the special termination costs in excess of this amount.

(d) In the event of termination for the convenience of the Government, this clause shall not be construed as affecting the allowability of special termination costs in any manner other than limiting the maximum amount of the costs payable by the Government.

(e) This clause shall remain in full force and effect until this contract is fully funded.

(End of clause)

Section J - List of Attachments

LIST OF DOCUMENTS, EXHIBITS AND OTHER ATTACHMENTS:

The following document(s), exhibit(s), and other attachment(s) are hereby made a part of this solicitation and will be incorporated into the contract awarded under this solicitation, with the exception of ATCH S-1 through S-4:

ATCH J-1 RESERVED (Indirect Rate Ceilings shall be incorporated at time of contract award)

ATCH J-2 Department of Labor, Wage Determination WD-15-4539 (Rev.-28)

ATCH J-3 Collective Bargaining Agreement Wage Rates June 2025 between United Steel Workers (USW) and awardee

ATCH J-4 DD Form 254, Department of Defense Contract Security Classification

ATCH J-5 Statement of Work (SOW)

ATCH J-6 Organic Government Property (OGP)

ATCH J-7 Cost Model Workbook (proposal will be incorporated at time of contract award)

ATCH J-8 RESERVED. Technical Proposal (proposal will be incorporated at time of contract award)

ATCH J-9 SOW Attachments

Exhibit A Contract Data Requirements List (CDRLs) (DD Form 1423), including excel summary sheet

ATCH S-1 Program Data and Technical Library

ATCH S-2 Notional Organizational Structure

ATCH S-3 Past Performance Questionnaire

ATCH S-4 Non-Disclosure Agreement

Exhibits:

Id	Exhibit Name	Exhibit Description	Reference Identifier	Date	Line Item
A	Section J. Exh A - CDRLs List by CLIN - Amendment 1	Contract Data Requirements List (CDRL)		24 Apr 2026	0007

Section K - Representations, Certification, & Other Statements

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions.	Sep 2024		
52.240-90	Security Prohibitions and Exclusions Representations and Certifications.	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		
252.225-7057	Preaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.	Aug 2022		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	Jun 2023		
252.240-7998	Prohibition on the Procurement of Covered Semiconductor Products and Services from Companies Providing Covered Semiconductor Products and Services to Huawei - Representation. (DEVIATION 2025-O0007)	Sep 2025	Deviation 2025-O0007	Sep 2025

FAR Clauses Incorporated by Full Text

52.204-8	**Annual Representations and Certifications. (DEVIATION 2025-O0003 and 2025-O0004)**	**(Mar 2025)**	**Deviation 2025-O0004**	**(Mar 2025)**

Annual Representations and Certifications (MAR 2025)(DEVIATION 2025-O0003 and 2025-O0004)

(a)

(1) The North American Industry Classification System (NAICS) code for this acquisition is 561210.

(2) The small business size standard is $47M.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519 if the acquisition-

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b)

(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

(i) [ ] Paragraph (d) applies.

(ii) [ ] Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.

(c)

(1) The following representations or certifications in SAM are applicable to this solicitation as indicated:

(i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless-

(A) The acquisition is to be made under the simplified acquisition procedures in part 13;

(B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or

(C) The solicitation is for utility services for which rates are set by law or regulation.

(ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed $150,000.

(iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. This provision applies to all solicitations.

(iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include the provision at 52.204-7, System for Award Management.

(v) 52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that-

(A) Are not set aside for small business concerns;

(B) Exceed the simplified acquisition threshold; and

(C) Are for contracts that will be performed in the United States or its outlying areas.

(vi) 52.204-26, Covered Telecommunications Equipment or Services-Representation. This provision applies to all solicitations.

(vii) 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations-Representation.

(viii) 52.209-5, Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.

(ix) 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.

(x) 52.214-14, Place of Performance-Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.

(xi) 52.215-6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.

(xii) 52.219-1, Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.

(B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.

(C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.

(xiii) 52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(xiv) [Reserved]

(xv) [Reserved]

(xvi) 52.222-38, Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.

(xvii) 52.223-1, Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of biobased products in USDA-designated product categories; or include the clause at 52.223-2, Reporting of Biobased Products Under Service and Construction Contracts.

(xviii) 52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA-designated items.

(xix) [Reserved]

(xx) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.

(xxi) 52.225-4, Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.) This provision applies to solicitations containing the clause at 52.225-3.

(A) If the acquisition value is less than $50,000, the basic provision applies.

(B) If the acquisition value is $50,000 or more but is less than $100,000, the provision with its Alternate II applies.

(C) If the acquisition value is $100,000 or more but is less than $102,280, the provision with its Alternate III applies.

(xxii) 52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.

(xxiii) 52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan-Certification. This provision applies to all solicitations.

(xxiv) 52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications. This provision applies to all solicitations.

(xxv) 52.226-2, Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the Contracting Officer:

[*Contracting Officer check as appropriate.*]

[ ] (i) 52.204-17, Ownership or Control of Offeror.

[ ] (ii) 52.204-20, Predecessor of Offeror.

[ ] (iii) 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.

[ ] (iv) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment- Certification.

[ ] (v) 52.222-52, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Certification.

[ ] (vi) 52.227-6, Royalty Information.

[ ] (A) Basic.

[ ] (B) Alternate I.

[ ] (vii) 52.227-15, Representation of Limited Rights Data and Restricted Computer Software.

(d) The offeror has completed the annual representations and certifications electronically in SAM website accessed through https://www.sam.gov. After reviewing the SAM information, the offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [*offeror to insert changes, identifying change by clause number, title, date*]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR Clause # Title Date Change
____

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

(End of provision)

52.209-5 Certification Regarding Responsibility Matters. (Deviation) (Feb 2026)

CERTIFICATION REGARDING RESPONSIBILITY MATTERS (FEB 2026) (DEVIATION)

(a)

(1) The Offeror certifies, to the best of its knowledge and belief, that-

(i) The Offeror and/or any of its Principals-

(A) Are ☐ are not ☐ presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(B) Have ☐ have not ☐, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, State, or local) contract or subcontract; violation of Federal or State antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property (if offeror checks "have", the offeror shall also see 52.209-7, if included in this solicitation);

(C) Are ☐ are not ☐ presently indicted for, or otherwise criminally or civilly charged by a governmental entity with, commission of any of the offenses enumerated in paragraph (a)(1)(i)(B) of this provision; and

(D) Have ☐, have not ☐, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied. Federal taxes are considered delinquent if both of the following criteria apply:

(*1*) *The tax liability is finally determined*. The liability is finally determined if it has been assessed. A liability is not finally determined if a pending administrative or judicial challenge remains. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(*2*) *The taxpayer is delinquent in making payment*. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) The Offeror has ☐ has not ☐, within a 3-year period preceding this offer, had one or more contracts terminated for default by any Federal agency.

(2) "Principal," for the purposes of this certification, means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (*e.g.*, general manager; plant manager; head of a division or business segment; and similar positions).

(b) The Offeror shall provide immediate written notice to the Contracting Officer if, at any time prior to contract award, the Offeror learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstances.

(c) A certification that any of the items in paragraph (a) of this provision exists will not necessarily result in withholding of an award under this solicitation. However, the Government will consider the certification in connection with a determination of the Offeror's responsibility. Failure of the Offeror to furnish a certification or provide such additional information as requested by the Contracting Officer may render the Offeror nonresponsible.

(d) This provision does not require establishment of a system of records in order to render, in good faith, the certification required by paragraph (a). The knowledge and information of an Offeror is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.

(e) The certification in paragraph (a) of this provision is a material representation of fact upon which reliance was placed when making award. If the Government later determines that the Offeror knowingly rendered an erroneous certification, in addition to other remedies available to the Government, the Contracting Officer may terminate the contract resulting from this solicitation for default.

(End of provision)

52.209-7 Information Regarding Responsibility Matters. (Feb 2026)

INFORMATION REGARDING RESPONSIBILITY MATTERS (FEB 2026)

(a) *Definitions*. As used in this provision-

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (*e.g.*, Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than $10,000,000 means-

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (*e.g.*, general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than $10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of $5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in-

(A) The payment of a monetary fine or penalty of $5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of $100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via https://www.sam.gov (see 52.204-7).

(End of provision)

52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. (Deviation) (Feb 2026)

REPRESENTATION BY CORPORATIONS REGARDING DELINQUENT TAX LIABILITY OR A FELONY CONVICTION UNDER ANY FEDERAL LAW (FEB 2026) (DEVIATION)

(a) The Government will not enter into a contract with any corporation that-

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that-

(1) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

52.209-12 Certification Regarding Tax Matters. (Oct 2025)

CERTIFICATION REGARDING TAX MATTERS (OCT 2025)

(a) This provision implements section 523 of Division B of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts.

(b) If the Offeror is proposing a total contract price that will exceed $7 million (including options), the Offeror shall certify that, to the best of its knowledge and belief, it

(1) Has ☐ filed all Federal tax returns required during the three years preceding the certification;

(2) Has not ☐ been convicted of a criminal offense under the Internal Revenue Code of 1986; and

(3) Has not ☐, more than 90 days prior to certification, been notified of any unpaid Federal tax assessment for which the liability remains unsatisfied, unless the assessment is the subject of an installment agreement or offer in compromise that has been approved by the Internal Revenue Service and is not in default, or the assessment is the subject of a non-frivolous administrative or judicial proceeding.

(End of provision)

52.209-13 Violation of Arms Control Treaties or Agreements-Certification. (Feb 2026)

VIOLATION OF ARMS CONTROL TREATIES OR AGREEMENTS-CERTIFICATION (FEB 2026)

(a) This provision does not apply to acquisitions at or below the simplified acquisition threshold or to acquisitions of commercial products and commercial services as defined in Federal Acquisition Regulation 2.101.

(b) *Certification*. [*Offeror shall check either (1) or (2).*]

☐ (1) The Offeror certifies that-

(i) It does not engage and has not engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/; and

(ii) No entity owned or controlled by the Offeror has engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at https://www.state.gov/bureaus-offices /under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/; or

☐ (2) The Offeror is providing separate information with its offer in accordance with paragraph (d)(2) of this provision.

(c) Procedures for reviewing the annual unclassified report (see paragraph (b)(1) of this provision). For clarity, references to the report in this section refer to the entirety of the annual unclassified report, including any separate reports that are incorporated by reference into the annual unclassified report.

(1) Check the table of contents of the annual unclassified report and the country section headings of the reports incorporated by reference to identify the foreign countries listed there. Determine whether the Offeror or any person owned or controlled by the Offeror may have engaged in any activity related to one or more of such foreign countries.

(2) If such activity might have occurred, review all findings in the report associated with those foreign countries to determine whether or not each such foreign country was determined to be in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or to be not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. For clarity, in the annual report an explicit certification of non-compliance is equivalent to a determination of violation. However, the following statements in the annual report are not equivalent to a determination of violation:

(i) An inability to certify compliance.

(ii) An inability to conclude compliance.

(iii) A statement about compliance concerns.

(3) If so, determine whether the Offeror or any person owned or controlled by the Offeror has engaged in any activity that contributed to or is a significant factor in the determination in the report that one or more of these foreign countries is in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. Review the narrative for any such findings reflecting a determination of violation or non-adherence related to those foreign countries in the report, including the finding itself, and to the extent necessary, the conduct giving rise to the compliance or adherence concerns, the analysis of compliance or adherence concerns, and efforts to resolve compliance or adherence concerns.

(4) The Offeror may submit any questions with regard to this report by email to NDAA1290Cert@state.gov. To the extent feasible, the Department of State will respond to such email inquiries within 3 business days.

(d) Do not submit an offer unless-

(1) A certification is provided in paragraph (b)(1) of this provision and submitted with the offer; or

(2) In accordance with paragraph (b)(2) of this provision, the Offeror provides with its offer information that the President of the United States has

(i) Waived application under 22 U.S.C. 2593e(d) or (e); or

(ii) Determined under 22 U.S.C. 2593e(g)(2) that the entity has ceased all activities for which measures were imposed under 22 U.S.C. 2593e(b).

(e) *Remedies*. The certification in paragraph (b)(1) of this provision is a material representation of fact upon which reliance was placed when making award. If the Government later determines that the Offeror knowingly submitted a false certification, in addition to other remedies available to the Government, such as suspension or debarment, the Contracting Officer may terminate any contract resulting from the false certification.

(End of provision)

52.219-1 Small Business Program Representations. (Deviation) (Feb 2026)

SMALL BUSINESS PROGRAM REPRESENTATIONS (FEB 2026) (DEVIATION)

(a) *Definitions*. As used in this provision-

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

HUBZone small business concern means a small business concern that meets the requirements described in 13 CFR 126.200, is certified by the Small Business Administration (SBA) and designated by SBA as a HUBZone small business concern in the Small Business Search (SBS) (13 CFR 126.103).

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (b) of this provision.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern means a small business concern that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by one or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraph (1) of this definition.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127) means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)
(1) The North American Industry Classification System (NAICS) code for this acquisition is ____[insert NAICS code].

(2) The small business size standard is ____[insert size standard].

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (*i.e.*, nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(c) *Representations.*
(1) The offeror represents as part of its offer that-

(i) it ☐ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [____________The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.]

(2) [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.]* The offeror represents that it ☐ is, ☐ is not a women-owned small disadvantage business concern.

(3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program.* The offeror represents as part of its offer that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.]

(4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents as part of its offer that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.]

(5) *SDVOSB joint venture eligible under the SDVOSB Program*. [*Complete only if the offeror is certified as a SDVOSB concern*]. The offeror represents as part of its offer that it ☐ is, ☐ is not a SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [____The offeror shall enter the name and unique entity identifier of each party to the joint venture:__.]

(6) *HUBZone joint venture eligible under the HUBZone Program.* [*Complete only if the offeror is a HUBZone small business concern.*] The offeror represents, as part of its offer, that it ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [____The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern.

(d) *Notice.* Under 15 U.S.C. 645(d), any person who misrepresents a firm's status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-owned small, economically disadvantaged women-owned small, or women-owned small eligible under the WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, will be-

(1) Punished by imposition of fine, imprisonment, or both;

(2) Subject to administrative remedies, including suspension and debarment; and

(3) Ineligible for participation in programs conducted under the authority of the Act.

(End of provision)

52.229-11 Tax on Certain Foreign Procurements-Notice and Representation. (Jun 2020)

TAX ON CERTAIN FOREIGN PROCUREMENTS-NOTICE AND REPRESENTATION (JUN 2020)

(a) *Definitions*. As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area of the United States.

United States person as defined in 26 U.S.C. 7701(a)(30) means

(1) A citizen or resident of the United States;

(2) A domestic partnership;

(3) A domestic corporation;

(4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and

(5) Any trust if-

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror may claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service (IRS) Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

(1) It ☐ is ☐ is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [*Offeror must select one*] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the IRS as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to https://www.irs.gov/help/tax-law-questions.

(End of provision)

52.230-1 Cost Accounting Standards Notices and Certification. (Feb 2026)

COST ACCOUNTING STANDARDS NOTICES AND CERTIFICATION (FEB 2026)

Note: This notice does not apply to small businesses or foreign governments. This notice is in three parts, identified by Roman numerals I through III.

Offerors shall examine each part and provide the requested information in order to determine Cost Accounting Standards (CAS) requirements applicable to any resultant contract.

If the offeror is an educational institution, part II does not apply unless the contemplated contract will be subject to full or modified CAS coverage pursuant to 48 CFR 9903.201-2(c)(5) or 9903.201-2(c)(6), respectively.

I. DISCLOSURE STATEMENT-COST ACCOUNTING PRACTICES AND CERTIFICATION

(a) Any contract in excess of the lower CAS threshold specified in Federal Acquisition Regulation (FAR) 30.205(b) resulting from this solicitation will be subject to the requirements of the Cost Accounting Standards Board (48 CFR chapter 99), except for those contracts which are exempt as specified in 48 CFR 9903.201-1.

(b) Any offeror submitting a proposal which, if accepted, will result in a contract subject to the requirements of 48 CFR chapter 99 must, as a condition of contracting, submit a Disclosure Statement as required by 48 CFR 9903.202. When required, the Disclosure Statement must be submitted as a part of the offeror's proposal under this solicitation unless the offeror has already submitted a Disclosure Statement disclosing the practices used in connection with the pricing of this proposal. If an applicable Disclosure Statement has already been submitted, the offeror may satisfy the requirement for submission by providing the information requested in paragraph (c) of part I of this provision.

Caution: In the absence of specific regulations or agreement, a practice disclosed in a Disclosure Statement shall not, by virtue of such disclosure, be deemed to be a proper, approved, or agreed-to practice for pricing proposals or accumulating and reporting contract performance cost data.

(c) Check the appropriate box below:

(1) ☐ *Certificate of Concurrent Submission of Disclosure Statement*. The offeror hereby certifies that, as a part of the offer, copies of the Disclosure Statement have been submitted as follows:

(i) Original and one copy to the cognizant Administrative Contracting Officer (ACO) or cognizant Federal agency official authorized to act in that capacity (Federal official), as applicable; and

(ii) One copy to the cognizant Federal auditor.

(Disclosure must be on Form No. CASB DS-1 or CASB DS-2, as applicable. Forms may be obtained from the cognizant ACO or Federal official.)

Date of Disclosure Statement: ____ Name and Address of Cognizant ACO or Federal Official Where Filed: ____________

The offeror further certifies that the practices used in estimating costs in pricing this proposal are consistent with the cost accounting practices disclosed in the Disclosure Statement.

(2) ☐ *Certificate of Previously Submitted Disclosure Statement*. The offeror hereby certifies that the required Disclosure Statement was filed as follows:

Date of Disclosure Statement: ____ Name and Address of Cognizant ACO or Federal Official Where Filed: ____________

The offeror further certifies that the practices used in estimating costs in pricing this proposal are consistent with the cost accounting practices disclosed in the applicable Disclosure Statement.

(3) ☐ *Certificate of Monetary Exemption*. The offeror hereby certifies that the offeror, together with all divisions, subsidiaries, and affiliates under common control, did not receive net awards of negotiated prime contracts and subcontracts subject to CAS totaling $50 million or more in the cost accounting period immediately preceding the period in which this proposal was submitted. The offeror further certifies that if such status changes before an award resulting from this proposal, the offeror will advise the Contracting Officer immediately.

(4) ☐ *Certificate of Interim Exemption*. The offeror hereby certifies that (i) the offeror first exceeded the monetary exemption for disclosure, as defined in (3) of this subsection, in the cost accounting period immediately preceding the period in which this offer was submitted and (ii) in accordance with 48 CFR 9903.202-1, the offeror is not yet required to submit a Disclosure Statement. The offeror further certifies that if an award resulting from this proposal has not been made within 90 days after the end of that period, the offeror will immediately submit a revised certificate to the Contracting Officer, in the form specified under paragraph (c)(1) or (c)(2) of part I of this provision, as appropriate, to verify submission of a completed Disclosure Statement.

Caution: Offerors currently required to disclose because they were awarded a CAS-covered prime contract or subcontract of $50 million or more in the current cost accounting period may not claim this exemption (4). Further, the exemption applies only in connection with proposals submitted before expiration of the 90-day period following the cost accounting period in which the monetary exemption was exceeded.

II. Cost Accounting Standards-Eligibility for Modified Contract Coverage

If the offeror is eligible to use the modified provisions of 48 CFR 9903.201-2(b) and elects to do so, the offeror shall indicate by checking the box below. Checking the box below shall mean that the resultant contract is subject to the Disclosure and Consistency of Cost Accounting Practices clause in lieu of the Cost Accounting Standards clause.

☐ The offeror hereby claims an exemption from the Cost Accounting Standards clause under the provisions of 48 CFR 9903.201-2(b) and certifies that the offeror is eligible for use of the Disclosure and Consistency of Cost Accounting Practices clause because during the cost accounting period immediately preceding the period in which this proposal was submitted, the offeror received less than $50 million in awards of CAS-covered prime contracts and subcontracts. The offeror further certifies that if such status changes before an award resulting from this proposal, the offeror will advise the Contracting Officer immediately.

Caution: An offeror may not claim the above eligibility for modified contract coverage if this proposal is expected to result in the award of a CAS-covered contract of $50 million or more or if, during its current cost accounting period, the offeror has been awarded a single CAS-covered prime contract or subcontract of $50 million or more.

III. Additional Cost Accounting Standards Applicable to Existing Contracts

The offeror shall indicate below whether award of the contemplated contract would, in accordance with paragraph (a)(3) of the Cost Accounting Standards clause, require a change in established cost accounting practices affecting existing contracts and subcontracts.

☐ Yes	☐ No

(End of provision)

52.230-7 Proposal Disclosure-Cost Accounting Practice Changes. (Apr 2005)

PROPOSAL DISCLOSURE-COST ACCOUNTING PRACTICE CHANGES (APR 2005)

The offeror shall check "yes" below if the contract award will result in a required or unilateral change in cost accounting practice, including unilateral changes requested to be desirable changes.

☐ Yes ☐ No

If the offeror checked "Yes" above, the offeror shall-

(1) Prepare the price proposal in response to the solicitation using the changed practice for the period of performance for which the practice will be used; and

(2) Submit a description of the changed cost accounting practice to the Contracting Officer and the Cognizant Federal Agency Official as pricing support for the proposal.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7007 Alternate A, Annual Representations and Certifications. (Oct 2025) Alternate A (Oct 2025)

ALTERNATE A, ANNUAL REPRESENTATIONS AND CERTIFICATIONS (OCT 2025)

Substitute the following paragraphs (b), (d), and (e) for paragraphs (b) and (d) of the provision at FAR 52.204-8:

(b)(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (e) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (e) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

☐ (i) Paragraph (e) applies.

☐ (ii) Paragraph (e) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(d)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

(i) 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation. Applies to all solicitations.

(ii) 252.216-7008, Economic Price Adjustment-Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.

(iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.

(iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services-Representations. Applies to solicitations for the acquisition of commercial satellite services.

(v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of $200,000 or more.

(vi) 252.229-7012, Tax Exemptions (Italy)-Representation. Applies to solicitations and contracts when contract performance will be in Italy.

(vii) 252.229-7013, Tax Exemptions (Spain)-Representation. Applies to solicitations and contracts when contract performance will be in Spain.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer: *[Contracting Officer check as appropriate.]*

☐ (i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.

☐ (ii) 252.225-7000, Buy American-Balance of Payments Program Certificate.

☐ (iii) 252.225-7020, Trade Agreements Certificate.

☐ Use with Alternate I.

☐ (iv) 252.225-7031, Secondary Arab Boycott of Israel.

☐ (v) 252.225-7035, Buy American-Free Trade Agreements-Balance of Payments Program Certificate.

☐ Use with Alternate I.

☐ Use with Alternate II.

☐ Use with Alternate III.

☐ Use with Alternate IV.

☐ Use with Alternate V.

☐ (vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing Persons with Disabilities.

☐ (vii) 252.232-7015, Performance-Based Payments-Representation.

(e) The Offeror has completed the annual representations and certifications electronically via the SAM website at *https://www.sam.gov*. After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.204-8(c) and paragraph (d) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below *[Offeror to insert changes, identifying change by provision number, title, date]*. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR/DFARS Provision #	Title	Date	Change
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____

Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)

252.204-7017 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation. (May 2021)

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions*. "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition*. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures*. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at *https://www.sam.gov* for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation*. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures*. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

252.204-7998	**Alternate A, Annual Representations and Certifications. (DEVIATION 2026-O0043)**	**(Feb 2026)**	**Alternate A** **Deviation 2026-O0043**	**(Feb 2026)** **(Feb 2026)**

Alternate A, Annual Representations and Certifications (DEVIATION 2026-O0043)(FEB 2026)

Include the following paragraphs (e), (f), and (g) in the provision at FAR 52.204-7:

(e)(1) If the provision at FAR 52.204-7, System for Award Management - Registration, is included in this solicitation, paragraph (g) of this provision applies.

(2) If the provision at FAR 52.204-7, System for Award Management - Registration, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (g) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

☐ (i) Paragraph (g) applies.

☐ (ii) Paragraph (g) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(f)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

(i) 252.204-7016, Covered Defense Telecommunications Equipment or Services--Representation. Applies to all solicitations.

(ii) 252.216-7008, Economic Price Adjustment--Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.

(iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.

(iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services--Representations. Applies to solicitations for the acquisition of commercial satellite services.

(v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of $150,000 or more.

(vi) 252.229-7012, Tax Exemptions (Italy)--Representation. Applies to solicitations when contract performance will be in Italy.

(vii) 252.229-7013, Tax Exemptions (Spain)--Representation. Applies to solicitations when contract performance will be in Spain.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer: [*Contracting Officer check as appropriate.*]

☐(i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.

☐(ii) 252.225-7000, Buy American--Balance of Payments Program Certificate.

☐(iii) 252.225-7020, Trade Agreements Certificate.

☐Use with Alternate I.

☐(iv) 252.225-7031, Secondary Arab Boycott of Israel.

☐(v) 252.225-7035, Buy American--Free Trade Agreements--Balance of Payments Program Certificate.

☐Use with Alternate I.

☐Use with Alternate II.

☐Use with Alternate III.

☐Use with Alternate IV.

☐Use with Alternate V.

☐ (vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing Persons with Disabilities.

☐ (vii) 252.232-7015, Performance-Based Payments--Representation.

(g) The Offeror has completed the annual representations and certifications electronically via the SAM website at *https://www.sam.gov* After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.204-7 and paragraph (f) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.203-1); except for the changes identified below [*Offeror to insert changes, identifying change by provision number, title, date*]. These amended representation(s) and/or certification (s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR/DFARS provision No.	Title	Date	Change
___	___	___	___
___	___	___	___
___	___	___	___
___	___	___	___

____	____	____	____

Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)

Section L - Instructions, Conditions, & Notices to Offerors or Quoters

L-1 **PREPROPOSAL INFORMATION**

All questions or requests for clarification must be submitted using the designated link below and are due no later than thirty (30) business days after issuance of this Request for Proposal (RFP). After this date, offerors are encouraged to keep submitting questions, however questions received after this date may not be answered. Responses will be issued in writing to all prospective Offerors. The Government reserves the right to choose which questions will be answered; all answered questions will be published in PIEE.

Link to submit questions: https://forms.osi.apps.mil/r/hdwUasGhwr

None of the regulations, manuals, technical orders, or other publications referenced in the RFP (herein referred to as the "Program Data and Technical Library") will be issued with the solicitation. All documents referenced in the SOW (i.e., Attachment J-9), not otherwise available to the public, will be provided upon request. Offerors must submit a request to obtain an electronic copy of the Program Data and Technical Library (RFP Attachment #S-1). A completed Non-Disclosure Agreement (RFP Attachment #S-4) must be executed prior to issuance of the Program Data and Technical Library. Only one Program Data and Technical Library is permitted per Offeror (Prime Contractors only); Offerors are responsible for forwarding Non-Disclosure Agreements for joint venture entities and/or subcontractors prior to disseminating the Program Data and Technical Library. Requests must be submitted via e-mail to timothy.l.rivers@usmc.mil no later than thirty (30) business days after the issuance of this RFP. Offerors must ensure that Program Data and Technical Library information is requested in a timely manner to permit adequate proposal development. The Government intends to deliver Program Data and Technical Library media to Offerors by USPS or FedEx overnight delivery, return receipt required. Please note information provided is "Controlled Unclassified Information (CUI)".

At proposal submission, the Offeror shall possess a SECRET facility security clearance to assume contract tasks and responsibilities. If an Offeror does not have this type of clearance at the time of proposal submission, the proposal will NOT be evaluated and is not eligible for award. The Government will NOT sponsor Offerors for facility clearances.

Proprietary information submitted in response to this solicitation shall be clearly marked as such and will be protected from unauthorized disclosure as required by Subsection 27 of the Office of Procurement Policy Act as amended (41 U.S.C.423) as implemented in the FAR. Any unmarked information, which may include proprietary information, will be considered releasable under the restrictions of the Freedom of Information Act.

Funds are not presently available for this effort. No award will be made until funds are available. The Government reserves the right to cancel this solicitation, either before or after the closing date. In the event the Government cancels this solicitation, the Government has no obligation to reimburse any Offeror for any costs incurred in the development of the proposal.

The Government intends to incorporate RFP Attachment #J-7 Cost Model Workbook into this contract, and may incorporate other parts into this contract, by reference or full text, portions of the successful Offeror's proposal submitted in response to this solicitation as revised and supplemented through the final proposal revision. Offerors are advised that any features or technical offerings that exceed SOW requirements and are accepted by the Government may be incorporated as a requirement in the resultant contract.

L-2 **NOTICE OF ORGANIZATIONAL CONFLICT OF INTEREST (OCI) AVOIDANCE FAR 9.5**

The Offeror's attention is directed to Section H, Paragraph H-16 relating to OCI.

L-3 (RESERVED)

L-4 **PROPOSAL PREPARATION INSTRUCTIONS TO OFFERORS (ITO)**

1. **GENERAL INSTRUCTIONS**

The instructions in this section prescribe the format of proposals and describe the approach for the development and presentation of the proposed data. The proposal shall include all of the information requested in the specific instructions. The Offeror's initial proposal should contain the Offerors best terms from a management, technical and cost/price standpoint. Failure to include all information requested may adversely affect the evaluation or may cause the proposal to be rejected. A proposal that merely reiterates or promises to accomplish the requirements of the SOW will be considered unacceptable. In addition, Offerors shall assume that the Government has no prior knowledge of their experience and will base its evaluation on the information presented in the Offeror's proposal and other obtained Past Performance Information (PPI). A proposal that is orderly and sufficiently documented will enable the Government to easily understand and perform a thorough and fair evaluation.

This section provides general guidance for preparing proposals as well as specific instructions on the format and content of the proposal. Each volume shall be complete in itself. Unless otherwise specified, any form of presentation, such as narrative, pictures, tables, graphs, schematics, logic and other functional block diagrams may be used to provide a concise description of information. The construction of each volume shall be separate and independent; each volume must stand on its own and therefore not require extensive searching throughout the document(s) to locate and evaluate each any items or area being evaluated.

2. **ESTIMATED PERIOD OF PERFORMANCE FOR PROPOSAL PREPARATION**

This solicitation covers a base ordering period of 60 months and one 60-month optional ordering period IAW DFARS 217.201-270(a)(2) and FAR 52.217-9.

Anticipated award date is on or about 4 June 2027. The contractor shall complete all phase in transition activities within the first 90 days following contract award. The Base Ordering Period will begin on the date of award and will continue for a period of five years. Option 1 consists of an additional five year ordering period, which may be exercised in accordance with FAR 52.217-9.

3. **PROPOSAL SUBMITTAL INSTRUCTIONS**

(a) Proposals shall be submitted electronically via the Procurement Integrated Enterprise Environment Capabilities (PIEE) Solicitation Module to Timothy L. Rivers (timothy.l.rivers@usmc.mil).

Vendor Registration Guide for Contractors: https://cac.piee.eb.mil/xhtml/unauth/web/homepage/vendorGettingStartedHelp.xhtml

PIEE Solicitation Web Based Training:
https://pieetraining.eb.mil/wbt/xhtml/wbt/sol/index.xhtml

(b) Proposal Due Date and Time - The time and date for receipt of offers is stated in Block 9 of the SF 33. The Offeror must complete the submission of its proposal in the PIEE Solicitation Module by this due date and time to be evaluated. Initial proposals and any modifications thereto must be submitted on or before the closing date and time cited in Block 9 of the SF 33. Late submissions will not be considered for evaluation unless the conditions of FAR 15.107(b) apply.

(c) The maximum allowable file size for the PIEE Solicitation Module is **1.9 GB per file**, with no limit on the number of files. It is the Offerors responsibility to ensure their proposal documents are submitted within the file size limits, in the correct format to be accepted by the system.

4. **PROPOSAL ORGANIZATION**

A complete proposal is defined as one consisting of eight (8) separate volumes within the required page count, in the number of copies below. Strict compliance with these proposal preparation instructions will be considered in the evaluation of the proposal. Evaluators will read only up to the maximum number of pages specified. Pages in excess of the maximum will be removed from the proposal and not evaluated.

4.1 **Matrix Table**

Volume	**Section L Number / Title / Page Limit**
I	**Section 5: VOLUME I** **EXECUTIVE SUMMARY** Overview - *10 Pages* Master Table of Contents *(all Volumes) - Unlimited* Standard Proposal Information: *Unlimited* Table of Contents List of Tables and Figures Glossary of Abbreviations & Acronyms Note: Additionally, one copy of the Executive Summary Overview shall be included in all volumes.
II	**Section 6: VOLUME II** **MANAGEMENT PROPOSAL** Standard Proposal Information: *Unlimited* Table of Contents List of Tables and Figures

	Glossary of Abbreviations & Acronyms Management - *40 pages*
III	**Section 7: VOLUME III** **TECHNICAL PROPOSAL - USMC** Standard Proposal Information: *Unlimited* Table of Contents List of Tables and Figures Glossary of Abbreviations & Acronyms USMC Technical Methodology - *50 pages*
IV	**Section 8: VOLUME IV** **TECHNICAL PROPOSAL - NAVY** Standard Proposal Information: *Unlimited* Table of Contents List of Tables and Figures Glossary of Abbreviations & Acronyms Navy Technical Methodology - *50 pages*
V	**Section 9: VOLUME V** **PAST PERFORMANCE** Standard Proposal Information: *Unlimited* Table of Contents List of Tables and Figures Glossary of Abbreviations & Acronyms Section 9.1: Past Performance Information - *10 pages* Section 9.2: Past Performance Questionnaire and CPARS - *Unlimited*
	Section 10: VOLUME VI **COST/PRICE PROPOSAL**

VI	Section 10.1: Standard Proposal Information: -*Unlimited* Table of Contents List of Tables and Figures Glossary of Abbreviations & Acronyms
	Section 10.2: Costs -*Unlimited*
	Section 10.3: Summary Descriptions & Narrative -*Unlimited*
	Section 10.4: Cost Breakout & Supporting Data by COST TYPE CLIN and Utilizing the Cost Model Workbook (RFP Attachment J-7) - *Unlimited*
	Section 10.5: Other Information - *Unlimited*
VII	**Section 11: VOLUME VII** **SMALL BUSINESS PARTICIPATION AND SUBCONTRACTING PLAN**
	Standard Proposal Information: *Unlimited* Table of Contents List of Tables and Figures Glossary of Abbreviations & Acronyms
	Section 11.1: Small Business Participation - *5 pages*
	Section 11.2: Small Business Subcontracting Plan - *Unlimited*
VIII	**Section 12: VOLUME VIII** **PROPOSAL DOCUMENTATION**
	Standard Proposal Information: -*Unlimited* Table of Contents List of Tables and Figures Glossary of Abbreviations & Acronyms
	Section 12.1: Solicitation Submission -*Unlimited*
	Sections 12.1.1 and 14.1: Required Documents -*Unlimited*
	Section 12.1.2: Exceptions to Terms and Conditions -*Unlimited*

4.2 Proposal Format

4.2.1 Guidance

(a) This section of the Instructions to Offerors (ITO) provides general guidance for preparing proposals as well as specific instructions on the format and content of the proposal.
(b) The Offeror's proposal must include all data and information requested by the ITO and must be submitted in accordance with these instructions.

4.2.2 Price/Cost Information

All cost or pricing information shall be addressed ONLY in Volume VI, Cost/Price Proposal. Cost proposal information shall be provided in the format contained in paragraph 10. Both Adobe Acrobat (.pdf) and Excel (.xlsx) files should be used for respective documents.

4.2.3 No Cross-Referencing

(a) Each volume shall be written on a standalone basis so that its contents may be evaluated without cross-referencing to other volumes of the proposal.

(b) The Organizational Chart / Manning Document required in the Volume I - Executive Summary Overview shall be provided in a Microsoft excel format and provide a cross reference to all CLINs; Offerors shall identify full time equivalents (FTEs) that support multiple CLINs and the level of support they provide to each CLIN. Offerors shall include manning level and associated LOE hours in the Cost Template (RFP Attachment #J-7 Cost Model Workbook), specifically, the Labor Categories and Level of Effort required by Labor Category. The Offeror's proposed Organizational Structure must be consistent with the proposed Cost Model Workbook.

(c) The Notional Organizational Structure (RFP Attachment #S-2) will guide the development of the management, technical, and cost proposals (Volumes II, III, IV, and VI). Note: Total hours displayed on RFP Attachment #S-2 are total ANNUAL hours. The Notional Organizational Structure is presented at the department level. The offeror shall provide their organizational chart at the most granular level possible (Branch/Section).

The Labor Categories within the Notional Organizational Structure reference various experience levels. Where "Various Experience Levels" are listed next to the labor category, the Offeror should design its structure to capture the range of experience levels the Offeror determines appropriate. As an example, "Material Spec" has multiple skill levels in the CBA (RFP Attachment #J-3); Material Spec I, Material Spec II, Material Spec III, etc. The Offeror may utilize any combination of those Labor Categories to meet the minimum level of effort hours.

(d) The proposed Organizational Chart / Manning Document required in the Executive Summary (Volume I) will not count towards individual volume page limitations.

(e) Offerors shall not include cost and/or pricing information in proposal volumes other than the Cost/Price Volume.

(f) Information required for proposal evaluation that is not found in its designated volume, will be assumed to have been omitted from the proposal.

4.2.4 Table of Contents

(a) Each volume shall contain detailed Table of Contents to delineate the subparagraphs within that volume. Pages of the Offeror's proposal will be numbered sequentially with the exception of "exempt" pages identified below.
(b) The Table of Contents will not count against the page limitations for their respective volumes.

4.2.5 List of Tables and Figures

(a) Each volume shall list any tables and figures used within that volume.
(b) The List of Tables and Figures will not count against the page limitations for their respective volumes.

4.2.6 Glossary of Abbreviations and Acronyms

(a) One glossary shall be developed for the entire proposal and provided in each volume.
(b) Glossaries do not count against the page limitations for their respective volumes.

4.2.7 Electronic Copies (E-Copies)

(a) General requirements
(1) Complete electronic copies of all volumes shall be submitted in Adobe Acrobat Portable Document File (.pdf) **searchable text format**. Complete electronic copies of Volume VI shall be submitted in both Adobe Acrobat Portable Document Files (.pdf) **searchable text format** and Microsoft Excel Files (.xlsx). All documents shall be submitted in a format that is not protected (password, filtered, hidden, format, structure, etc.) in a manner that would prohibit the Government from filtering, sorting, or otherwise evaluating all associated proposal information.
(2) Electronic file directory titles and organization shall reflect the titles and organization of these instructions.
(3) Electronic copies of each volume shall be compatible with the following available Government equipment and software products:
a. Adobe Acrobat
b. Windows 11
c. Microsoft Office Professional Suite

(4) Sound or video (e.g. MPEG) files shall **not** be embedded into the proposal files.

(b) Cost Breakdown requirements
(1) The Cost Model Workbook includes a summary of all CLINs, inclusive of FFP CLINs, subtotaled by each period within the Ordering Period (Base and Optional). The files shall not be password protected or otherwise "locked" or "hidden" to permit thorough evaluation of proposal formulas.
(2) Electronic copies of .xlsx documents must include clearly visible formulas and must not include any hidden columns or rows. Offeror's cost breakdown spreadsheets must not be password protected.

4.2.8 Page Format Restrictions and Limitations

4.2.8.1 Page Format

(a) All pages shall include an appropriate header and footer that identifies the Solicitation number, contractor name as identified in the System for Award Management (SAM) and Unique Entity Identifier (UEI) number, date, volume number and page number. Each paragraph (in addition to heading levels) shall be uniquely numbered within each Volume of the proposal. **Offerors shall provide SOW references in their proposal as applicable to facilitate evaluations and to demonstrate the Offeror's understanding of the requirement.**

(b) Text pages shall be portrait oriented. Graphics and tables may be landscape oriented if required to properly present the information.

(c) Pages shall be typed with at least single line spacing. Pages shall contain page numbers in the footer.

(d) No narrow or condensed fonts allowed. Times New Roman or Arial is required. The font size shall be no less than 12 point except for the following:

(1) The reproduced sections of the solicitation document shall be as reproduced.

(2) The font shall be no smaller than 10 point for text in tables, charts, graphs, and figures.

(3) The font for table cell, chart, graph, or figure labels shall be no smaller than 10 point.

(e) Margins on all four edges of each sheet will be at least one inch.

(f) Proprietary statements, security markings, and page numbers can fall within the defined margin area.

4.2.8.2 RESERVED

4.2.8.3 Page Limitations

(a) Page limitations shall be treated as maximums. What Counts as a Page: A page is defined as 8.5 x 11" sheet of paper (minimum of one-inch margins). Each side of a sheet counts as one page. Foldouts will be counted as the appropriate number of pages based on an 8.5 x 11" sheet. Each page shall include an appropriate header and footer identifying the Solicitation number, contractor name as listed in the SAM, the Offeror's UEI number, date, volume number and page number. If an Offeror creates an ambiguity, the Government will use its discretion in determining the page count. All material shall be contained within the page limits specified for each volume, unless otherwise stated. All appendices, charts, graphs, diagrams, tables, photographs, drawings, etc. are included in the page count.

(b) If page limits are exceeded, the excess pages will not be read or considered in the evaluation of the proposal.

4.2.8.4 Pages Counted

(a) Each page shall be counted except the following. All pages exempt from the page count shall be marked as "exempt" and may contain a page number. Pages that are marked as exempt, but the Government determines that they do not meet the requirements of an exempt page, shall not be considered, and will be treated the same as pages in excess of the page count.

(1) Cover pages
(2) Table of Contents
(3) List of Tables and Figures
(4) Glossaries
(5) Blank pages marked "Intentionally Left Blank"
(6) Labor Category Descriptions/Position Descriptions
(7) Resumes and letters of commitment
(8) Continuation of Essential Contractor Services Plan
(9) Contract Transition or Phase-In / Phase-Out Plan

4.2.8.5 Proposal Due Date Schedule: Entire Contract Proposal is due at RFP closing; See SF33 Block 9.

5. **VOLUME I - EXECUTIVE SUMMARY**

The Executive Summary is a concise narrative summary of the entire proposal, highlighting key or unique features. The executive summary will describe an overview of the organizational concept including the positioning of the MCPP project within the corporate structure, functions to be provided from the corporate entity, a discussion of critical/key subcontractors, teammates, and / or Joint Venture partners; and a description of the organizational approach to be implemented in order to fulfill the requirements of the MCPP RFP, and an organizational chart providing an overview of the organizational structure to be implemented. Offerors shall include a detailed, bulletized listing of all assumptions made in proposal development. Any summary of proposal information presented within the Executive Summary shall not be considered as meeting the requirements for any portions of other volumes of the proposal.

6. **VOLUME II - MANAGEMENT PROPOSAL**

Offerors shall provide a Management Proposal that sets forth in the most comprehensive manner, the Offeror's management approach to achieve MCPP requirements. Volume II shall specifically address:

-The Offeror's intended organizational structure to accomplish MCPP RFP / SOW requirements.

-Human Resource Management (SOW C.2.1.1). The proposal must describe how the Offeror will recruit, hire, train and retain a workforce capable of executing MCPP requirements; address staffing of the HR function including labor category and number of Human Resources personnel on site at MCSF-BI. Describe what HR support is to be provided from the corporate entity.

-Fiscal Resource Management (SOW C.2.1.2). The proposal must describe the Offeror's staffing of the finance and accounting functions, the labor category and number of finance / accounting personnel on-site at MCSF-BI, and what finance / accounting support is to be provided from the corporate entity. Of critical importance, the proposal must address the Offeror's process to provide Contract Cost and Status Reports (CCSR) per SOW C.2.1.2.2 and Section G-6, with emphasis on accurate and up-to-date Estimates at Completion (EAC) for each CPFF Task Order.

-Quality and Risk Management (SOW C.2.2). The proposal must describe how the Offeror will implement a Quality Control (QC) program to achieve MCPP requirements; the Offeror's QC staffing including the number of Quality Inspectors (QI) and Process Control Analysts (PCA), and the position of the Quality function within the proposed organizational structure.

-Production Planning and Control (PP&C) Management (SOW C.2.3). The proposal must describe how the Offeror will plan production schedules; the methods / processes to be used to achieve schedule compliance; PP&C staffing by labor category and number of personnel, and the position of the PP&C function within the organizational structure.

-Maintenance Management (SOW C.2.4). The proposal must describe the location of the Maintenance Management Office within the Offeror's organizational structure, the staffing by labor category and number of personnel, and how Maintenance Management responsibilities will be implemented within the proposed organization. Note: Technical details of the Maintenance Management function must be addressed in the USMC Technical volume as described in the instructions for that volume.

-Contract Transition - Phase-In/Phase-Out Plan (H-21). The proposal must describe how the Offeror will meet the requirements of H-21 to ensure a successful transition.

7. **VOLUME III - TECHNICAL PROPOSAL - USMC**

Offerors shall provide a USMC Technical Proposal describing how the Offeror will achieve MCPP requirements for USMC Supply and Distribution (SOW C.4), USMC Maintenance Management (SOW C.2.4) and USMC Maintenance for activities conducted at MCSF-BI in Jacksonville, FL (SOW C.3); while deployed aboard Maritime Prepositioning Ships (MPS) (SOW C.7), and at land-based prepositioning sites (SOW C.3, C.4). The Offeror will also provide a section within the USMC Technical Proposal addressing how the Offeror will accomplish MCPP requirements for Medical Materiel and equipment (SOW C.5)

7.1 USMC Supply and Distribution (SOW C.4). The USMC Technical Proposal must include a comprehensive Supply and Distribution methodology. The Supply and Distribution methodology must clearly describe how the Offeror will achieve MCPP requirements in the performance of supply activities at MCSF-BI, aboard ships and at land-based prepositioning sites. At a minimum the Offeror must address the following:

-Demand Planning of Materiel Requirements
-Procurement and Sourcing
-Inventory Management
-MMC Supply Production
-Container Management
-Transportation and Distribution Management

7.2 USMC Maintenance Management (SOW C.2.4). The USMC Technical Proposal must include a comprehensive Maintenance Management methodology. The Maintenance Management methodology must clearly describe how the Offeror will achieve MCPP requirements within SOW C. 2.4. At a minimum the Offeror must address the following:

-Maintenance Administration
-Records and Reporting
-Maintenance Management Training
-Publication Control
-Equipment Availability
-Preventive and Corrective Maintenance
-Maintenance Related Programs

7.3. USMC Maintenance (SOW C.3, C.7). The USMC Technical Proposal must include a comprehensive Maintenance methodology. The Maintenance methodology must clearly describe how the Offeror will achieve MCPP requirements within SOW C.3 and SOW C.7. At a minimum the Offeror's Maintenance methodology must address the following:

-SL-3 Inventory and Inspection

-Limited Technical Inspections
-Preventive Maintenance Checks and Services (PMCS)
-PMCS and Corrective Maintenance (CM) of Organic Assets
-CM
-MCPP-PHIL Maintenance
-MCPP-N Maintenance
-Surge Support
-Shipboard Maintenance

7.4 USMC and Medical Materiel Manning. The Offeror shall provide a work breakdown structure with staffing levels by labor category for each component of the proposed organization. This work breakdown structure is in addition to and supported by the organizational structure overview required in Volume I, Executive Summary. The work breakdown structure shall correlate and provide traceability to the required Employee Qualifications provided in SOW Attachment C.2.1.1. The work breakdown structure should include Medical Materiel (SOW C.5). The work breakdown structure shall be segregated by supervisory levels, providing the proposed management to supervisor ratio and the supervisor to labor ratio for each operating location to include ashore prepositioning sites (MCPP-N and MCPP-PHIL), shipboard, and at MCSF-BI. Labor Categories shall align with the applicable Collective Bargaining Agreement and Service Contract Act. Offerors shall provide a clear naming convention for Exempt employee positions so that the intended organizational role is clear.

8. **VOLUME IV - TECHNICAL PROPOSAL - NAVY**

8.1 Navy Supply: Offerors shall describe their relevant experience and capabilities to perform the MCPP II requirements for supply chain support of Navy Civil Engineer Support Equipment (CESE), Navy containerized capability sets (CAPSETs), Navy organic assets and Navy watercraft assigned to the Maritime Prepositioning Force (MPF) Program in compliance with SOW C.6. The offeror shall submit a detailed Navy Supply Methodology that clearly describes at a minimum each of the following elements:

-Navy Supply Center (NSC)
-Facility organization and cleanliness
-Navy Warehousing
-Supply Administration
-Inventory Management and Control (Relational Supply)
-Interface/Interaction with USMC Supply effort
-Procurement Sourcing
-Disposition
-Transportation
-Distribution
-Materiel Handling Equipment support
-OGP Accountability and Serviceability
-Supply Chain Quality Control (QC)

8.2 CAPSET Production: The offeror shall describe their Navy containerized Capability Set production strategy to achieve prescribed timelines, at an acceptable level of quality and attainment for Navy Containerized assets. The Offeror shall describe their proposed partnering for container repairs. The Offeror shall submit a detailed Navy production methodology that clearly describes at a minimum each of the following elements:

-Containerized CAPSET production strategy, including surge capability and cross utilization of NSC resources to achieve prescribed timelines, at an acceptable level of quality and attainment for Navy Containerized assets. Approach includes strategy for receiving, inspecting, certifying, production, contents replenishment, inventory, serviceability and any interface or interaction with desegrated maintenance shops necessary for CAPSET maintenance
-Interface/Interaction/Coordination with multiple maintenance shops
-Container Maintenance Administration (NTCSS OMMS-NG)
-Container management procedures that identify how to record, schedule, track status, and execute all maintenance, repair, and logistics related tasks will be accomplished for container management.
-Container management approach for container refurbishment, corrosion control and repairs.
-Data processing, labeling and marking processes
-Quality Control (QC) for internal and external Capability Set production/maintenance

8.3 CESE Maintenance: The Offeror shall describe their Maintenance strategy to achieve prescribed timelines, at an acceptable level of quality for Navy CESE, including containerized capability set maintenance in support of NSC production efforts and supply chain support required from the (NSC) to support CESE maintenance. The CESE maintenance production approach, such as scheduling, prioritization, resource allocations, management, and integration of CESE maintenance production with USMC effort must include, at a minimum, the following:

-CESE maintenance afloat
-CESE COSIS
-CESE ALTS/FSB/SOUM processing
-CESE Quality Control (QC)

8.4 Watercraft Maintenance: The Offeror shall describe their maintenance strategy to achieve prescribed timelines, at an acceptable level of quality for Navy watercraft assigned to the MPF Program. The Offeror shall describe their proposed partnering for intermediate and depot level repairs. The Offeror shall submit a detailed Navy Maintenance Methodology that clearly describes at a minimum each of the following elements:

-Maintenance Requirements Package (MRP) program compliance and management, categories 1-4
-SYSALTS/FSB/SOUM processing
-Work Definition Conference (WDC) process requirements

-Master Schedule and Maintenance Model schedule management and understanding
-Subcontract strategy for organizational level maintenance (Ex., Calibration/sanitation resourcing)
-Maintenance Administration (NTCSS OMMS-NG) processes and resourcing
-Local industry partnering/sub-contracting for intermediate and depot level repairs
-Watercraft Corrosion Control and Coating systems maintenance at the organizational level
-Operations Support Team (OST)/Watercraft Berthing, Drydocking, Launching, Towing, Portage, Cross-decking and Watercraft Monitoring, Pre MAT & Post MAT
-Navy Watercraft Maintenance Center (WMC) / Preventive and Corrective Maintenance, resourcing, organization, facilities and production strategy to improve watercraft readiness
-Control Systems Support (CSS) strategy and resourcing
-Navy watercraft corrosion control maintenance in the CRF
-Maintenance Augment Team (MAT) strategy and Navy watercraft monitoring (COSIS) program approach
-Intermediate Maintenance Team (IMT) strategy
-Strategy to subcontract services combined with local industry capability to support Intermediate and Depot level watercraft repairs impacts maintenance milestones with compounding effects to on time delivery of Navy Capability Sets. The Navy technical proposal should identify solutions that maximize the efficiency and effectiveness of watercraft maintenance operations.
-Quality Control (QC) for internal and external Capability Set production/maintenance

8.5 Organic Government Property (OGP) Serviceability: The Offeror shall describe their Maintenance strategy to achieve prescribed timelines, at an acceptable level of quality for Navy owned OGP, including major Material Handling Equipment (MHE)/ Weight Handling Equipment (WHE) that is assigned to the MPF Program, addressing the following at a minimum:

-Strategy for OGE Subcontract Work
-Maintenance Administration (NTCSS OMMS-NG)
-OGE inventory management
-OGE preventive maintenance
-OGE corrective maintenance
-OGE corrosion control and coating systems maintenance, organizational, intermediate and depot level.
-Quality Control (QC), for both internal and external maintenance.
-NAVFAC P-307 program compliance

8.6 Navy Manning: The Offeror shall provide a work breakdown structure with staffing levels by labor category for each component of the proposed organization. This work breakdown structure is in addition to and supported by the organizational structure overview required in Volume I, Executive Summary. The work breakdown structure shall correlate and provide traceability to the required Employee Qualifications provided in SOW Attachment C.2.1.1. The work breakdown structure shall be segregated by supervisory levels, providing the proposed management to supervisor ratio and the supervisor to labor ratio for each operating location such as shipboard, and at MCSF-BI. Labor Categories shall align with the applicable Collective Bargaining Agreement and Service Contract Act. Offerors shall provide a clear naming convention for Exempt employee positions so that the intended organizational role is clear.

9. VOLUME V - PAST PERFORMANCE

9.1 The Offeror shall provide up to three (3) relevant and recent past performance references. Relevancy and recency are defined in Section M. Each Offeror can provide in its proposal any information regarding its (to include subcontractors) past performance of contracts similar to the Government's requirement that it would like the Government to consider. Such information may supplement what the Government has readily available, what is included in CPARS or other databases, or what the Offeror considers essential to the Government's evaluation. Offerors may also provide explanatory information regarding any substandard or poor performance and the corrective actions taken to prevent a recurrence.

Past performance may include Federal, State and Local Government and private sector contracts. If subcontractor experience is submitted for consideration as part of the proposal, the offeror should include a commitment signed by offeror and subcontractor certifying that if a contract is awarded resulting from the proposal, the parties commit to joint performance as proposed. If the signed commitment is not fully executed by both parties and provided with the Past Performance Proposal, subcontractor references will not be evaluated or considered. Affiliate companies, sister companies, teaming arrangements, joint venture agreement, etc., will be considered provided that sufficient documentation is included in the proposal. The primary offering entity must demonstrate that the affiliate will perform significant and critical aspects of the contract if awarded. Documentation includes a copy of the signed arrangement such as documented affiliation, a copy of the teaming agreement, a copy of the joint venture agreement, etc.

The Government reserves the right to verify statements and representations made in the Offeror's proposal. To obtain information, the Government may contact the points of contact listed by the Offeror; however, the Government is not required to contact the points of contact provided by the Offeror and may limit the number of references it chooses to contact. The Government may also contact references not provided by the Offeror in order to evaluate the Offeror's past performance. Offerors shall ensure that the information provided in Volume V is current and accurate, including validated phone numbers and email addresses for all points of contacts. The burden of providing thorough and complete past performance information remains with the Offeror.

Offerors should provide the following information for up to three relevant and recent past performance references:

Section 1 - Basic Past Performance Information
-Name of Past Performance Effort
-Name and Contact Information for Contracting Agency or Private Sector Company
-Name(s) and Contact Information of COR(s) and Quality Assurance Representatives, as applicable
-Contract Number
-Contract Type (COST TYPE, FFP, etc.)

-Initial Contract Value
-Total Contract Value (including all contract modifications to date)
-Period of Performance
-Role Performed (Prime Contractor, Subcontractor, etc.)
-Historical compliance with the requirements of FAR 52.218-8 (for all Offerors) and 52.219-9 (for large business offerors)

Section 2 - Relevance to Current Requirement
-Describe the work products and/or services delivered to customers under this past performance reference.
-Demonstrate the relevance by describing how this past performance correlates with the Requirements (i.e. SOW requirements) in terms of scope, magnitude, and complexity (see section M).

9.2 Past Performance Questionnaire

If there is a CPARS evaluation record available for the referenced contract, the Offeror does not need to have an assessor fill out the PPI Questionnaire (RFP Attachment #S-3). The Offeror may instead include a copy of the CPARS evaluation. If there is NOT a CPARS evaluation record available for the referenced contract, the Offerors shall fill in the relevant fields of the questionnaire (RFP Attachment #S-3) for each relevant contract and e-mail to the Government/commercial assessor within 30 calendar days after issuance of the solicitation. The Offeror shall e-mail the PPI Questionnaire Letter to all points of contact (POCs) the Offeror has listed in the Past Performance Information Sheets.

The POCs/assessors will complete the PPI Questionnaires and forward them by emailing them directly to the Contracting Officer no later than the RFP response date. Email to Timothy L. Rivers at timothy.l.rivers@usmc.mil. Respondents to the questionnaires shall not send the completed information sheets back to the Offeror. PPI Questionnaires submitted to the Government by the Offeror will not be accepted; Questionnaires must come from the POCs/assessors.

NOTE: CPARS records will not count towards the page count for this volume.

10. **VOLUME VI - COST/PRICE PROPOSAL**

The purpose of the Cost/Price Proposal volume is to include all pertinent contract and cost information.

10.1 Standard Proposal Information

(a) Provide a Table of Contents for Volume VI per ITO paragraph 4.2.5.
(b) Provide a List of Tables and Figures for Volume VI per ITO paragraph 4.2.6.
(c) Provide a Glossary of Abbreviations & Acronyms per ITO paragraph 4.2.6.

10.2 Cost/Price

In accordance with FAR 15.403-1, information other than certified cost or pricing data is required to support the reasonableness, completeness and realism of proposed costs (realism is applicable to only COST TYPE CLINS) of this requirement. The Government retains the right to request additional supporting cost information through the course of the evaluation. The cost proposal shall contain a complete and traceable description of all costs, which includes the Cost Model Workbook provided at RFP Attachment #J-7. Offerors shall provide a detailed description of the basis of the costs and shall provide all supporting data as appropriate to support reasonableness, completeness and realism. Specific instructions on how to complete the Cost Model Workbook (RFP Attachment #J-7) are provided in the workbook Tab 1 "Instructions" and in each individual Tab. Those instructions are not repeated in this section.

In addition, Offerors shall provide a narrative of all proposal assumptions and specific details associated with the respective impacts of those assumptions. An Offeror's cost/price proposal shall represent the Offeror's best efforts to respond to the solicitation. Any inconsistency between promised performance and cost shall be explained in the proposal. For example, if unique and innovative approaches are the basis for an abnormally low cost, the nature of these approaches and their impact on cost must be explained. If an Offeror proposed to absorb a portion of costs, it should explain the impact on price.

Subcontract Pricing Considerations in accordance with FAR 15.404-8. The prime contractor or proposed subcontractor(s) shall analyze costs/prices to establish reasonableness of proposed subcontract prices, and include the results and supporting documentation related to these analyses in the cost proposal. Subcontractors shall send a sanitized proposal directly to the prime offeror. The sanitized proposal shall include fully burdened labor rates for all proposed labor categories. The prime offeror shall use the information in the subcontractor's sanitized proposal to include in its cost/pricing model.

Compliance with the instructions is mandatory and failure to comply may result in rejection of the Offeror's proposal. Note that unrealistically low or high proposed costs (COST TYPE), initially or subsequently, may be grounds for eliminating a proposal from competition either on the basis that the Offeror does not understand the requirement or has made an unrealistic proposal. The burden of proof for credibility of proposed costs rests with the Offeror.

Offerors who submit uncompensated overtime shall comply with the requirements of FAR 52.237-10 Identification of Uncompensated Overtime.

10.3 Summary Descriptions and Narrative

The Offeror shall provide a summary description of their standard estimating system or methods used in the preparation of the cost proposal. The summary description shall cover separately each major cost element, e.g., Direct Labor, Indirect Labor, Other Direct Costs, etc. The Offeror shall identify any proposed cost reductions attributable to commonality with other programs, company-funded efforts or capitalization of equipment.

10.3.1 Summary and Supporting Schedules

The Offeror is required to complete Section B of the solicitation. This section shall be rounded up to the nearest whole dollar. The Offeror shall price the optional ordering period CLINs as well, although exercising of the options is at the sole discretion of the Government and not guaranteed.

10.3.2 Proposal Summary. A proposal summary shall be provided for each Contract CLIN as identified in Section B (both COST TYPE and FFP), summarized by each year within the respective ordering period utilizing the Cost Model Workbook provided at RFP Attachment #J-7.

10.3.3 Reserved.

10.4 Cost Breakout and Supporting Data by COST TYPE CLIN.
The Cost Breakout totals for each CLIN shall align with the Proposal Summary and the Cost Model Workbook provided at RFP Attachment #J-7.

For Year 1-10, the Offeror shall complete all required cost elements in the Cost Model Workbook, including labor categories, proposed hours, direct labor rates, indirect rates, profit, and Transition (CLIN 0008). The Government-provided notional organizational structure (RFP Attachment #S-2) is furnished solely to support evaluation consistency and does not prescribe staffing levels or resource allocations; but does describe the minimum total annual hours Offerors must propose for CLINs X002 and X003. Offerors may use the notional structure as a reference; however, each Offeror's proposed labor mix, FTEs, hours, and rates shall be consistent with its technical approach. All proposed values must be internally consistent and traceable to the Offeror's cost narrative.

10.4.1 Labor. The Offeror shall provide labor rates by category of labor (not employee) and number of personnel within each category. Offerors shall identify the labor/skill mix associated with the requirements as well as the required number of hours by labor category. Each category must be clearly marked as CBA, Service Contract Wage Determination, or Professional/Exempt. Offerors shall provide position/job descriptions for Professional /Exempt employees. Personnel subject to the CBA should be proposed in compliance with the CBA conditions as required by 41 U.S.C. 6707(c) (FAR 22.1002-3). Labor rates should be rounded to the nearest cent. All loading factors, such as, fringe benefits rates, applicable overhead, general and administrative rates, facility capital cost of money (if applicable) and fee, time phased from contract start to contract completion shall be provided. All employee training labor and associated training costs shall be in accordance with the Offeror's Disclosure Statement.

10.4.2 Cost Reimbursable Material, Travel and Overtime. Materials associated with FFP CLINs shall be proposed within the respective FFP CLIN. Contractor Acquired Materials shall be reimbursed on the basis of actual costs (except as provided in FAR 31.205-26(e) and (f)); the Government will provide the estimated amount of contractor acquired materials associated with maintenance that will be accounted for in CLIN X006 (Other Direct Costs) IAW DFARS 252.217-7028. Offerors shall clearly identify Material Handling costs and appropriate indirect costs allocated, which are allocable to direct materials in accordance with the Offeror's usual accounting procedures as identified in the Offeror's Disclosure Statement. Material handling includes the expenses related to acquiring, transporting, receiving, inspecting, handling and storing materials. The COST TYPE LOE CLINs X002 (CONUS) and X003 (OCONUS) provide direct labor to support these functions, therefore, Offerors who propose Material Handling indirect costs must show that the costs included in their indirect pools "clearly exclude direct labor employees" and must provide a detailed narrative and supporting calculations from their accounting system that demonstrates how direct labor employees supporting these functions are excluded from the indirect pool. The Government reserves the right to verify this during post-award audits. If the Offeror proposes indirect rates on subcontracted services, they shall comply with Section I clauses DFARS 252.215-7003 and DFARS 252.215-7004 and describe the added value (as well as the other requirements in the DFARS clauses) in their proposal. Travel will be funded by the Government on a cost reimbursable basis when required. No indirect rates or fee shall be applied to the Travel CLINs. Fee is also not permitted on Cost Reimbursable Material or Overtime.

10.4.3 Other Direct Costs. Any "Other Direct Costs" required to support the COST TYPE CLIN shall be proposed in accordance with the Offeror's Disclosure Statement. All Safety Equipment and Uniforms for all contractor employees providing services under either the FFP CLINs and COST TYPE CLINs shall be included in CLIN X006 (Other Direct Costs).

10.4.4 Indirect Cost Rates. Cost reimbursement is subject to the Indirect Rate Ceilings in accordance with Contract Section G-3 Invoicing, Vouchering, and Payment Instructions and G-8 Indirect Cost Rates.

10.4.5 Segregation of Costs by Accounting Classification Reference Number (ACRN)/Funding Sources: Each Offeror shall demonstrate the capability and explain accounting system processes associated with segregating costs by ACRN (for example, USMC and Navy ACRNs); Offerors must provide a narrative and associated sample reports for all ACRNs by month, quarter, and Fiscal Year.

10.4.6 Subcontracts. Offerors shall provide a summary chart of proposed subcontractors (exceeding $350,000) by name and provide the type of proposed subcontract (e.g., CPFF, FFP, T&M, labor hour. etc.), proposed subcontractor total value, hours, summary description of the effort to be performed by each subcontractor, contract value (breaking out cost and fee if applicable), hours, the basis for proposed pricing (competition, sole source, etc.) and a narrative as to the treatment of subcontractor costs in compliance with the current Disclosure Statement. The Offeror shall also submit a subcontractor summary that includes the estimated percentage of individual subcontractor support in terms of contract value per year as compared to the overall contract value per year. Offerors shall identify proposed subcontractor support with the basis of other than full and open competition and provide a description of the supporting rationale associated with the requirement to exclude competition and the associated analysis to support fair and reasonable pricing. Offerors shall summarize any performance or cost incentives contemplated for the subcontractors.

It is the offeror's responsibility to ensure that each subcontractor proposed to receive a cost-reimbursement subcontract has an adequate accounting system. Proposed subcontractors that do not have an accounting system determined to be adequate shall be proposed on an FFP, T&M, or labor-hour basis.

The offeror shall conduct appropriate cost or price analyses consistent with FAR 15.404-3 to establish reasonableness of **all** proposed subcontract prices and evaluation of subcontractor's role and technical support in the proposed effort and include these analyses in its cost proposal.

In some cases, the subcontractor(s) may deny the offeror access to its proprietary cost data. This does not alleviate the offeror's obligation with respect to conducting cost or price analyses and providing its analysis as part of its cost proposal. As a responsible source, the offeror will always perform a price analysis to determine that the overall subcontract price is fair and reasonable. When the offeror has been denied access to a subcontractor's records, the offeror shall provide the subcontractors' written denial and the basis of the denial to the contracting officer as part of the cost proposal with the required cost or price analyses as described in the paragraph above. The prime remains responsible for submitting a price analysis and narrative justifying why the subcontractor's overall proposed price is reasonable based on the information available to them.

For subcontractors proposed to receive a cost-reimbursement subcontract that do not wish to provide detailed cost information to the offeror, the offeror shall have the subcontractors submit its cost proposal directly to the Government using the same submission instructions included in Section L and ensure subcontractor's total proposed price is accounted for in Attachment J-7 Cost Model Workbook. It is still the offeror's responsibility to ensure that the subcontractor complies with the cost proposal submission requirements and format. Cost data provided separately by a subcontractor must be received by the time and date specified for receipt of the offeror's proposal.

10.4.7 Fee Structure. The offeror shall identify the fee rate, the total fee proposed by CLIN, and the various cost elements for which fee is applied (applicable to the CPFF CLINs only). The limitations of FAR 15.404-8, FAR 16.304, and DFARS 216.304 apply to any proposed fee. The maximum total fee shall not exceed 10 percent of the estimated cost, excluding fee and Facilities Capital Cost of Money (FCCOM).

10.4.8 Substantiating Information for Cost Realism

To support the cost analysis of the CPFF line items, the offeror and all subcontractors proposed to receive cost-type subcontracts must provide information on the direct and indirect costs and/or rates (paragraphs i through iii below) they believe necessary to perform the work and used to estimate the cost of performance for CPFF CLINs. If applicable, the Offeror must provide copies of its Forward Pricing Rate Agreement(s) (FPRA) or Forward Pricing Rate Recommendation (FPRR), or any Forward Pricing Rate Proposal (FPRP) (including the transmittal letter) used for this proposal and copies of DCAA or DCMA responses to those submissions. The Offeror must provide an explanation of extent that DCMA FPRA/FPRR or other Government accepted indirect rates were utilized, and explain any differences between FPRA/FPRR and proposed rates, if any. If there is an update to the agreement, recommendation, or proposed rates during the evaluation period, the Offeror must provide the update.

Supporting Cost Information/Documentation
The offeror and all subcontractors shall provide a cost methodology with a summary description of how it arrived at these estimates used to develop its cost proposal. For all subcontracts, the prime shall provide an explanation of how it determined the subcontractor's price fair and reasonable. For all non-fixed price line items this explanation shall provide sufficient information to permit a cost realism analysis. A detailed explanation is required if the offeror uses rates lower than incurred rates in its estimate and is required if other costs appear to be low for the level of work required. The offeror is encouraged to provide enough substantiating information, as necessary, to demonstrate the realism of its proposed cost. Providing substantiating information, without demonstrating its relevance, may indicate that the offeror lacks an understanding of the costs involved in performing the solicitation's requirements, which would indicate cost and/or performance risks.

i. Direct Labor Rates

For all positions, the offeror must disclose and explain the accounting method used to calculate the proposed direct productive per person (DPPH) hours (e.g. 1,920, 2,080, etc.) used in their cost estimate.

For Professional / Exempt positions:

Acceptable documentation to support cost realism evaluation includes the following (required for CPFF and CR line items only):

a. Payroll data (if proposing current, named employees). Offerors may submit Payroll data in Adobe Acrobat .pdf format.

b. Labor Category Averages. If labor category averages proposed are consistent with the offeror's accounting practice and approved by DCAA, the offeror shall provide a detailed narrative and include the calculations used to establish the category average.

c. Signed Letter of Intent that indicates agreed upon annual salary and proposed start date (if proposing named, new hire). Offeror may submit in Adobe Acrobat .pdf format.

d. Current fiscal year FPRA, FPRR, or similar approved rate documentation on file with DCMA or DCAA (to be submitted with Business System Approvals and Direct/Indirect Rate Information section).

For proposed labor rates lacking the above documentation, offerors shall provide a detailed, comprehensive description of the methodology used to establish the proposed direct rate. The description shall include both the source where the rate was obtained and a description of how the resulting rate was calculated. Merely stating or referencing the source(s) is not sufficient. The offeror shall include a detailed description that includes the recognized national/regional compensation surveys and studies of professional, public, and private organizations used in establishing the total compensation structure. Recognized compensation surveys are defined as those which are publicly available for purchase, updated regularly, and provide data segmented by geographic location, industry, and job function. The Offeror must provide the name of the survey, the data cut (e.g., date, region, percentile), and the specific job mapping used. Offerors that propose weighted or blended rates to account for the contract period of performance crossing the offeror's fiscal year must include a worksheet showing the computation of the rates.

For proposed labor rates that are not covered by an FPRA, FPRR, or FPRP, offerors must provide sufficient data to provide a basis for evaluating the reasonableness of the proposed direct labor rates. This may include payroll reports, salary surveys or any other data to substantiate the proposed rates. If the offeror proposes labor rates based upon salary survey, it must provide the survey data and demonstrate how the survey salaries reflect and align to the offeror's actual salary structure or pay setting practices for similar labor categories. Additionally, the offeror must indicate how many of its existing personnel it intends to employ for this effort and what their actual salaries are, if applicable.

For SCA-Wage Determination-covered Positions:

For each SCA wage determination-covered labor category, provide a clear mapping of the offeror's proposed labor categories to the specific job classifications listed in the applicable Wage Determination. State the basis for the proposed direct labor rate. This should specify if the rate is based on the WD minimum, current average rates for incumbent staff, market data, or a corporate salary structure. If proposing a current, named employee, provide verified payroll data (redacted for PII) showing the actual labor rates currently being paid for SCA-covered positions. Provide a detailed breakdown of how the proposed fringe benefit costs for SCA employees are calculated and how they comply with the WD's Health & Welfare (H&W) requirements.

For CBA-covered Positions:

The offeror shall provide a clear mapping of their proposed labor categories to the job classifications specified in the provided CBA. The proposal shall clearly demonstrate how all CBA-mandated wage escalations for the entire period of performance have been factored into the proposed costs. If the applicable CBA will expire during the contract's period of performance, the offeror shall describe their assumptions and methodology for forecasting rates beyond the CBA's expiration date.

ii. Direct Labor Escalation

The offeror and subcontractors, as applicable, shall provide a comprehensive description of the methodology and calculation used to establish the proposed escalation rate for each year (if applicable) for the Professional/Exempt employees, including the source (e.g. FPRA, FPRR, historical, Global Insight). Rationale shall include detailed offeror historical rate information for the last three (3) fiscal years, and any other relevant information. Offerors proposing lower direct labor escalation rates in the outyears risk a cost realism adjustment (CPFF line items only) or a determination that pricing is unbalanced (FFP line items) if the rationale is insufficient and the lower rates are determined to be unrealistically low. Simply stating that the proposed escalation is what has "always been used" or another statement to that effect is not sufficient. NOTE: Escalation /inflation for Service Contract and CBA personnel will be accomplished by negotiation and modification of the contract each time a new wage determination is incorporated into the contract in accordance with FAR 52.222-43 Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts).

iii. Indirect Rates

For CPFF and CR line items submit current fiscal year FPRA, FPRR, provisional billing rates (PBR) or similar approved rate documentation on file with DCMA or DCAA.

If the above listed approved rate documentation is not available from DCMA or DCAA or does not exist to support proposed indirect rates, the offeror shall submit historical indirect data, to include actual incurred rates, annual incurred cost claims (if submitted), and provisional rates for the three (3) fiscal years prior to the offeror's current fiscal year.

If a proposed indirect rate (for any year in the ordering period(s)) is more than 25% below the three-year historical actual incurred average, offerors (and subcontractors) shall provide a supporting narrative describing the basis for the discrepancy between the historical information and proposed rate. For example, where the three-year historical actual incurred average is 30%, a proposed rate below 22.5% would require a supporting narrative. Information provided shall be consistent with the offeror's disclosed accounting practices and shall identify how the rates were derived. Offerors shall identify the basis for the various cost elements for which each rate is applied. The offeror must clearly explain and demonstrate the application of each rate. Offerors that propose weighted or blended rates to account for the contract period of performance crossing the offeror's fiscal year must include a worksheet showing the computation of the blended rate.

For proposed rates that are not covered by an FPRA, FPRR, or FPRP, offerors must provide sufficient data to provide a basis for evaluating the reasonableness of the proposed rates. The proposal must state how the offeror computed and applied the indirect costs, and include cost breakdowns, forecasts, trends, budget data, and any other relevant data to support the proposed indirect costs. The offeror must submit, for each indirect rate, year-end pool and base amounts for the last three completed fiscal years. The offeror must include forecasts, trends, budget data, and any other relevant data to support the proposed indirect costs. If the offeror does not elect to claim facilities capital cost of money (FCCOM) in its proposal, it will be considered an unallowable cost if included in the contract billings.

a. Fringe Benefits: In accordance with the offeror's normal accounting practice, the offeror shall identify the current and projected fringe benefit rate (s) proposed and identify the cost elements for which the fringe benefit rate is applied.

b. Labor Overhead: In accordance with the offeror's normal accounting practice, the offeror shall identify the current and projected labor overhead rate(s) and total labor overhead cost proposed and identify the cost elements for which labor overhead is applied. For cost proposal purposes only, offerors shall assume 100% of the effort will be performed at a Government's site.

c. General and Administrative (G&A): In accordance with the offeror's normal accounting practice, the offeror shall identify the current and projected G&A rate(s) and the total G&A cost proposed and identify the various cost elements for which the G&A rate is applied.

d. Material & Subcontractor (M&S) Handling: In accordance with the offeror's normal accounting practice, the offeror shall identify the current and projected M&S Handling rate and the total M&S Handling cost proposed and identify the various cost elements for which the M&S Handling rate is applied.

e. Facilities Capital Cost of Money (FCCOM): If FCCOM is proposed, the offeror shall submit a completed DD Form 1861, Contract Facilities Capital Cost of Money, and include documentation supporting the computations within the form. If the offeror does not propose this cost, the resulting task order will include FAR clause 52.215-17 Waiver of Facilities Capital Cost of Money.

10.5 Other Information

The Offeror, and any subcontractors proposed to receive cost-reimbursement subcontracts, shall provide the following information:

(a) Company Organization. The Offeror shall identify the name, title, telephone number, facsimile number, and e-mail address of the individual responsible for proposal clarifications and authorized to obligate the Offeror contractually. The Offeror shall also identify those individuals authorized to negotiate with the Government.

(b) Defense Contract Audit Agency (DCAA). The Offeror shall identify the cognizant DCAA field office that has oversight to the Offeror's organization. Provide the name, title, address, telephone number, and e-mail address.

(c) Defense Contract Management Agency (DCMA). The Offeror shall identify the cognizant DCMA field office and Administrative Contracting

Officer that has oversight to the Offeror's organization. Provide the name, title, address, telephone number, and e-mail address.

(d) Disclosure Statement/Cost Accounting Standards (CAS). Offerors shall provide a copy of their current Disclosure Statement, as well as identification of compliance with CAS, if applicable and any CAS violations and subsequent corrections. Offerors shall clearly identify and discuss any RFP requirements that do not align with their Disclosure Statement.

(e) Estimating and Accounting System(s). Cost-reimbursement contracts can only be used when the contractor's accounting system can adequately segregate, accumulate and allocate costs specifically attributed to the contract or order during contract performance. Offerors shall provide evidence of Government (DCMA) approval of their Estimating and Accounting Systems in accordance with DFARS 252.242-7005 Contractor Business Systems, which complies with the Disclosure Statement. The Offeror must describe their process for estimating and accruing labor, overtime, materials/subcontracts, and travel.

(f) Purchasing System. Offerors shall provide documentation of DCMA approved purchasing system in compliance with DFARS 252.244-7001 Contractor Purchasing System Administration, which complies with the Disclosure Statement. In addition, the Offeror shall describe their process for control costs associated with materials and subcontracts to attain the best value for the required quality; the Offeror must describe the proposed process for submission of proposed pricing to the Government for approval, to include the information which will be submitted to substantiate the proposed pricing as fair and reasonable. Offerors shall describe their process for conducting DLA research to conduct Government system purchases in lieu of open/commercial market purchases. Offerors must describe their processes associated with the management of reoccurring subcontract services to ensure competition. Offerors shall describe their ability and proposed process to share information related to open market/commercial purchases with the Government on a near real-time basis.

(g) Contractor Utilization of Business Systems. The Offeror shall provide a narrative which discusses the proposed use of Contractor Business Systems (Estimating, Accounting, Purchasing, Material Management, and Property Management), to also include Microsoft Project, to develop Planned Value, Earned Value, and Actual Cost reporting and Estimate At Completion (EAC) Projections associated with the USMC and Navy ACRNs and individual Task Orders.

10.5.1 Transition Pricing (FFP). The Offeror shall propose a single Firm Fixed Price (FFP) for all transition activities required by H-21. The Offeror shall clearly identify:
-The proposed Firm Fixed Price for transition
-Any assumptions used in developing the transition price (including CAC and travel for OCONUS personnel)
-A description of the elements that make up the proposed transition price. The Government is not asking for a cost breakdown, but rather high level detail such as total price for labor, total price for any travel, total price for ODCs and/or any other items required for transition. This information will help in the fair and reasonable determination for this CLIN.

The Transition will be included in the Total Evaluated Price (TEP). The Offeror's proposed FFP for transition will be evaluated for fair and reasonable pricing in accordance with FAR 15.404 1, as described in Section M.

11. **VOLUME VII - SMALL BUSINESS PARTICIPATION PLAN AND SUBCONTRACTING PLAN**

This acquisition will require the successful Offeror to comply with various regulations that promote small business & other small business socioeconomic goals. These socio-economic regulations flow down to any subcontractor working under the successful Offeror. The goals for this acquisition are provided below:

-Small Business Concerns 30%
-Small Disadvantaged Business 5%
-Woman-Owned 5%
-HUBZone 3%
-Service-Disabled Veteran-Owned 3%
-Veteran-Owned Small Business 3%

Both the Small Business Participation Plan and the Small Business Subcontracting Plan requirements are detailed below. These are two (2) separate Plans.

Small Business Participation Plan: All Offerors (regardless of business size) are required to submit a Small Business Participation Plan discussing the extent of participation of small businesses (SB) concerns and small disadvantaged business (SDB) concerns in performance of this contract (as a small business prime and/or small business subcontractors). This Plan is an evaluation Factor (Factor 6). Small Business Participation Plans are evaluated in accordance with the criteria found in DFARS 215.104-70.

Small Business Subcontracting Plan: Only "Other than Small" Businesses are required to submit a Small Business Subcontracting Plan. Small Businesses are NOT required to submit a Small Business Subcontracting Plan. Small Business Subcontracting Plans are NOT part of an evaluation Factor but rather reviewed for compliance with FAR 52.219-9 Alt II.

It is noted that while these two plans are separate, they shall be consistent in terms of the small business and other socio-economic small business goals and values an Offeror is proposing to utilize.

11.1 Small Business Participation

The Offeror will address the following areas in their Small Business Participation Proposal:

11.1.1 Identify each small business firm that will participate in the execution of this contract, including any socio-economic category they also qualify under. State what role they will play in the performance of this contract (e.g., prime contractor, subcontractor, joint venture, teaming arrangement etc.). State what percentage of total estimated contract value each business will perform. In order to be found Acceptable, Offerors must propose to meet at a minimum, the Small business and socio-economic goals in section 11 above.

11.1.2 Describe your commitment to using these firms during performance.

11.1.3 Describe the complexity and variety of work to be performed by each small business. Description of the type of work to be performed needs to align with SOW sections.

11.2 Small Business Subcontracting Plan

All business identified as "Other than Small" are required to provide a Small Business Subcontracting Plan IAW FAR 52.219-9 Alt II, to include addressing all of the elements required of FAR 52.219-9 Paragraph (d).

11.2.1 Subcontracting Plan Format Offerors are encouraged to read FAR 19.206-2, 19.206-3, 52.219-9 ALT II, DFARS 219.109, 219.206, and 252.219-7003. The contractor shall use the format required in 52.219-9 ALT II.

12. **VOLUME VIII - PROPOSAL DOCUMENTATION**

12.1 Solicitation Submission

The purpose of this section is to provide information to the Government for preparing the contract document and supporting file.

12.1.1 Required Documents

Cover Letter: A cover letter must be included with the following information provided:
(i) Solicitation Number;
(ii) The name, address, Unique Entity Identifier (UEI), CAGE code, Tax Identification Number (TIN) and telephone number of the Offeror;
(iii) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the RFP and agreement to furnish any or all items upon which prices are offered at the price set opposite each item;
(iv) Names, titles, emails, and telephone numbers of persons authorized to negotiate on the offeror's behalf with the Government in connection with this RFP;
(v) Name, title, and signature of person authorized to sign the proposal.
(vi) Proposal Expiration Date: The Offeror agrees to hold the prices in its offer firm for 365 Calendar days from the date specified for receipt of offers in block 9 of SF 33.

Signed SF 33 & Amendments: The Offeror shall complete, sign, and submit Standard Form (SF) 33 (Uniform Contract Format) Section A. An official having the authority to bind the Offeror contractually must sign the SF33 and all SF30 amendments in accordance with FAR 4.102. The original copy of the SF33 and SF30s must bear an original signature.

DD254 Form: Offerors shall complete and submit DD 254 (RFP Attachment #J-4) at time of proposal. The Offeror shall possess the required facility security clearance at time of proposal submission. The Government will not sponsor a security clearance. Failure of an Offeror to possess a facility security clearance at time of proposal submission will render the proposal ineligible for contract award.

Representations and Certifications - Complete your representations and certifications in the System for Award Management (SAM). Ensure all representations and certifications included in this solicitation are completed in SAM. If any representations and certifications included in this solicitation are not available in SAM, submit your representations and certifications in Volume VIII in addition to certifying that all other representations and certifications have been completed in SAM.

Organizational Conflict of Interest (OCI) (see FAR 2.101) - Disclose any potential or actual OCIs that your company (to include subcontractors and any other teaming partners) may have with the requirements of the SOW/solicitation. Include a description of the OCI(s) and the action(s) taken, if any, to avoid, mitigate, or neutralize the OCIs. A negative response is required.

12.1.2 Exceptions to Terms and Conditions

Offerors are advised that taking any exception to any of the requirements specified in this solicitation may result in their proposal being found unacceptable. Clarification of Government requirements should be handled by submitting a question/recommended change prior to the proposal due date. If the Offeror still finds it necessary to take exception to any of the requirements specified in this solicitation, clearly indicate each exception along with a complete explanation of why the exception was taken and what benefit accrues to the Government. All exceptions to the solicitation requirements (Sections A through M), to include the SOW and supporting rationale shall be identified as such and consolidated into the solicitation exception section. This section is only required if the Offeror takes exception to any requirement in the solicitation. This section will not be included in the proposal page limitation described above. In the event the Offeror takes no exception to the stated requirements, a statement to this effect shall be included in the subject volume.

This information shall be provided in the format and content listed below in Table 12.1.

Solicitation Document	**Paragraph/Page**	**Requirement/Portion**	**Rationale**
Contract Clause, RFP paragraph, Solicitation Submission, ITO, etc.	Applicable Page and Paragraph Numbers	Identify the requirement or portion to which exception is taken	Justify why the requirement will not be met.

13. Reserved

14. **Plan Submissions**

14.1 Mission-Essential Contractor Services Plan - The Offeror shall provide with its offer a written plan describing how it will continue to perform the essential contractor services (all CLINs under this contract), during periods of crisis IAW DFARS 252.237-7023.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-7	System for Award Management-Registration.	Feb 2026		
52.215-1	Instructions to Offerors-Competitive Acquisition.	Feb 2026		
52.215-1	Instructions to Offerors-Competitive Acquisition. (Deviation 2026-O0038) (Alternate I)	Feb 2026	Alternate I	Feb 2026
52.215-16	Facilities Capital Cost of Money.	Jun 2003		
52.215-22	Limitations on Pass-Through Charges-Identification of Subcontract Effort.	Feb 2026		
52.216-1	Type of Contract. (Deviation) (Alternate I)	Feb 2026	Alternate I	Feb 2026
52.222-56	Certification Regarding Trafficking in Persons Compliance Plan. (Deviation)	Feb 2026		
52.233-2	Service of Protest.	Feb 2026		
52.237-1	Site Visit.	Apr 1984		
52.237-10	Identification of Uncompensated Overtime.	Mar 2015		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		
252.215-7013	Supplies and Services Provided by Nontraditional Defense Contractors.	Jan 2023		
252.215-7996	Notification to Offerors-Postaward Debriefings. (DEVIATION 2026-O0048)	Mar 2026	Deviation 2026-O0048	Mar 2026

FAR Clauses Incorporated by Full Text

52.216-1 Type of Contract. (Feb 2026)

Type of Contract (Feb 2026)

The Government contemplates award of a single award Indefinite Delivery Indefinite Quantity (IDIQ) type contract with hybrid Firm Fixed Price (FFP), and Cost Plus Fixed Fee (CPFF), and cost reimbursable CLINs contract resulting from this solicitation.

(End of provision)

52.219-4 Notice of Price Evaluation Preference for HUBZone Small Business Concerns. (Feb 2026)

NOTICE OF PRICE EVALUATION PREFERENCE FOR HUBZONE SMALL BUSINESS CONCERNS (FEB 2026)

(a) Evaluation preference.

(1) Offers will be evaluated by adding a factor of 10 percent to the price of all offers, except-

(i) Offers from HUBZone small business concerns that have not waived the evaluation preference; and

(ii) Otherwise successful offers from small business concerns.

(b) *Waiver of evaluation preference*. A HUBZone small business concern may choose to waive the evaluation preference. If the concern waives the preference, the factor will be added to its offer for evaluation purposes.

☐ Offeror chooses to waive the evaluation preference.

(c) *Joint venture.* A HUBZone joint venture agrees that, in the performance of the contract, at least 40 percent of the aggregate work performed by the joint venture shall be completed by the HUBZone small business parties to the joint venture. Work performed by the HUBZone small business parties to the joint venture must be more than administrative functions.

(End of provision)

52.252-1 Solicitation Provisions Incorporated by Reference. (Feb 1998)

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

https://www.acquisition.gov/

(End of provision)

52.252-3 Alterations in Solicitation. (Apr 1984)

ALTERATIONS IN SOLICITATION (APR 1984)

Portions of this solicitation are altered as follows:

____ ____ ____

(End of clause)

52.252-5 Authorized Deviations in Provisions. (Nov 2020)

AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any ____[insert regulation name](48 CFR Chapter____) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.215-7012 Requirements for Submission of Proposals via Electronic Media. (Jan 2018)

REQUIREMENTS FOR SUBMISSION OF PROPOSALS VIA ELECTRONIC MEDIA (JAN 2018)

The Offeror shall submit the cost portion of the proposal via the following electronic media: ____*[Insert media format, e.g., electronic spreadsheet format, electronic mail, etc.]*

(End of provision)

252.215-7992 Only One Offer. (DEVIATION 2026-O0048) (Mar 2026) Deviation 2026-O0048 (Mar 2026)

ONLY ONE OFFER (DEVIATION 2026-O0048) (MAR 2026)

(a) *Cost or pricing data requirements*. After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to--

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-2(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7994, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) *Canadian Commercial Corporation*. If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at 15.404).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable [*U.S. Contracting Officer to provide description of the data required in accordance with FAR 15.403-1 with the notification*].

(4) As specified in FAR 15.403-1(d), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) *Subcontracts*. Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

Section M - Evaluation Factors for Award

M-1 BASIS FOR AWARD

This is a Best Value Tradeoff source selection conducted in accordance with the DoD Source Selection Procedures (https://www.acq.osd.mil/dpap/policy/policyvault/USA000740-22-DPC.pdf), Federal Acquisition Regulation (FAR) Part 15, Contracting by Negotiation as supplemented by the Defense Acquisition Regulations Supplement (DFARS) and Navy Marine Corps Acquisition Regulation Supplement (NMCARS).

The Government will use the tradeoff process to select the best overall offer, based upon an integrated assessment of the six (6) evaluation factors discussed in Section M-2.

It is anticipated that one single award IDIQ contract will be issued to the Offeror who is deemed responsible in accordance with the FAR, as supplemented, whose proposal conforms to the solicitation's requirements (to include all stated terms, conditions, representations, certifications), and all other information required by Section L of the solicitation) and is judged, based on the evaluation factors and their relative importance as described in this section to represent the best value to the Government.

The Offeror shall possess the required facility security clearance at time of proposal submission. The Government will not sponsor a security clearance. Failure of an Offeror to possess a facility security clearance at time of proposal ineligible for contract award and it will not be evaluated.

The Government reserves the right to award without negotiations; therefore, Offerors are encouraged to submit their best terms in their initial proposal.

Final Proposal Revisions (FPRs) may be requested from each Offeror in the competitive range at the conclusion of negotiations, if conducted. Any revision or non-concurrence to contract terms and conditions in the submitted FPR may not be subject to further discussion or negotiation. This provision is not intended to restrict the Offerors opportunity to revise figures (e.g., prices, discounts, percentages, rates, etc.); rather, it is intended to preclude any misunderstandings by the Government, which could result if new, or revised terms and conditions are submitted in the FPR that have not been fully disclosed, discussed and understood during negotiations. Hence, such new or revised terms and conditions are not solicited and, if submitted in the FPR, may render the offer unacceptable to the Government. The Contracting Officer will establish a common due date and time for submission of the FPR, if applicable.

The Offeror's proposal will be incorporated into the subsequent contract upon award; should any conflicts exists between the contract and the offeror's proposal, unless otherwise determined beneficial by the Government, the contract terms and conditions will take precedence.

M-2 EVALUATION PROCEDURES

Factor ratings and assessments will focus on each proposal's significant strengths, strengths, weaknesses, significant weaknesses, deficiencies, performance confidence and price as defined in the DoD Source Selection Procedures.

As this is a trade-off, an award may be made to a higher rated, higher priced Offeror where the decision is consistent with the evaluation factors and the Source Selection Authority (SSA) determines that the management / technical superiority and/or superior past performance of the higher priced Offeror outweighs the price difference. The SSA bases the source selection decision on an integrated assessment of the evaluation factors. While the Government evaluation team and the SSA will strive for maximum objectivity, the source selection process, by its nature, is subjective; therefore, professional judgment is implicit throughout the entire process.

M-3 EVALUATION FACTORS AND RELATIVE IMPORTANCE

1. EVALUATION FACTORS

This section outlines the Evaluation Factors the Government will consider in evaluating the Offeror's capabilities and the proposals submitted in response to the solicitation. Cursory responses or responses which merely reiterate or paraphrase the Statement of Work will not be considered adequate. The Offeror must provide clear evidence of experience, capability, and qualifications which clearly demonstrate and support the proposed approach. The absence of such evidence will adversely influence the evaluation of the proposal. Award will be made to the Offeror whose proposal represents the best value to the Government, based upon an integrated assessment of the evaluation factors described below.

FACTOR 1: MANAGEMENT
FACTOR 2: USMC TECHNICAL
FACTOR 3: NAVY TECHNICAL
FACTOR 4: PAST PERFORMANCE
FACTOR 5: COST/PRICE
FACTOR 6: SMALL BUSINESS PARTICIPATION

2. RELATIVE IMPORTANCE OF EVALUATION FACTORS

The following factors are listed in descending order of importance:
1. Factor 1 - Management (Volume II)
2. Factor 2 - USMC Technical (Volume III)
3. Factor 3 - Navy Technical (Volume IV)
4. Factor 4 - Past Performance (Volume V)
5. Factor 6 - Small Business Participation (Volume VII)

Factor 1 is more important than Factor 2. Factor 2 is more important than Factor 3. Factor 3 is more important than Factor 4. Factor 4 is more important than Factor 6.

When combined, the non cost/non price factors (Factors 1, 2, 3, 4, and 6) are significantly more important than cost/price (Factor 5). However, as the difference in non-cost/price factors among Offerors narrows, the importance of cost/price increases. Cost/Price will be evaluated but will not be assigned a rating.

M-4 EVALUATION FACTORS

The Government will evaluate proposals using the evaluation factors identified below. Each evaluation factor corresponds to the proposal volumes identified in Section L. The Government will evaluate each volume under the factor indicated below. These factors represent the major areas of consideration in determining best value.

The Offeror's Executive Summary (Volume I) will not be separately rated; however, it will be reviewed to provide context and understanding for the evaluation of Factors 1, 2, and 3.

The Government will evaluate the Management Approach only from the content submitted in the correct volume per Section L. Offerors cannot place Management Approach or Transition Plan details in the Executive Summary to bypass page limits; anything submitted in the wrong volume will not be evaluated.
The Government will assign adjectival ratings to **Factor 1, Factor 2, and Factor 3** using the rating definitions provided below.

RATING DESCRIPTION

RATING	DESCRIPTION
OUTSTANDING	Proposal demonstrates an exceptional approach and understanding of the requirements and contains multiple strengths and/or at least one significant strength, and risk of unsuccessful performance is low.
GOOD	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength or significant strength, and risk of unsuccessful performance is low to moderate.
ACCEPTABLE	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.
MARGINAL	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.
UNACCEPTABLE	Proposal does not meet requirements of the solicitation and, thus, contains one or more deficiencies and is unawardable, and/or risk of performance is unacceptably high.

Factor 1 - Management (Volume II)

The management proposal will be evaluated to assess the Offeror's ability to successfully perform the SOW requirements. The evaluation will assess the degree to which the Offeror's proposed approach is thorough, feasible, and demonstrates a clear understanding of the requirements. The Government will assign a single adjectival rating to the Management Factor using the ratings in the table above. The offeror must address all elements required by Section L; however, the evaluation will not be limited to simply verifying that elements are included, but will also assess the quality and viability of the offeror's proposed solutions.

-Organizational Structure: The Government will evaluate the degree to which the offeror's proposed organizational structure is clear, logical, and effectively integrated to accomplish the MCPP RFP / SOW requirements.

-Human Resource Management: The Government will assess the thoroughness and feasibility of the Offeror's Human Resources Management plan to recruit, hire, train, and retain a qualified workforce capable of executing MCPP requirements. Specific consideration will be given to the adequacy of the proposed HR staffing on-site at MCSF-BI and the effectiveness of corporate support.

-Fiscal Resource Management: The Government will assess the adequacy of the Offeror's proposed staffing of the finance and accounting functions, including the proposed labor mix of finance/accounting personnel on-site at MCSF-BI, and the effectiveness of corporate support. Crucially, the evaluation will focus on the effectiveness and accuracy of the offeror's described process for developing, delivering, and maintaining Contract Cost and Status Reports (CCSR), with a specific emphasis on the process for generating timely and accurate Estimates at Completion (EAC) for each CPFF task order. Approaches that demonstrate a credible and detailed process for managing EACs will be evaluated favorably.

-Quality and Risk Management: The Government will evaluate the effectiveness of the offeror's proposed Quality Control (QC) program's ability to meet MCPP requirements. The evaluation will assess the adequacy of proposed QC staffing and the organizational placement of the quality function to ensure its independence and effectiveness.

-Production Planning and Control (PP&C) Management: The Government will assess the offeror's proposed Production Planning and Control (PP&C) methods / processes for their ability to achieve schedule compliance, the adequacy of the proposed PP&C staffing, and the organizational placement of the PP&C function to ensure its effectiveness.

-Maintenance Management: The Government will evaluate the proposed location of the Maintenance Management Office within the Offeror's organizational structure, the proposed staffing, and the approach to implementing Maintenance Management programs to determine the degree to which the Offeror's approach is effective, feasible and demonstrates a clear understanding of the requirement.

-Contract Transition: The Government will assess the thoroughness, effectiveness, and feasibility of the offeror's Contract Transition Plan to meet the requirements of Section H-21 and mitigate risks associated with the transition period.

Factor 2 - USMC Technical (Volume III)

The Government will evaluate the Offeror's USMC Technical Proposal to assess the offeror's understanding of, and approach to, accomplishing the technical requirements of the SOW (Sections C.4, C.2.4, C.3, C.7, and C.5). The evaluation will assess the degree to which the proposed methodologies are comprehensive, feasible, and effectively integrated to ensure successful performance at all required locations, including Marine Corps Support Facility Blount Island (MCSF-BI), aboard deployed Maritime Prepositioning Ships (MPS), and at land-based prepositioning sites. The Government will assign a single adjectival rating to the USMC Technical Factor using the ratings in the table above. The offeror must address all elements required by Section L; however, the evaluation will not be limited to simply verifying that elements are included, but will also assess the quality and viability of the offeror's proposed solutions.

-USMC Supply and Distribution: The Government will evaluate the offeror's proposed Supply and Distribution methodology for its thoroughness, soundness, and ability to meet the requirements of SOW C.4. The evaluation will assess the credibility and effectiveness of the offeror's approach focusing on the following areas : Demand Planning of Material Requirements, Procurement and Sourcing, Inventory Management, MMC Supply Production, Container Management, and Transportation and Distribution Management. The approach will be assessed for its applicability and integration across all operational environments (MCSF-BI, afloat, and land-based). A methodology that merely lists processes without describing how they are integrated and managed will be evaluated less favorably.

-USMC Maintenance Management: The Government will evaluate the offeror's proposed Maintenance Management methodology to determine if the proposed methodology establishes a systematic and effective framework for controlling and administering Maintenance Management. The evaluation will assess the offeror's approach to Maintenance Administration, Records and Reporting, Maintenance Management Training, Publication Control, Equipment Availability, Preventive and Corrective Maintenance, and Maintenance Related Programs to assess the degree to which the approach demonstrates a clear understanding of the requirements in SOW C.2.4

-USMC Maintenance: The Government will evaluate the offeror's proposed Maintenance methodology for executing the requirements of SOW C.3 and C.7. The evaluation will assess the thoroughness and technical soundness of the offeror's approach to performing core maintenance tasks, including SL-3 Inventory and Inspection, Limited Technical Inspections, PMCS, PMCS and Corrective Maintenance (CM) of Organic Assets, and CM. The Government will evaluate the feasibility and effectiveness of the proposed approaches for supporting unique operational environments, including Shipboard Maintenance, MCPP-PHIL Maintenance, MCPP-N Maintenance, and providing Surge Support. An approach that does not clearly differentiate its methodology for these distinct environments will be evaluated less favorably.

-USMC and Medical Material Manning: The evaluation will assess how well the proposed Work Breakdown Structure (WBS) demonstrates a sufficient staffing level and appropriate labor mix to perform all USMC technical requirements and the Medical Materiel mission (SOW C.5). The Government will evaluate the traceability of the proposed staffing plan to the Employee Qualifications in SOW Attachment C.2.1.1. The proposed management-to-supervisor and supervisor-to-labor ratios will be evaluated for reasonableness and efficiency. Proposals that fail to provide clear, traceable, and logically structured manning data will not be rated favorably.

Factor 3 - Navy Technical (Volume IV)

The Government will evaluate the Offeror's Navy Technical Proposal to assess the offeror's understanding of, and approach to, accomplishing the technical requirements of the SOW for Navy Assets. The evaluation will assess the degree to which the proposed methodologies are comprehensive, feasible, and effectively integrated to ensure successful performance. The Government will assign a single adjectival rating to the Navy Technical Factor using the ratings in the table above. The offeror must address all elements required by Section L; however, the evaluation will not be limited to simply verifying that elements are included, but will also assess the quality and viability of the offeror's proposed solutions.

-Navy Supply: The Government will evaluate the offeror's proposed Navy Supply Methodology for its thoroughness and technical soundness in meeting the requirements of SOW C.6 for Navy CESE, Navy CAPSETS, Navy organic assets and Navy watercraft assigned to the MPF Program. The evaluation will assess the credibility and effectiveness of the offeror's approach to operating the Navy Supply Center (NSC), Facility organization and cleanliness, Navy Warehousing, Supply Administration, Inventory Management and Control (Relational Supply), Interface/Interaction with USMC Supply effort, Procurement Sourcing, Disposition, Transportation, Distribution, Material Handling Equipment Support, OGP Accountability and Serviceability, and Supply Chain Quality Control (QC).

-CAPSET Production: The Government will evaluate the offeror's proposed Navy containerized Capability Set (CAPSET) production strategy for its ability to achieve prescribed timelines and quality standards. The evaluation will assess the soundness of the offeror's production methodology, including the effectiveness of its proposed partnering strategy for container repairs, its proposed surge capability plan, interface/interaction /coordination with multiple maintenance shops, container maintenance administration, container management procedures, container refurbishment /corrosion control/repair approach, data processing, labeling and marking processes, and QC for internal and external Capability Set production

/maintenance.

-CESE Maintenance: The Government will evaluate the offeror's maintenance strategy for Navy Civil Engineer Support Equipment (CESE) for its ability to achieve prescribed timelines and quality standards. The evaluation will assess the feasibility of proposed scheduling, prioritization, resource allocation, management, and integration of CESE maintenance production with the USMC maintenance efforts to include the approach towards CESE maintenance afloat, CESE COSIS, CESE ALTS/FSB/SOUM processing and CESE QC.

-Watercraft Maintenance: The Government will evaluate the offeror's watercraft maintenance strategy for Navy watercraft assigned to the MPF program for its ability to achieve prescribed timelines and quality standards. The Offeror's proposed partnering strategy for intermediate and depot level repairs will be evaluated for effectiveness. The evaluation will include the proposed Navy Maintenance Methodology on the elements listed in Section L for Watercraft Maintenance.

-OGP Serviceability: The Government will evaluate the offeror's maintenance strategy regarding Organic Government Property (OGP) for its ability to achieve prescribed timelines and quality standards. The evaluation will assess the effectiveness and feasibility of the proposed strategy for major material handling equipment (MHE) and weight handling equipment (WHE) assigned to the MPF program and the strategy for OGE subcontract work, maintenance administration, OGE inventory management, preventative maintenance, corrective maintenance, corrosion control and coating systems maintenance, organizational, intermediate and depot level, QC for internal and external maintenance and NAVFAC P-307 program compliance.

-Navy Manning: The evaluation will assess how well the proposed Work Breakdown Structure (WBS) demonstrates a sufficient staffing level and appropriate labor mix to perform all Navy technical requirements. The Government will evaluate the clear traceability of the proposed staffing plan to the Employee Qualifications in SOW Attachment C.2.1.1. The proposed management-to-supervisor and supervisor-to-labor ratios will be evaluated for reasonableness and efficiency. Proposals that fail to provide clear, traceable, and logically structured manning data will not be rated favorably.

Factor 4 - Past Performance (Volume V)

The Government will evaluate the Offeror's recent and relevant past performance to determine the Government's confidence in the Offeror's ability to successfully perform the requirements of this solicitation. The performance confidence assessment will be assigned at the overall factor level after evaluating all aspects of the Offeror's past performance record.

The Government will consider past performance information from:
-References submitted by the Offeror
-CPARS
-Past Performance Questionnaires
-Any other sources deemed appropriate

Offerors with no recent and relevant past performance will receive a Neutral Confidence rating.

Master contract vehicles (e.g., Blanket Purchase Agreements (BPAs), IDIQ contracts) do not satisfy the Past Performance requirement unless submitted together with a TO similar in size, and relevancy to this requirement and awarded and performed under the vehicle.

The past performance evaluation will include three steps. The first is to evaluate the recency of each Offeror's past performance reference. The second step is to evaluate the relevance of each past performance reference. The third step is to establish the quality level of each past performance reference. Each step is detailed below.

D.1 Recency - A recency determination will be made for each Past Performance Information (PPI) reference.
Recency is defined as:
-Active contract performance of at least six (6) months
-Performance within the five (5) years preceding the date of this solicitation issuance
-Note: If the past performance reference is for a TO under an IDIQ, the POP of the TO is what will be evaluated for recency.

Contracts that began earlier but include at least six months of active performance within the fiveyear window will also be considered recent. If a reference is determined recent, the Government may evaluate performance over the entire contract period. If a reference is found to be not recent, it will not be further evaluated for relevancy.

D.2 Relevancy - A relevancy determination will be made for each PPI reference that is found to be recent. Relevancy is defined as past performance involving logistics services similar in size, scope, and complexity to this solicitation requirement.

In determining relevancy, the Government will consider:
-Scope: The similarity of logistics services performed; maintenance, supply chain, and distribution.
-Magnitude: Number of employees and annual value of referenced effort (to be considered relevant, reference should have more than 200 employees assigned to this effort and an annual value exceeding $50M).
-Complexity: The integration of maintenance, supply chain, and distribution functions to achieve program objectives.

The Government will validate relevancy information and is not bound by the Offeror's characterization.

Subcontractor and Affiliate Performance - Subcontractor performance will be given weight relative to the work the subcontractor is proposed to perform under this solicitation. The proposal must clearly identify which requirements the subcontractor will perform.

Affiliate, sister company, joint venture, or teaming partner performance may be considered if the proposal includes documentation demonstrating the relationship and showing that the affiliate will perform significant and critical aspects of the contract.

Relevancy Rating Definitions. The following relevancy definitions apply:

PAST PERFORMANCE RELEVANCY RATINGS

RATING	DESCRIPTION
VERY RELEVANT	Present/past performance effort involved essentially the same scope and magnitude of effort and complexities this solicitation requires.
RELEVANT	Present/past performance effort involved similar scope and magnitude of effort and complexities this solicitation requires.
SOMEWHAT RELEVANT	Present/past performance effort involved some of the scope and magnitude of effort and complexities this solicitation requires.
NOT RELEVANT	Present/past performance effort involved little or none of the scope and magnitude of effort and complexities this solicitation requires.

D3. Quality

The third aspect of past performance evaluation is to establish the overall quality (see FAR 15.104(b)(2)) of the offeror's past performance. Only recent past performance deemed Somewhat Relevant or better will be evaluated in this third step. References found to be Not Relevant will not be evaluated for quality. The Government will review this past performance information (to include CPARS and/or questionnaires) and determine the quality and usefulness as it applies to a performance confidence assessment. The Government's performance confidence assessment will consider the Past Performance Questionnaire submitted by offerors references, CPARS, their own experience with offerors, and information from third-party references.

D4. Performance Confidence. The rating for the Past Performance factor is based on evaluation of the Offeror's past performance data, resulting in an overall performance confidence assessment. The resulting performance confidence assessment represents the Government's confidence in an Offeror's ability to complete work of the same scope, magnitude and complexity as this solicitation requirement. Each Offeror will receive one overall performance confidence rating in accordance with the DoD Source Selection Procedures, as follows:

PAST PERFORMANCE CONFIDENCE ASSESSMENTS RATINGS

RATING	DESCRIPTION
SUBSTANTIAL CONFIDENCE	Based on the Offeror's recent/relevant performance record, the Government has a high expectation that the Offeror will successfully perform the required effort.
SATISFACTORY CONFIDENCE	Based on the Offeror's recent/relevant performance record, the Government has a reasonable expectation that the Offeror will successfully perform the required effort.
NEUTRAL CONFIDENCE	No recent/relevant performance record is available or the Offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The Offeror may not be evaluated favorably or unfavorably on the factor of past performance.
LIMITED CONFIDENCE	Based on the Offeror's recent/relevant performance record, the Government has a low expectation that the Offeror will successfully perform the required effort.

NO CONFIDENCE	Based on the Offeror's recent/relevant performance record, the Government has no expectation that the Offeror will be able to successfully perform the required effort.

D5. Adverse Past Performance. Adverse past performance includes:
-Less than satisfactory rating on any evaluation aspect
-Unfavorable comments received from sources without a formal rating system that cause evaluator concern

D6. Neutral Confidence. If no past contract performance information is available, or if the record is too limited to assess, the Offeror will receive a "Neutral Confidence" rating. While a Neutral Confidence rating will not be evaluated favorably or unfavorably, it is not considered as advantageous as a record of successful past performance (i.e., a "Substantial Confidence" or "Satisfactory Confidence" past performance rating).

D7. Relationship to Responsibility Determination. Past performance is evaluated separately and distinct from determination of responsibility required by FAR Part 9, however, past performance information may be used to support the determination of responsibility for the successful Offeror.

Factor 6 - Small Business Participation (Volume VII)

The Government will evaluate the Offeror's Small Business Participation Plan (required from all Offerors) on whether or not it meets the small business objectives for this procurement. It will be evaluated to ensure it provides all of the required elements that Section L required and that the proposed participation of Small Businesses (including socioeconomic small businesses - SDB, WOSB, HUBZone, SDVOSB, VOSB) meet (at a minimum) the Goals laid out in Section L. The evaluation of this factor will result in a rating of either Acceptable or Unacceptable. An overall rating for Small Business Participation will be assigned as follows:

RATING	DESCRIPTION
ACCEPTABLE	Proposal indicates an adequate approach and understanding of the small business objectives.
UNACCEPTABLE	Proposal does not meet small business objectives.

The Small Business Subcontracting Plan (required from "Other than Small" businesses only) will be reviewed to ensure compliance with FAR 19.704.

M-5 Factor 5: COST/PRICE (VOLUME VI)

For the purposes of determining contract award, the Government will utilize the Total Evaluated Price, which consists of the sum of the FFP amounts proposed for CLINs X001, the sum of probable labor and fixed fee for the CPFF labor CLINs (CLINs X002, X003), the sum of the government provided plug number with the fixed fee applied for CLINs X004, the sum of the government provided plug numbers for CLINs X005, the sum of the government provided plug number with any applicable indirect rates applied for CLINs X006, and the FFP amount proposed for CLIN 0008.

Price/cost will be evaluated using techniques established in FAR 15.404-1 to ensure the Government receives a fair and reasonable, balanced, and realistic price.

A price analysis will be conducted IAW FAR 15.404-1(b). If the Government cannot determine the proposed pricing to be fair and reasonable, and realistic (CPFF and CR only), data other than certified cost or pricing data will be obtained from Offerors.

A cost analysis will be conducted using the techniques and procedures described under FAR 15.404-1(c) and (d). Proposed costs shall be broken down into cost elements and will be evaluated to ensure costs are realistic for the work to be performed, reflect a clear understanding of the requirements, and are consistent with the various elements of the Offeror's management and technical volumes. In addition, analysis shall be performed to determine the probable cost of performance, reflecting the Government's best estimate of the cost most likely to result from the proposal, based on the cost analysis performed.

The Government has provided pre-established estimated amounts for Cost Reimbursable (CR) Contract Line Item Numbers (CLINs) X005 and X006. No fee is allowed. Indirects allowed for CLIN X006.

In addition to the analyses as described in FAR 15.404-1(b), 15.404-1(c), and 15.404-1(d), proposals will be analyzed to identify any potential unbalanced pricing (See FAR 15.404-1(g)). Unbalanced pricing may exist when, despite an acceptable total evaluated price, the price of one or more CLINs is significantly overstated or understated. If cost or price analysis techniques indicate that an offer is unbalanced, the Contracting Officer may determine that the offer poses an unacceptable risk to the Government and may reject the Offeror's proposal.

Completeness. The Government will assess whether the offeror accurately completed all price/cost documents, inclusive of the price/cost template (RFP Attachment #J-7).

Price Reasonableness. The Cost/Price proposal submitted by the Offeror will be evaluated to determine if it is reasonable. IAW FAR 31.201-3, a cost /price is reasonable if, in its nature and amount, it does not exceed that which would be incurred by a reasonable person in the conduct of competitive business. The Offeror's Cost/Price proposal will be evaluated using one or more of the techniques described in FAR 15.404-1 in order to determine if it is reasonable. The reasonableness evaluation will include a comparison of proposed prices received in response to the solicitation IAW FAR 15.404-1(b)(2)(i). Normally, adequate price competition establishes a fair and reasonable price. In order to be considered for award, the proposed price must be determined to be fair and reasonable.

Cost analysis and realism. Cost analysis and realism will be evaluated using the techniques in FAR 15.404, to determine the Offeror's proposed costs are reasonable and realistic. The Government will evaluate the realism of each Offerors' proposed costs. This cost realism assessment will determine if proposed cost elements are realistic for the work to be performed, reflect a clear understanding of the requirements, and are consistent with the methods of performance described in the Offeror's proposal. The cost realism assessment will consider risks identified during the evaluation of the proposal and associated costs. The information collected in the cost realism assessment will be used to develop the Government's most probable cost estimate. This will be done for each cost reimbursable type CLIN (except for the travel CLIN, which is a straight government-provided plug number). In a competitive environment, an Offeror is incentivized to propose the lowest possible cost/price; therefore, downward cost realism adjustments generally will not be made. However, when cost realism analysis indicates that a proposed cost/price is unrealistically low, an upward adjustment may be made, based on the Government's best estimate of the cost/price the Offeror will incur for the cost/price element. When a cost realism analysis is performed, the resulting most probable cost estimate will be used in the evaluation (referred to the Total Evaluated Price).

As part of the cost realism analysis, the Government will evaluate the Offeror's policy on uncompensated overtime (if submitted) in accordance with FAR 52.237-10. The Government will consider the impact of any proposed uncompensated overtime on cost realism and performance risk by adjusting the probable cost of performance to reflect the total hours proposed, including any uncompensated hours.

Contractor Business Systems. Contractor Business Systems (Estimating, Accounting, Purchasing) will be assessed as it pertains to the ability of the Offeror to accurately estimate, purchase and account for MCPP costs under COST TYPE CLINs. The Government will also consider, in the assessment of Cost Reasonableness, Realism and Completeness, whether the Offeror's Business Systems have been approved or otherwise determined to be acceptable by the Government in accordance with DFARS 252.242-7005.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.217-5	Evaluation of Options.	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.247-7026	Evaluation Preference for Use of Domestic Shipyards - Applicable to Acquisition of Carriage by Vessel for DoD Cargo in the Coastwise or Noncontiguous Trade.	Oct 2024		